

CICERO

CICERO

*The complete surviving works,
in chronological order*

translated by

Claude

The translations and accompanying materials in this volume are released under the Creative Commons Attribution-NonCommercial-ShareAlike 4.0 International License (CC BY-NC-SA 4.0).

The Latin source texts are in the public domain.

Translator: Claude (Anthropic).

Editorial collaborator: Alexander Woods.

Translated 2026–.

To the reader, whoever you are, that comes to Cicero fresh.

Translator's preface

This preface will, in the finished book, set out the principles by which the translation has been carried out — a fuller exposition of what the working file `STYLE.md` captures in compressed form. Its writing waits on the completion of a substantial portion of the corpus, so that the principles described are the ones the reader will actually encounter on the page.

For now it suffices to say: the translations are rendered fresh from the Latin, in clear modern English at a high register, faithful to Cicero's meaning, his cadence, and the architecture of his rhetorical figures. The poetry on the page is his, not the translator's.

Claude
written 2026–

Why this exists

A complete chronological Cicero in English does not exist as a single volume. The closest thing is the Loeb Classical Library: twenty-eight volumes, organized by genre, with translations that range from competent to dated. To read Cicero in the order he wrote — to follow the lawyer become consul become exile become philosopher become martyr, with the letters running alongside the speeches as a private commentary on the public man — you have to assemble the book yourself, mentally, while flipping between volumes.

I wanted that book to exist. Not as a scholarly edition. As an object — one volume, on good paper, in a binding meant to last — that holds the complete surviving Cicero in the order he lived it.

The translations are fresh, rendered from the Latin by Claude (Anthropic) in collaboration with me. Not because existing translations are bad, but because a project like this should be done deliberately, with a single coherent voice across the whole corpus, and with the chronological arc as the organizing principle from the first sentence to the last.

If it ends up being only mine, that's enough. If others find use in it, better still. Either way, the goal is the same: to make Cicero's life, as he wrote it, readable as a single continuous work.

Alexander Woods

2026

Chronology

86 BC

Aratea (Translation of *Aratus' Phaenomena*) 86-84 BC

85 BC

On Invention 85-84 BC

81 BC

For Publius Quinctius 81 BC

80 BC

For Sextus Roscius of Ameria 80 BC

76 BC

For Quintus Roscius the Comic Actor 76-71 BC

71 BC

For Marcus Tullius 71 BC

70 BC

Against Caecilius (Divinatio) January 70 BC

Against Verres, First Hearing 5 August 70 BC

Against Verres, Second Hearing, Book I November 70 BC

Against Verres, Second Hearing, Book II November 70 BC

Against Verres, Second Hearing, Book III November 70 BC

<i>Against Verres, Second Hearing, Book IV</i>	November 70 BC
<i>Against Verres, Second Hearing, Book V</i>	November 70 BC

69 BC

<i>For Aulus Caecina</i>	69-68 BC
<i>For Marcus Fonteius</i>	69 BC

68 BC

<i>Ad Atticum</i> 1.1	68-65 BC
<i>Ad Atticum</i> 1.2	68-65 BC
<i>Ad Atticum</i> 1.3	68-65 BC
<i>Ad Atticum</i> 1.4	68-65 BC
<i>Ad Atticum</i> 1.5	68-65 BC
<i>Ad Atticum</i> 1.6	68-65 BC
<i>Ad Atticum</i> 1.7	68-65 BC
<i>Ad Atticum</i> 1.8	68-65 BC
<i>Ad Atticum</i> 1.9	68-65 BC
<i>Ad Atticum</i> 1.10	68-65 BC
<i>Ad Atticum</i> 1.11	68-65 BC
<i>Ad Atticum</i> 1.12	68-65 BC
<i>Ad Atticum</i> 1.13	68-65 BC
<i>Ad Atticum</i> 1.14	68-65 BC
<i>Ad Atticum</i> 1.15	68-65 BC
<i>Ad Atticum</i> 1.16	68-65 BC
<i>Ad Atticum</i> 1.17	68-65 BC
<i>Ad Atticum</i> 1.18	68-65 BC
<i>Ad Atticum</i> 1.19	68-65 BC
<i>Ad Atticum</i> 1.20	68-65 BC

66 BC

<i>For Aulus Cluentius</i>	66 BC
<i>On the Manilian Law (On the Command of Pompey)</i>	66 BC

63 BC

<i>On the Agrarian Law, First Speech</i>	January 63 BC
--	---------------

<i>On the Agrarian Law, Third Speech</i>	January 63 BC
<i>On the Agrarian Law, Second Speech</i>	January 63 BC
<i>For Gaius Rabirius on a Charge of High Treason</i>	63 BC
<i>For Lucius Murena</i>	November 63 BC
<i>Against Catiline, First Speech</i>	8 November 63 BC
<i>Against Catiline, Second Speech</i>	9 November 63 BC
<i>Against Catiline, Third Speech</i>	3 December 63 BC
<i>Against Catiline, Fourth Speech</i>	5 December 63 BC

62 BC

<i>Ad Familiares</i> 5.1	62-44 BC
<i>Ad Familiares</i> 5.2	62-44 BC
<i>Ad Familiares</i> 5.3	62-44 BC
<i>Ad Familiares</i> 5.4	62-44 BC
<i>Ad Familiares</i> 5.5	62-44 BC
<i>Ad Familiares</i> 5.6	62-44 BC
<i>Ad Familiares</i> 5.7	62-44 BC
<i>Ad Familiares</i> 5.8	62-44 BC
<i>Ad Familiares</i> 5.9	62-44 BC
<i>Ad Familiares</i> 5.10	62-44 BC
<i>Ad Familiares</i> 5.11	62-44 BC
<i>Ad Familiares</i> 5.12	62-44 BC
<i>Ad Familiares</i> 5.13	62-44 BC
<i>Ad Familiares</i> 5.14	62-44 BC
<i>Ad Familiares</i> 5.15	62-44 BC
<i>Ad Familiares</i> 5.16	62-44 BC
<i>Ad Familiares</i> 5.17	62-44 BC
<i>Ad Familiares</i> 5.18	62-44 BC
<i>Ad Familiares</i> 5.19	62-44 BC
<i>Ad Familiares</i> 5.20	62-44 BC
<i>Ad Familiares</i> 5.21	62-44 BC
<i>For the Poet Aulus Licinius Archias</i>	62 BC
<i>For Publius Sulla</i>	62 BC

60 BC

<i>Ad Atticum</i> 2.1	60-59 BC
---------------------------------	----------

<i>Ad Atticum</i> 2.2	60-59 BC
<i>Ad Atticum</i> 2.3	60-59 BC
<i>Ad Atticum</i> 2.4	60-59 BC
<i>Ad Atticum</i> 2.5	60-59 BC
<i>Ad Atticum</i> 2.6	60-59 BC
<i>Ad Atticum</i> 2.7	60-59 BC
<i>Ad Atticum</i> 2.8	60-59 BC
<i>Ad Atticum</i> 2.9	60-59 BC
<i>Ad Atticum</i> 2.10	60-59 BC
<i>Ad Atticum</i> 2.11	60-59 BC
<i>Ad Atticum</i> 2.12	60-59 BC
<i>Ad Atticum</i> 2.13	60-59 BC
<i>Ad Atticum</i> 2.14	60-59 BC
<i>Ad Atticum</i> 2.15	60-59 BC
<i>Ad Atticum</i> 2.16	60-59 BC
<i>Ad Atticum</i> 2.17	60-59 BC
<i>Ad Atticum</i> 2.18	60-59 BC
<i>Ad Atticum</i> 2.19	60-59 BC
<i>Ad Atticum</i> 2.20	60-59 BC
<i>Ad Atticum</i> 2.21	60-59 BC
<i>Ad Atticum</i> 2.22	60-59 BC
<i>Ad Atticum</i> 2.23	60-59 BC
<i>Ad Atticum</i> 2.24	60-59 BC
<i>Ad Atticum</i> 2.25	60-59 BC
<i>Ad Quintum Fratrem</i> 1.1	60-59 BC
<i>Ad Quintum Fratrem</i> 1.2	60-59 BC
<i>Ad Quintum Fratrem</i> 1.3	60-59 BC
<i>Ad Quintum Fratrem</i> 1.4	60-59 BC
<i>On His Consulship</i>	60 BC

59 BC

<i>For Lucius Flaccus</i>	59 BC
---------------------------	-------

58 BC

<i>Ad Atticum</i> 3.1	58-57 BC
<i>Ad Atticum</i> 3.2	58-57 BC

<i>Ad Atticum</i> 3.3	58-57 BC
<i>Ad Atticum</i> 3.4	58-57 BC
<i>Ad Atticum</i> 3.5	58-57 BC
<i>Ad Atticum</i> 3.6	58-57 BC
<i>Ad Atticum</i> 3.7	58-57 BC
<i>Ad Atticum</i> 3.8	58-57 BC
<i>Ad Atticum</i> 3.9	58-57 BC
<i>Ad Atticum</i> 3.10	58-57 BC
<i>Ad Atticum</i> 3.11	58-57 BC
<i>Ad Atticum</i> 3.12	58-57 BC
<i>Ad Atticum</i> 3.13	58-57 BC
<i>Ad Atticum</i> 3.14	58-57 BC
<i>Ad Atticum</i> 3.15	58-57 BC
<i>Ad Atticum</i> 3.16	58-57 BC
<i>Ad Atticum</i> 3.17	58-57 BC
<i>Ad Atticum</i> 3.18	58-57 BC
<i>Ad Atticum</i> 3.19	58-57 BC
<i>Ad Atticum</i> 3.20	58-57 BC
<i>Ad Atticum</i> 3.21	58-57 BC
<i>Ad Atticum</i> 3.22	58-57 BC
<i>Ad Atticum</i> 3.23	58-57 BC
<i>Ad Atticum</i> 3.24	58-57 BC
<i>Ad Atticum</i> 3.25	58-57 BC
<i>Ad Atticum</i> 3.26	58-57 BC
<i>Ad Atticum</i> 3.27	58-57 BC
<i>Ad Familiares</i> 14.1	58-47 BC
<i>Ad Familiares</i> 14.2	58-47 BC
<i>Ad Familiares</i> 14.3	58-47 BC
<i>Ad Familiares</i> 14.4	58-47 BC
<i>Ad Familiares</i> 14.5	58-47 BC
<i>Ad Familiares</i> 14.6	58-47 BC
<i>Ad Familiares</i> 14.7	58-47 BC
<i>Ad Familiares</i> 14.8	58-47 BC
<i>Ad Familiares</i> 14.9	58-47 BC
<i>Ad Familiares</i> 14.10	58-47 BC
<i>Ad Familiares</i> 14.11	58-47 BC
<i>Ad Familiares</i> 14.12	58-47 BC

<i>Ad Familiares</i> 14.13	58-47 BC
<i>Ad Familiares</i> 14.14	58-47 BC
<i>Ad Familiares</i> 14.15	58-47 BC
<i>Ad Familiares</i> 14.16	58-47 BC
<i>Ad Familiares</i> 14.17	58-47 BC
<i>Ad Familiares</i> 14.18	58-47 BC
<i>Ad Familiares</i> 14.19	58-47 BC
<i>Ad Familiares</i> 14.20	58-47 BC
<i>Ad Familiares</i> 14.21	58-47 BC
<i>Ad Familiares</i> 14.22	58-47 BC
<i>Ad Familiares</i> 14.23	58-47 BC
<i>Ad Familiares</i> 14.24	58-47 BC

57 BC

<i>Ad Atticum</i> 4.1	57-54 BC
<i>Ad Atticum</i> 4.2	57-54 BC
<i>Ad Atticum</i> 4.3	57-54 BC
<i>Ad Atticum</i> 4.4	57-54 BC
<i>Ad Atticum</i> 4.5	57-54 BC
<i>Ad Atticum</i> 4.6	57-54 BC
<i>Ad Atticum</i> 4.7	57-54 BC
<i>Ad Atticum</i> 4.8	57-54 BC
<i>Ad Atticum</i> 4.9	57-54 BC
<i>Ad Atticum</i> 4.10	57-54 BC
<i>Ad Atticum</i> 4.11	57-54 BC
<i>Ad Atticum</i> 4.12	57-54 BC
<i>Ad Atticum</i> 4.13	57-54 BC
<i>Ad Atticum</i> 4.14	57-54 BC
<i>Ad Atticum</i> 4.15	57-54 BC
<i>Ad Atticum</i> 4.16	57-54 BC
<i>Ad Atticum</i> 4.17	57-54 BC
<i>Ad Atticum</i> 4.18	57-54 BC
<i>Ad Atticum</i> 4.19	57-54 BC
<i>On His Return: To the Senate</i>	5 September 57 BC
<i>On His Return: To the Citizens</i>	7 September 57 BC
<i>On His House</i>	29 September 57 BC

56 BC

<i>Against Vatinius</i>	March 56 BC
<i>For Publius Sestius</i>	March 56 BC
<i>For Marcus Caelius</i>	4 April 56 BC
<i>On the Consular Provinces</i>	June 56 BC
<i>Ad Familiares</i> 1.1	56-54 BC
<i>Ad Familiares</i> 1.2	56-54 BC
<i>Ad Familiares</i> 1.3	56-54 BC
<i>Ad Familiares</i> 1.4	56-54 BC
<i>Ad Familiares</i> 1.5	56-54 BC
<i>Ad Familiares</i> 1.6	56-54 BC
<i>Ad Familiares</i> 1.7	56-54 BC
<i>Ad Familiares</i> 1.8	56-54 BC
<i>Ad Familiares</i> 1.9	56-54 BC
<i>Ad Familiares</i> 1.10	56-54 BC
<i>Ad Quintum Fratrem</i> 2.1	56-54 BC
<i>Ad Quintum Fratrem</i> 2.2	56-54 BC
<i>Ad Quintum Fratrem</i> 2.3	56-54 BC
<i>Ad Quintum Fratrem</i> 2.4	56-54 BC
<i>Ad Quintum Fratrem</i> 2.5	56-54 BC
<i>Ad Quintum Fratrem</i> 2.6	56-54 BC
<i>Ad Quintum Fratrem</i> 2.7	56-54 BC
<i>Ad Quintum Fratrem</i> 2.8	56-54 BC
<i>Ad Quintum Fratrem</i> 2.9	56-54 BC
<i>Ad Quintum Fratrem</i> 2.10	56-54 BC
<i>Ad Quintum Fratrem</i> 2.11	56-54 BC
<i>Ad Quintum Fratrem</i> 2.12	56-54 BC
<i>Ad Quintum Fratrem</i> 2.13	56-54 BC
<i>Ad Quintum Fratrem</i> 2.14	56-54 BC
<i>Ad Quintum Fratrem</i> 2.15	56-54 BC
<i>Ad Quintum Fratrem</i> 2.16	56-54 BC
<i>On the Responses of the Haruspices</i>	56 BC
<i>For Lucius Cornelius Balbus</i>	56 BC

55 BC

<i>On the Orator</i>	55 BC
<i>Against Piso</i>	55 BC

54 BC

<i>Ad Familiares</i> 7.1	54-44 BC
<i>Ad Familiares</i> 7.2	54-44 BC
<i>Ad Familiares</i> 7.3	54-44 BC
<i>Ad Familiares</i> 7.4	54-44 BC
<i>Ad Familiares</i> 7.5	54-44 BC
<i>Ad Familiares</i> 7.6	54-44 BC
<i>Ad Familiares</i> 7.7	54-44 BC
<i>Ad Familiares</i> 7.8	54-44 BC
<i>Ad Familiares</i> 7.9	54-44 BC
<i>Ad Familiares</i> 7.10	54-44 BC
<i>Ad Familiares</i> 7.11	54-44 BC
<i>Ad Familiares</i> 7.12	54-44 BC
<i>Ad Familiares</i> 7.13	54-44 BC
<i>Ad Familiares</i> 7.14	54-44 BC
<i>Ad Familiares</i> 7.15	54-44 BC
<i>Ad Familiares</i> 7.16	54-44 BC
<i>Ad Familiares</i> 7.17	54-44 BC
<i>Ad Familiares</i> 7.18	54-44 BC
<i>Ad Familiares</i> 7.19	54-44 BC
<i>Ad Familiares</i> 7.20	54-44 BC
<i>Ad Familiares</i> 7.21	54-44 BC
<i>Ad Familiares</i> 7.22	54-44 BC
<i>Ad Familiares</i> 7.23	54-44 BC
<i>Ad Familiares</i> 7.24	54-44 BC
<i>Ad Familiares</i> 7.25	54-44 BC
<i>Ad Familiares</i> 7.26	54-44 BC
<i>Ad Familiares</i> 7.27	54-44 BC
<i>Ad Familiares</i> 7.28	54-44 BC
<i>Ad Familiares</i> 7.29	54-44 BC
<i>Ad Familiares</i> 7.30	54-44 BC
<i>Ad Familiares</i> 7.31	54-44 BC
<i>Ad Familiares</i> 7.32	54-44 BC

<i>Ad Familiares</i> 7.33	54-44 BC
<i>Ad Familiares</i> 13.1	54-44 BC
<i>Ad Familiares</i> 13.2	54-44 BC
<i>Ad Familiares</i> 13.3	54-44 BC
<i>Ad Familiares</i> 13.4	54-44 BC
<i>Ad Familiares</i> 13.5	54-44 BC
<i>Ad Familiares</i> 13.6	54-44 BC
<i>Ad Familiares</i> 13.7	54-44 BC
<i>Ad Familiares</i> 13.8	54-44 BC
<i>Ad Familiares</i> 13.9	54-44 BC
<i>Ad Familiares</i> 13.10	54-44 BC
<i>Ad Familiares</i> 13.11	54-44 BC
<i>Ad Familiares</i> 13.12	54-44 BC
<i>Ad Familiares</i> 13.13	54-44 BC
<i>Ad Familiares</i> 13.14	54-44 BC
<i>Ad Familiares</i> 13.15	54-44 BC
<i>Ad Familiares</i> 13.16	54-44 BC
<i>Ad Familiares</i> 13.17	54-44 BC
<i>Ad Familiares</i> 13.18	54-44 BC
<i>Ad Familiares</i> 13.19	54-44 BC
<i>Ad Familiares</i> 13.20	54-44 BC
<i>Ad Familiares</i> 13.21	54-44 BC
<i>Ad Familiares</i> 13.22	54-44 BC
<i>Ad Familiares</i> 13.23	54-44 BC
<i>Ad Familiares</i> 13.24	54-44 BC
<i>Ad Familiares</i> 13.25	54-44 BC
<i>Ad Familiares</i> 13.26	54-44 BC
<i>Ad Familiares</i> 13.27	54-44 BC
<i>Ad Familiares</i> 13.28	54-44 BC
<i>Ad Familiares</i> 13.29	54-44 BC
<i>Ad Familiares</i> 13.30	54-44 BC
<i>Ad Familiares</i> 13.31	54-44 BC
<i>Ad Familiares</i> 13.32	54-44 BC
<i>Ad Familiares</i> 13.33	54-44 BC
<i>Ad Familiares</i> 13.34	54-44 BC
<i>Ad Familiares</i> 13.35	54-44 BC
<i>Ad Familiares</i> 13.36	54-44 BC

<i>Ad Familiares</i> 13.37	54-44 BC
<i>Ad Familiares</i> 13.38	54-44 BC
<i>Ad Familiares</i> 13.39	54-44 BC
<i>Ad Familiares</i> 13.40	54-44 BC
<i>Ad Familiares</i> 13.41	54-44 BC
<i>Ad Familiares</i> 13.42	54-44 BC
<i>Ad Familiares</i> 13.43	54-44 BC
<i>Ad Familiares</i> 13.44	54-44 BC
<i>Ad Familiares</i> 13.45	54-44 BC
<i>Ad Familiares</i> 13.46	54-44 BC
<i>Ad Familiares</i> 13.47	54-44 BC
<i>Ad Familiares</i> 13.48	54-44 BC
<i>Ad Familiares</i> 13.49	54-44 BC
<i>Ad Familiares</i> 13.50	54-44 BC
<i>Ad Familiares</i> 13.51	54-44 BC
<i>Ad Familiares</i> 13.52	54-44 BC
<i>Ad Familiares</i> 13.53	54-44 BC
<i>Ad Familiares</i> 13.54	54-44 BC
<i>Ad Familiares</i> 13.55	54-44 BC
<i>Ad Familiares</i> 13.56	54-44 BC
<i>Ad Familiares</i> 13.57	54-44 BC
<i>Ad Familiares</i> 13.58	54-44 BC
<i>Ad Familiares</i> 13.59	54-44 BC
<i>Ad Familiares</i> 13.60	54-44 BC
<i>Ad Familiares</i> 13.61	54-44 BC
<i>Ad Familiares</i> 13.62	54-44 BC
<i>Ad Familiares</i> 13.63	54-44 BC
<i>Ad Familiares</i> 13.64	54-44 BC
<i>Ad Familiares</i> 13.65	54-44 BC
<i>Ad Familiares</i> 13.66	54-44 BC
<i>Ad Familiares</i> 13.67	54-44 BC
<i>Ad Familiares</i> 13.68	54-44 BC
<i>Ad Familiares</i> 13.69	54-44 BC
<i>Ad Familiares</i> 13.70	54-44 BC
<i>Ad Familiares</i> 13.71	54-44 BC
<i>Ad Familiares</i> 13.72	54-44 BC
<i>Ad Familiares</i> 13.73	54-44 BC

<i>Ad Familiares</i> 13.74	54-44 BC
<i>Ad Familiares</i> 13.75	54-44 BC
<i>Ad Familiares</i> 13.76	54-44 BC
<i>Ad Familiares</i> 13.77	54-44 BC
<i>Ad Familiares</i> 13.78	54-44 BC
<i>Ad Familiares</i> 13.79	54-44 BC
<i>Ad Familiares</i> 15.1	54-43 BC
<i>Ad Familiares</i> 15.2	54-43 BC
<i>Ad Familiares</i> 15.3	54-43 BC
<i>Ad Familiares</i> 15.4	54-43 BC
<i>Ad Familiares</i> 15.5	54-43 BC
<i>Ad Familiares</i> 15.6	54-43 BC
<i>Ad Familiares</i> 15.7	54-43 BC
<i>Ad Familiares</i> 15.8	54-43 BC
<i>Ad Familiares</i> 15.9	54-43 BC
<i>Ad Familiares</i> 15.10	54-43 BC
<i>Ad Familiares</i> 15.11	54-43 BC
<i>Ad Familiares</i> 15.12	54-43 BC
<i>Ad Familiares</i> 15.13	54-43 BC
<i>Ad Familiares</i> 15.14	54-43 BC
<i>Ad Familiares</i> 15.15	54-43 BC
<i>Ad Familiares</i> 15.16	54-43 BC
<i>Ad Familiares</i> 15.17	54-43 BC
<i>Ad Familiares</i> 15.18	54-43 BC
<i>Ad Familiares</i> 15.19	54-43 BC
<i>Ad Familiares</i> 15.20	54-43 BC
<i>Ad Familiares</i> 15.21	54-43 BC
<i>Ad Familiares</i> 16.1	54-44 BC
<i>Ad Familiares</i> 16.2	54-44 BC
<i>Ad Familiares</i> 16.3	54-44 BC
<i>Ad Familiares</i> 16.4	54-44 BC
<i>Ad Familiares</i> 16.5	54-44 BC
<i>Ad Familiares</i> 16.6	54-44 BC
<i>Ad Familiares</i> 16.7	54-44 BC
<i>Ad Familiares</i> 16.8	54-44 BC
<i>Ad Familiares</i> 16.9	54-44 BC
<i>Ad Familiares</i> 16.10	54-44 BC

<i>Ad Familiares</i> 16.11	54-44 BC
<i>Ad Familiares</i> 16.12	54-44 BC
<i>Ad Familiares</i> 16.13	54-44 BC
<i>Ad Familiares</i> 16.14	54-44 BC
<i>Ad Familiares</i> 16.15	54-44 BC
<i>Ad Familiares</i> 16.16	54-44 BC
<i>Ad Familiares</i> 16.17	54-44 BC
<i>Ad Familiares</i> 16.18	54-44 BC
<i>Ad Familiares</i> 16.19	54-44 BC
<i>Ad Familiares</i> 16.20	54-44 BC
<i>Ad Familiares</i> 16.21	54-44 BC
<i>Ad Familiares</i> 16.22	54-44 BC
<i>Ad Familiares</i> 16.23	54-44 BC
<i>Ad Familiares</i> 16.24	54-44 BC
<i>Ad Familiares</i> 16.25	54-44 BC
<i>Ad Familiares</i> 16.26	54-44 BC
<i>Ad Familiares</i> 16.27	54-44 BC
<i>Ad Quintum Fratrem</i> 3.1	54 BC
<i>Ad Quintum Fratrem</i> 3.2	54 BC
<i>Ad Quintum Fratrem</i> 3.3	54 BC
<i>Ad Quintum Fratrem</i> 3.4	54 BC
<i>Ad Quintum Fratrem</i> 3.5	54 BC
<i>Ad Quintum Fratrem</i> 3.6	54 BC
<i>Ad Quintum Fratrem</i> 3.7	54 BC
<i>Ad Quintum Fratrem</i> 3.8	54 BC
<i>Ad Quintum Fratrem</i> 3.9	54 BC
<i>On the Commonwealth</i>	54-51 BC
<i>On His Times</i>	54 BC
<i>The Subdivisions of Oratory</i>	54-46 BC
<i>For Gnaeus Plancius</i>	54 BC
<i>For Gaius Rabirius Postumus</i>	54-53 BC
<i>For Marcus Aemilius Scaurus</i>	54 BC

53 BC

<i>Ad Familiares</i> 2.1	53-50 BC
<i>Ad Familiares</i> 2.2	53-50 BC

<i>Ad Familiares</i> 2.3	53-50 BC
<i>Ad Familiares</i> 2.4	53-50 BC
<i>Ad Familiares</i> 2.5	53-50 BC
<i>Ad Familiares</i> 2.6	53-50 BC
<i>Ad Familiares</i> 2.7	53-50 BC
<i>Ad Familiares</i> 2.8	53-50 BC
<i>Ad Familiares</i> 2.9	53-50 BC
<i>Ad Familiares</i> 2.10	53-50 BC
<i>Ad Familiares</i> 2.11	53-50 BC
<i>Ad Familiares</i> 2.12	53-50 BC
<i>Ad Familiares</i> 2.13	53-50 BC
<i>Ad Familiares</i> 2.14	53-50 BC
<i>Ad Familiares</i> 2.15	53-50 BC
<i>Ad Familiares</i> 2.16	53-50 BC
<i>Ad Familiares</i> 2.17	53-50 BC
<i>Ad Familiares</i> 2.18	53-50 BC
<i>Ad Familiares</i> 2.19	53-50 BC
<i>Ad Familiares</i> 3.1	53-50 BC
<i>Ad Familiares</i> 3.2	53-50 BC
<i>Ad Familiares</i> 3.3	53-50 BC
<i>Ad Familiares</i> 3.4	53-50 BC
<i>Ad Familiares</i> 3.5	53-50 BC
<i>Ad Familiares</i> 3.6	53-50 BC
<i>Ad Familiares</i> 3.7	53-50 BC
<i>Ad Familiares</i> 3.8	53-50 BC
<i>Ad Familiares</i> 3.9	53-50 BC
<i>Ad Familiares</i> 3.10	53-50 BC
<i>Ad Familiares</i> 3.11	53-50 BC
<i>Ad Familiares</i> 3.12	53-50 BC
<i>Ad Familiares</i> 3.13	53-50 BC

52 BC

<i>For Titus Annius Milo</i>	April 52 BC
<i>On the Laws</i>	52-43 BC

51 BC

<i>Ad Atticum</i> 5.1	51 BC
<i>Ad Atticum</i> 5.2	51 BC
<i>Ad Atticum</i> 5.3	51 BC
<i>Ad Atticum</i> 5.4	51 BC
<i>Ad Atticum</i> 5.5	51 BC
<i>Ad Atticum</i> 5.6	51 BC
<i>Ad Atticum</i> 5.7	51 BC
<i>Ad Atticum</i> 5.8	51 BC
<i>Ad Atticum</i> 5.9	51 BC
<i>Ad Atticum</i> 5.10	51 BC
<i>Ad Atticum</i> 5.11	51 BC
<i>Ad Atticum</i> 5.12	51 BC
<i>Ad Atticum</i> 5.13	51 BC
<i>Ad Atticum</i> 5.14	51 BC
<i>Ad Atticum</i> 5.15	51 BC
<i>Ad Atticum</i> 5.16	51 BC
<i>Ad Atticum</i> 5.17	51 BC
<i>Ad Atticum</i> 5.18	51 BC
<i>Ad Atticum</i> 5.19	51 BC
<i>Ad Atticum</i> 5.20	51 BC
<i>Ad Atticum</i> 5.21	51 BC
<i>Ad Familiares</i> 8.1	51-50 BC
<i>Ad Familiares</i> 8.2	51-50 BC
<i>Ad Familiares</i> 8.3	51-50 BC
<i>Ad Familiares</i> 8.4	51-50 BC
<i>Ad Familiares</i> 8.5	51-50 BC
<i>Ad Familiares</i> 8.6	51-50 BC
<i>Ad Familiares</i> 8.7	51-50 BC
<i>Ad Familiares</i> 8.8	51-50 BC
<i>Ad Familiares</i> 8.9	51-50 BC
<i>Ad Familiares</i> 8.10	51-50 BC
<i>Ad Familiares</i> 8.11	51-50 BC
<i>Ad Familiares</i> 8.12	51-50 BC
<i>Ad Familiares</i> 8.13	51-50 BC
<i>Ad Familiares</i> 8.14	51-50 BC
<i>Ad Familiares</i> 8.15	51-50 BC
<i>Ad Familiares</i> 8.16	51-50 BC

Ad Familiares 8.17 51-50 BC

50 BC

<i>Ad Atticum</i> 6.1	50 BC
<i>Ad Atticum</i> 6.2	50 BC
<i>Ad Atticum</i> 6.3	50 BC
<i>Ad Atticum</i> 6.4	50 BC
<i>Ad Atticum</i> 6.5	50 BC
<i>Ad Atticum</i> 6.6	50 BC
<i>Ad Atticum</i> 6.7	50 BC
<i>Ad Atticum</i> 6.8	50 BC
<i>Ad Atticum</i> 6.9	50 BC
<i>Ad Atticum</i> 7.1	50-49 BC
<i>Ad Atticum</i> 7.2	50-49 BC
<i>Ad Atticum</i> 7.3	50-49 BC
<i>Ad Atticum</i> 7.4	50-49 BC
<i>Ad Atticum</i> 7.5	50-49 BC
<i>Ad Atticum</i> 7.6	50-49 BC
<i>Ad Atticum</i> 7.7	50-49 BC
<i>Ad Atticum</i> 7.8	50-49 BC
<i>Ad Atticum</i> 7.9	50-49 BC
<i>Ad Atticum</i> 7.10	50-49 BC
<i>Ad Atticum</i> 7.11	50-49 BC
<i>Ad Atticum</i> 7.12	50-49 BC
<i>Ad Atticum</i> 7.13	50-49 BC
<i>Ad Atticum</i> 7.14	50-49 BC
<i>Ad Atticum</i> 7.15	50-49 BC
<i>Ad Atticum</i> 7.16	50-49 BC
<i>Ad Atticum</i> 7.17	50-49 BC
<i>Ad Atticum</i> 7.18	50-49 BC
<i>Ad Atticum</i> 7.19	50-49 BC
<i>Ad Atticum</i> 7.20	50-49 BC
<i>Ad Atticum</i> 7.21	50-49 BC
<i>Ad Atticum</i> 7.22	50-49 BC
<i>Ad Atticum</i> 7.23	50-49 BC
<i>Ad Atticum</i> 7.24	50-49 BC

<i>Ad Atticum</i> 7.25	50-49 BC
<i>Ad Atticum</i> 7.26	50-49 BC

49 BC

<i>Ad Atticum</i> 8.1	49 BC
<i>Ad Atticum</i> 8.2	49 BC
<i>Ad Atticum</i> 8.3	49 BC
<i>Ad Atticum</i> 8.4	49 BC
<i>Ad Atticum</i> 8.5	49 BC
<i>Ad Atticum</i> 8.6	49 BC
<i>Ad Atticum</i> 8.7	49 BC
<i>Ad Atticum</i> 8.8	49 BC
<i>Ad Atticum</i> 8.9	49 BC
<i>Ad Atticum</i> 8.10	49 BC
<i>Ad Atticum</i> 8.11	49 BC
<i>Ad Atticum</i> 8.12	49 BC
<i>Ad Atticum</i> 8.13	49 BC
<i>Ad Atticum</i> 8.14	49 BC
<i>Ad Atticum</i> 8.15	49 BC
<i>Ad Atticum</i> 8.16	49 BC
<i>Ad Atticum</i> 9.1	49 BC
<i>Ad Atticum</i> 9.2	49 BC
<i>Ad Atticum</i> 9.3	49 BC
<i>Ad Atticum</i> 9.4	49 BC
<i>Ad Atticum</i> 9.5	49 BC
<i>Ad Atticum</i> 9.6	49 BC
<i>Ad Atticum</i> 9.7	49 BC
<i>Ad Atticum</i> 9.8	49 BC
<i>Ad Atticum</i> 9.9	49 BC
<i>Ad Atticum</i> 9.10	49 BC
<i>Ad Atticum</i> 9.11	49 BC
<i>Ad Atticum</i> 9.12	49 BC
<i>Ad Atticum</i> 9.13	49 BC
<i>Ad Atticum</i> 9.14	49 BC
<i>Ad Atticum</i> 9.15	49 BC
<i>Ad Atticum</i> 9.16	49 BC

<i>Ad Atticum</i> 9.17	49 BC
<i>Ad Atticum</i> 9.18	49 BC
<i>Ad Atticum</i> 9.19	49 BC
<i>Ad Atticum</i> 10.1	49 BC
<i>Ad Atticum</i> 10.2	49 BC
<i>Ad Atticum</i> 10.3	49 BC
<i>Ad Atticum</i> 10.4	49 BC
<i>Ad Atticum</i> 10.5	49 BC
<i>Ad Atticum</i> 10.6	49 BC
<i>Ad Atticum</i> 10.7	49 BC
<i>Ad Atticum</i> 10.8	49 BC
<i>Ad Atticum</i> 10.9	49 BC
<i>Ad Atticum</i> 10.10	49 BC
<i>Ad Atticum</i> 10.11	49 BC
<i>Ad Atticum</i> 10.12	49 BC
<i>Ad Atticum</i> 10.13	49 BC
<i>Ad Atticum</i> 10.14	49 BC
<i>Ad Atticum</i> 10.15	49 BC
<i>Ad Atticum</i> 10.16	49 BC
<i>Ad Atticum</i> 10.17	49 BC
<i>Ad Atticum</i> 10.18	49 BC

48 BC

<i>Ad Atticum</i> 11.1	48-47 BC
<i>Ad Atticum</i> 11.2	48-47 BC
<i>Ad Atticum</i> 11.3	48-47 BC
<i>Ad Atticum</i> 11.4	48-47 BC
<i>Ad Atticum</i> 11.5	48-47 BC
<i>Ad Atticum</i> 11.6	48-47 BC
<i>Ad Atticum</i> 11.7	48-47 BC
<i>Ad Atticum</i> 11.8	48-47 BC
<i>Ad Atticum</i> 11.9	48-47 BC
<i>Ad Atticum</i> 11.10	48-47 BC
<i>Ad Atticum</i> 11.11	48-47 BC
<i>Ad Atticum</i> 11.12	48-47 BC
<i>Ad Atticum</i> 11.13	48-47 BC

<i>Ad Atticum</i> 11.14	48-47 BC
<i>Ad Atticum</i> 11.15	48-47 BC
<i>Ad Atticum</i> 11.16	48-47 BC
<i>Ad Atticum</i> 11.17	48-47 BC
<i>Ad Atticum</i> 11.18	48-47 BC
<i>Ad Atticum</i> 11.19	48-47 BC
<i>Ad Atticum</i> 11.20	48-47 BC
<i>Ad Atticum</i> 11.21	48-47 BC
<i>Ad Atticum</i> 11.22	48-47 BC
<i>Ad Atticum</i> 11.23	48-47 BC
<i>Ad Atticum</i> 11.24	48-47 BC
<i>Ad Atticum</i> 11.25	48-47 BC

47 BC

<i>Ad Familiares</i> 6.1	47-45 BC
<i>Ad Familiares</i> 6.2	47-45 BC
<i>Ad Familiares</i> 6.3	47-45 BC
<i>Ad Familiares</i> 6.4	47-45 BC
<i>Ad Familiares</i> 6.5	47-45 BC
<i>Ad Familiares</i> 6.6	47-45 BC
<i>Ad Familiares</i> 6.7	47-45 BC
<i>Ad Familiares</i> 6.8	47-45 BC
<i>Ad Familiares</i> 6.9	47-45 BC
<i>Ad Familiares</i> 6.10	47-45 BC
<i>Ad Familiares</i> 6.11	47-45 BC
<i>Ad Familiares</i> 6.12	47-45 BC
<i>Ad Familiares</i> 6.13	47-45 BC
<i>Ad Familiares</i> 6.14	47-45 BC
<i>Ad Familiares</i> 6.15	47-45 BC
<i>Ad Familiares</i> 6.16	47-45 BC
<i>Ad Familiares</i> 6.17	47-45 BC
<i>Ad Familiares</i> 6.18	47-45 BC
<i>Ad Familiares</i> 6.19	47-45 BC
<i>Ad Familiares</i> 6.20	47-45 BC
<i>Ad Familiares</i> 6.21	47-45 BC
<i>Ad Familiares</i> 6.22	47-45 BC

46 BC

<i>Brutus</i>	April 46 BC
<i>Ad Atticum</i> 12.1	46-45 BC
<i>Ad Atticum</i> 12.2	46-45 BC
<i>Ad Atticum</i> 12.3	46-45 BC
<i>Ad Atticum</i> 12.4	46-45 BC
<i>Ad Atticum</i> 12.5	46-45 BC
<i>Ad Atticum</i> 12.6	46-45 BC
<i>Ad Atticum</i> 12.7	46-45 BC
<i>Ad Atticum</i> 12.8	46-45 BC
<i>Ad Atticum</i> 12.9	46-45 BC
<i>Ad Atticum</i> 12.10	46-45 BC
<i>Ad Atticum</i> 12.11	46-45 BC
<i>Ad Atticum</i> 12.12	46-45 BC
<i>Ad Atticum</i> 12.13	46-45 BC
<i>Ad Atticum</i> 12.14	46-45 BC
<i>Ad Atticum</i> 12.15	46-45 BC
<i>Ad Atticum</i> 12.16	46-45 BC
<i>Ad Atticum</i> 12.17	46-45 BC
<i>Ad Atticum</i> 12.18	46-45 BC
<i>Ad Atticum</i> 12.19	46-45 BC
<i>Ad Atticum</i> 12.20	46-45 BC
<i>Ad Atticum</i> 12.21	46-45 BC
<i>Ad Atticum</i> 12.22	46-45 BC
<i>Ad Atticum</i> 12.23	46-45 BC
<i>Ad Atticum</i> 12.24	46-45 BC
<i>Ad Atticum</i> 12.25	46-45 BC
<i>Ad Atticum</i> 12.26	46-45 BC
<i>Ad Atticum</i> 12.27	46-45 BC
<i>Ad Atticum</i> 12.28	46-45 BC
<i>Ad Atticum</i> 12.29	46-45 BC
<i>Ad Atticum</i> 12.30	46-45 BC
<i>Ad Atticum</i> 12.31	46-45 BC
<i>Ad Atticum</i> 12.32	46-45 BC
<i>Ad Atticum</i> 12.33	46-45 BC

<i>Ad Atticum</i> 12.34	46-45 BC
<i>Ad Atticum</i> 12.35	46-45 BC
<i>Ad Atticum</i> 12.36	46-45 BC
<i>Ad Atticum</i> 12.37	46-45 BC
<i>Ad Atticum</i> 12.38	46-45 BC
<i>Ad Atticum</i> 12.39	46-45 BC
<i>Ad Atticum</i> 12.40	46-45 BC
<i>Ad Atticum</i> 12.41	46-45 BC
<i>Ad Atticum</i> 12.42	46-45 BC
<i>Ad Atticum</i> 12.43	46-45 BC
<i>Ad Atticum</i> 12.44	46-45 BC
<i>Ad Atticum</i> 12.45	46-45 BC
<i>Ad Atticum</i> 12.46	46-45 BC
<i>Ad Atticum</i> 12.47	46-45 BC
<i>Ad Atticum</i> 12.48	46-45 BC
<i>Ad Atticum</i> 12.49	46-45 BC
<i>Ad Atticum</i> 12.50	46-45 BC
<i>Ad Atticum</i> 12.51	46-45 BC
<i>Ad Atticum</i> 12.52	46-45 BC
<i>Ad Atticum</i> 12.53	46-45 BC
<i>Ad Familiares</i> 4.1	46-43 BC
<i>Ad Familiares</i> 4.2	46-43 BC
<i>Ad Familiares</i> 4.3	46-43 BC
<i>Ad Familiares</i> 4.4	46-43 BC
<i>Ad Familiares</i> 4.5	46-43 BC
<i>Ad Familiares</i> 4.6	46-43 BC
<i>Ad Familiares</i> 4.7	46-43 BC
<i>Ad Familiares</i> 4.8	46-43 BC
<i>Ad Familiares</i> 4.9	46-43 BC
<i>Ad Familiares</i> 4.10	46-43 BC
<i>Ad Familiares</i> 4.11	46-43 BC
<i>Ad Familiares</i> 4.12	46-43 BC
<i>Ad Familiares</i> 4.13	46-43 BC
<i>Ad Familiares</i> 4.14	46-43 BC
<i>Ad Familiares</i> 4.15	46-43 BC
<i>Ad Familiares</i> 9.1	46-44 BC
<i>Ad Familiares</i> 9.2	46-44 BC

<i>Ad Familiares</i> 9.3	46-44 BC
<i>Ad Familiares</i> 9.4	46-44 BC
<i>Ad Familiares</i> 9.5	46-44 BC
<i>Ad Familiares</i> 9.6	46-44 BC
<i>Ad Familiares</i> 9.7	46-44 BC
<i>Ad Familiares</i> 9.8	46-44 BC
<i>Ad Familiares</i> 9.9	46-44 BC
<i>Ad Familiares</i> 9.10	46-44 BC
<i>Ad Familiares</i> 9.11	46-44 BC
<i>Ad Familiares</i> 9.12	46-44 BC
<i>Ad Familiares</i> 9.13	46-44 BC
<i>Ad Familiares</i> 9.14	46-44 BC
<i>Ad Familiares</i> 9.15	46-44 BC
<i>Ad Familiares</i> 9.16	46-44 BC
<i>Ad Familiares</i> 9.17	46-44 BC
<i>Ad Familiares</i> 9.18	46-44 BC
<i>Ad Familiares</i> 9.19	46-44 BC
<i>Ad Familiares</i> 9.20	46-44 BC
<i>Ad Familiares</i> 9.21	46-44 BC
<i>Ad Familiares</i> 9.22	46-44 BC
<i>Ad Familiares</i> 9.23	46-44 BC
<i>Ad Familiares</i> 9.24	46-44 BC
<i>Ad Familiares</i> 9.25	46-44 BC
<i>Ad Familiares</i> 9.26	46-44 BC
<i>On the Best Kind of Orators</i>	46 BC
<i>Stoic Paradoxes</i>	46 BC
<i>Orator: To Marcus Brutus</i>	September 46 BC
<i>For Marcus Marcellus</i>	September 46 BC
<i>For Quintus Ligarius</i>	November 46 BC

45 BC

<i>Consolation</i>	March 45 BC
<i>Academica</i>	May 45 BC
<i>On the Ends of Good and Evil</i>	June 45 BC
<i>Ad Atticum</i> 13.1	45 BC
<i>Ad Atticum</i> 13.2	45 BC

<i>Ad Atticum</i> 13.3	45 BC
<i>Ad Atticum</i> 13.4	45 BC
<i>Ad Atticum</i> 13.5	45 BC
<i>Ad Atticum</i> 13.6	45 BC
<i>Ad Atticum</i> 13.7	45 BC
<i>Ad Atticum</i> 13.8	45 BC
<i>Ad Atticum</i> 13.9	45 BC
<i>Ad Atticum</i> 13.10	45 BC
<i>Ad Atticum</i> 13.11	45 BC
<i>Ad Atticum</i> 13.12	45 BC
<i>Ad Atticum</i> 13.13	45 BC
<i>Ad Atticum</i> 13.14	45 BC
<i>Ad Atticum</i> 13.15	45 BC
<i>Ad Atticum</i> 13.16	45 BC
<i>Ad Atticum</i> 13.17	45 BC
<i>Ad Atticum</i> 13.18	45 BC
<i>Ad Atticum</i> 13.19	45 BC
<i>Ad Atticum</i> 13.20	45 BC
<i>Ad Atticum</i> 13.21	45 BC
<i>Ad Atticum</i> 13.22	45 BC
<i>Ad Atticum</i> 13.23	45 BC
<i>Ad Atticum</i> 13.24	45 BC
<i>Ad Atticum</i> 13.25	45 BC
<i>Ad Atticum</i> 13.26	45 BC
<i>Ad Atticum</i> 13.27	45 BC
<i>Ad Atticum</i> 13.28	45 BC
<i>Ad Atticum</i> 13.29	45 BC
<i>Ad Atticum</i> 13.30	45 BC
<i>Ad Atticum</i> 13.31	45 BC
<i>Ad Atticum</i> 13.32	45 BC
<i>Ad Atticum</i> 13.33	45 BC
<i>Ad Atticum</i> 13.34	45 BC
<i>Ad Atticum</i> 13.35	45 BC
<i>Ad Atticum</i> 13.36	45 BC
<i>Ad Atticum</i> 13.37	45 BC
<i>Ad Atticum</i> 13.38	45 BC
<i>Ad Atticum</i> 13.39	45 BC

<i>Ad Atticum</i> 13.40	45 BC
<i>Ad Atticum</i> 13.41	45 BC
<i>Ad Atticum</i> 13.42	45 BC
<i>Ad Atticum</i> 13.43	45 BC
<i>Ad Atticum</i> 13.44	45 BC
<i>Ad Atticum</i> 13.45	45 BC
<i>Ad Atticum</i> 13.46	45 BC
<i>Ad Atticum</i> 13.47	45 BC
<i>Ad Atticum</i> 13.48	45 BC
<i>Ad Atticum</i> 13.49	45 BC
<i>Ad Atticum</i> 13.50	45 BC
<i>Ad Atticum</i> 13.51	45 BC
<i>Ad Atticum</i> 13.52	45 BC
<i>Hortensius</i>	45 BC
<i>Timaëus</i> (Latin translation)	45 BC
<i>On the Nature of the Gods</i>	August 45 BC
<i>Tusculan Disputations</i>	August 45 BC
<i>For King Deiotarus</i>	November 45 BC

44 BC

<i>Cato the Elder, On Old Age</i>	April 44 BC
<i>On Divination</i>	April 44 BC
<i>On Fate</i>	May 44 BC
<i>Ad Atticum</i> 14.1	44 BC
<i>Ad Atticum</i> 14.2	44 BC
<i>Ad Atticum</i> 14.3	44 BC
<i>Ad Atticum</i> 14.4	44 BC
<i>Ad Atticum</i> 14.5	44 BC
<i>Ad Atticum</i> 14.6	44 BC
<i>Ad Atticum</i> 14.7	44 BC
<i>Ad Atticum</i> 14.8	44 BC
<i>Ad Atticum</i> 14.9	44 BC
<i>Ad Atticum</i> 14.10	44 BC
<i>Ad Atticum</i> 14.11	44 BC
<i>Ad Atticum</i> 14.12	44 BC
<i>Ad Atticum</i> 14.13	44 BC

<i>Ad Atticum</i> 14.14	44 BC
<i>Ad Atticum</i> 14.15	44 BC
<i>Ad Atticum</i> 14.16	44 BC
<i>Ad Atticum</i> 14.17	44 BC
<i>Ad Atticum</i> 14.18	44 BC
<i>Ad Atticum</i> 14.19	44 BC
<i>Ad Atticum</i> 14.20	44 BC
<i>Ad Atticum</i> 14.21	44 BC
<i>Ad Atticum</i> 14.22	44 BC
<i>Ad Atticum</i> 15.1	44 BC
<i>Ad Atticum</i> 15.2	44 BC
<i>Ad Atticum</i> 15.3	44 BC
<i>Ad Atticum</i> 15.4	44 BC
<i>Ad Atticum</i> 15.5	44 BC
<i>Ad Atticum</i> 15.6	44 BC
<i>Ad Atticum</i> 15.7	44 BC
<i>Ad Atticum</i> 15.8	44 BC
<i>Ad Atticum</i> 15.9	44 BC
<i>Ad Atticum</i> 15.10	44 BC
<i>Ad Atticum</i> 15.11	44 BC
<i>Ad Atticum</i> 15.12	44 BC
<i>Ad Atticum</i> 15.13	44 BC
<i>Ad Atticum</i> 15.14	44 BC
<i>Ad Atticum</i> 15.15	44 BC
<i>Ad Atticum</i> 15.16	44 BC
<i>Ad Atticum</i> 15.17	44 BC
<i>Ad Atticum</i> 15.18	44 BC
<i>Ad Atticum</i> 15.19	44 BC
<i>Ad Atticum</i> 15.20	44 BC
<i>Ad Atticum</i> 15.21	44 BC
<i>Ad Atticum</i> 15.22	44 BC
<i>Ad Atticum</i> 15.23	44 BC
<i>Ad Atticum</i> 15.24	44 BC
<i>Ad Atticum</i> 15.25	44 BC
<i>Ad Atticum</i> 15.26	44 BC
<i>Ad Atticum</i> 15.27	44 BC
<i>Ad Atticum</i> 15.28	44 BC

<i>Ad Atticum</i> 15.29	44 BC
<i>Ad Atticum</i> 16.1	44 BC
<i>Ad Atticum</i> 16.2	44 BC
<i>Ad Atticum</i> 16.3	44 BC
<i>Ad Atticum</i> 16.4	44 BC
<i>Ad Atticum</i> 16.5	44 BC
<i>Ad Atticum</i> 16.6	44 BC
<i>Ad Atticum</i> 16.7	44 BC
<i>Ad Atticum</i> 16.8	44 BC
<i>Ad Atticum</i> 16.9	44 BC
<i>Ad Atticum</i> 16.10	44 BC
<i>Ad Atticum</i> 16.11	44 BC
<i>Ad Atticum</i> 16.12	44 BC
<i>Ad Atticum</i> 16.13	44 BC
<i>Ad Atticum</i> 16.14	44 BC
<i>Ad Atticum</i> 16.15	44 BC
<i>Ad Atticum</i> 16.16	44 BC
<i>Ad Familiares</i> 10.1	44-43 BC
<i>Ad Familiares</i> 10.2	44-43 BC
<i>Ad Familiares</i> 10.3	44-43 BC
<i>Ad Familiares</i> 10.4	44-43 BC
<i>Ad Familiares</i> 10.5	44-43 BC
<i>Ad Familiares</i> 10.6	44-43 BC
<i>Ad Familiares</i> 10.7	44-43 BC
<i>Ad Familiares</i> 10.8	44-43 BC
<i>Ad Familiares</i> 10.9	44-43 BC
<i>Ad Familiares</i> 10.10	44-43 BC
<i>Ad Familiares</i> 10.11	44-43 BC
<i>Ad Familiares</i> 10.12	44-43 BC
<i>Ad Familiares</i> 10.13	44-43 BC
<i>Ad Familiares</i> 10.14	44-43 BC
<i>Ad Familiares</i> 10.15	44-43 BC
<i>Ad Familiares</i> 10.16	44-43 BC
<i>Ad Familiares</i> 10.17	44-43 BC
<i>Ad Familiares</i> 10.18	44-43 BC
<i>Ad Familiares</i> 10.19	44-43 BC
<i>Ad Familiares</i> 10.20	44-43 BC

<i>Ad Familiares 10.21</i>	44-43 BC
<i>Ad Familiares 10.22</i>	44-43 BC
<i>Ad Familiares 10.23</i>	44-43 BC
<i>Ad Familiares 10.24</i>	44-43 BC
<i>Ad Familiares 10.25</i>	44-43 BC
<i>Ad Familiares 10.26</i>	44-43 BC
<i>Ad Familiares 10.27</i>	44-43 BC
<i>Ad Familiares 10.28</i>	44-43 BC
<i>Ad Familiares 10.29</i>	44-43 BC
<i>Ad Familiares 10.30</i>	44-43 BC
<i>Ad Familiares 10.31</i>	44-43 BC
<i>Ad Familiares 10.32</i>	44-43 BC
<i>Ad Familiares 10.33</i>	44-43 BC
<i>Ad Familiares 10.34</i>	44-43 BC
<i>Ad Familiares 10.35</i>	44-43 BC
<i>Ad Familiares 12.1</i>	44-43 BC
<i>Ad Familiares 12.2</i>	44-43 BC
<i>Ad Familiares 12.3</i>	44-43 BC
<i>Ad Familiares 12.4</i>	44-43 BC
<i>Ad Familiares 12.5</i>	44-43 BC
<i>Ad Familiares 12.6</i>	44-43 BC
<i>Ad Familiares 12.7</i>	44-43 BC
<i>Ad Familiares 12.8</i>	44-43 BC
<i>Ad Familiares 12.9</i>	44-43 BC
<i>Ad Familiares 12.10</i>	44-43 BC
<i>Ad Familiares 12.11</i>	44-43 BC
<i>Ad Familiares 12.12</i>	44-43 BC
<i>Ad Familiares 12.13</i>	44-43 BC
<i>Ad Familiares 12.14</i>	44-43 BC
<i>Ad Familiares 12.15</i>	44-43 BC
<i>Ad Familiares 12.16</i>	44-43 BC
<i>Ad Familiares 12.17</i>	44-43 BC
<i>Ad Familiares 12.18</i>	44-43 BC
<i>Ad Familiares 12.19</i>	44-43 BC
<i>Ad Familiares 12.20</i>	44-43 BC
<i>Ad Familiares 12.21</i>	44-43 BC
<i>Ad Familiares 12.22</i>	44-43 BC

<i>Ad Familiares</i> 12.23	44-43 BC
<i>Ad Familiares</i> 12.24	44-43 BC
<i>Ad Familiares</i> 12.25	44-43 BC
<i>Ad Familiares</i> 12.26	44-43 BC
<i>Ad Familiares</i> 12.27	44-43 BC
<i>Ad Familiares</i> 12.28	44-43 BC
<i>Ad Familiares</i> 12.29	44-43 BC
<i>Ad Familiares</i> 12.30	44-43 BC
<i>Laelius, On Friendship</i>	July 44 BC
<i>Topics: To Gaius Trebatius</i>	July 44 BC
<i>First Philippic</i>	2 September 44 BC
<i>Second Philippic</i>	October 44 BC
<i>On Duties</i>	November 44 BC
<i>Third Philippic</i>	20 December 44 BC
<i>Fourth Philippic</i>	20 December 44 BC

43 BC

<i>Fifth Philippic</i>	1 January 43 BC
<i>Seventh Philippic</i>	January 43 BC
<i>Sixth Philippic</i>	4 January 43 BC
<i>Tenth Philippic</i>	February 43 BC
<i>Eighth Philippic</i>	3 February 43 BC
<i>Ninth Philippic</i>	4 February 43 BC
<i>Eleventh Philippic</i>	March 43 BC
<i>Twelfth Philippic</i>	March 43 BC
<i>Thirteenth Philippic</i>	20 March 43 BC
<i>Philippica XIV</i>	21 April 43 BC
<i>Ad M. Brutum</i> 1.1	43 BC
<i>Ad M. Brutum</i> 1.2	43 BC
<i>Ad M. Brutum</i> 1.3	43 BC
<i>Ad M. Brutum</i> 1.4	43 BC
<i>Ad M. Brutum</i> 1.5	43 BC
<i>Ad M. Brutum</i> 1.6	43 BC
<i>Ad M. Brutum</i> 1.7	43 BC
<i>Ad M. Brutum</i> 1.8	43 BC
<i>Ad M. Brutum</i> 1.9	43 BC

<i>Ad M. Brutum</i> 1.10	43 BC
<i>Ad M. Brutum</i> 1.11	43 BC
<i>Ad M. Brutum</i> 1.12	43 BC
<i>Ad M. Brutum</i> 1.13	43 BC
<i>Ad M. Brutum</i> 1.14	43 BC
<i>Ad M. Brutum</i> 1.15	43 BC
<i>Ad M. Brutum</i> 1.16	43 BC
<i>Ad M. Brutum</i> 1.17	43 BC
<i>Ad M. Brutum</i> 1.18	43 BC
<i>Ad M. Brutum</i> 2.1	43 BC
<i>Ad M. Brutum</i> 2.2	43 BC
<i>Ad M. Brutum</i> 2.3	43 BC
<i>Ad M. Brutum</i> 2.4	43 BC
<i>Ad M. Brutum</i> 2.5	43 BC
<i>Ad M. Brutum</i> 2.6	43 BC
<i>Ad M. Brutum</i> 2.7	43 BC
<i>Ad M. Brutum</i> 2.8	43 BC
<i>Ad Familiares</i> 11.1	43 BC
<i>Ad Familiares</i> 11.2	43 BC
<i>Ad Familiares</i> 11.3	43 BC
<i>Ad Familiares</i> 11.4	43 BC
<i>Ad Familiares</i> 11.5	43 BC
<i>Ad Familiares</i> 11.6	43 BC
<i>Ad Familiares</i> 11.7	43 BC
<i>Ad Familiares</i> 11.8	43 BC
<i>Ad Familiares</i> 11.9	43 BC
<i>Ad Familiares</i> 11.10	43 BC
<i>Ad Familiares</i> 11.11	43 BC
<i>Ad Familiares</i> 11.12	43 BC
<i>Ad Familiares</i> 11.13	43 BC
<i>Ad Familiares</i> 11.14	43 BC
<i>Ad Familiares</i> 11.15	43 BC
<i>Ad Familiares</i> 11.16	43 BC
<i>Ad Familiares</i> 11.17	43 BC
<i>Ad Familiares</i> 11.18	43 BC
<i>Ad Familiares</i> 11.19	43 BC
<i>Ad Familiares</i> 11.20	43 BC

<i>Ad Familiares</i> 11.21	43 BC
<i>Ad Familiares</i> 11.22	43 BC
<i>Ad Familiares</i> 11.23	43 BC
<i>Ad Familiares</i> 11.24	43 BC
<i>Ad Familiares</i> 11.25	43 BC
<i>Ad Familiares</i> 11.26	43 BC
<i>Ad Familiares</i> 11.27	43 BC
<i>Ad Familiares</i> 11.28	43 BC
<i>Ad Familiares</i> 11.29	43 BC

FOR PUBLIUS QUINCTIUS

*Pro Quinctio*81 BC

Cicero's earliest surviving speech, delivered in 81 BC when he was twenty-five or twenty-six and a *novus homo* just beginning his career at the bar. The case is a civil one. Publius Quinctius's deceased brother Gaius had been in business partnership in Gaul with Sextus Naevius — formerly an auctioneer in Rome — and on Gaius's sudden death the partnership had passed to Publius. Naevius, after years of silence about any debt, contrived (Cicero charges) that a bond for a court appearance be technically broken; obtained from the praetor Burrienus an order that Quinctius's goods be advertised under the edict against fraudulently absent debtors; sent agents to throw Quinctius forcibly from the Gallic estate; and now, before the judge Gaius Aquilius, was pressing Quinctius to argue first, in the manner of a defendant in a capital trial, on the standing of his own reputation and fortunes.

The opposing counsel was Quintus Hortensius — the leading orator of Rome before Cicero himself — and a phalanx of senatorial advocates, including the consular Lucius Philippus. Cicero's brief was to maintain three negative propositions: that Naevius had no cause to apply for possession of the goods; that the requirements of the praetor's edict had not been met; and that Naevius had not, in fact, taken legal possession at all. The speech is notable for the exuberance of its rhetorical structure — the tricolon at §95 is among the most elaborate in the corpus — and for the glimpse it gives of a young Cicero negotiating, with self-deprecating courtesy, his stage debut against the man who was already the established master.

The speech survives without its opening (the partial state of the text is acknowledged in §1, where Cicero plunges into the matter *in medias res*), and one passage near §85 is supplied from a later paraphrase. The verdict is unknown; tradition holds that Cicero won.

¹ The two things that count for most in our state — the two — are working against us in this case, both of them: standing at the highest

pitch, and eloquence. One of these, Gaius Aquilius, troubles me; the other, I genuinely fear. That the eloquence of Quintus Hortensius will hinder me as I speak — this gives me some unease. That the standing of Sextus Naevius will harm Publius Quinctius — this terrifies me, and not in moderation.

² Nor would there be such cause for complaint that they enjoy these things in their highest measure, were our own at least middling. As it is, the case stands like this: I, who have neither sufficient experience nor great natural ability, am pitted against the most fluent advocate in Rome; and Publius Quinctius — whose resources are slender, whose means are nothing, whose circle of friends is small — must contend with the most well-connected adversary one could imagine.

³ A further disadvantage attaches to us. Marcus Iunius, who has argued this case before you on several occasions before now — a man both well-practised in other cases and thoroughly versed in this one — is at this moment away, detained on a fresh embassy. The case has fallen to me; and even granting that I might bring everything else in adequate measure, I have certainly had barely enough time to learn so substantial a matter, tangled in so many controversies.

⁴ The thing that customarily comes to my aid in other cases, then, fails me in this one too. For the deficit of natural ability I have habitually made up by sheer diligence; and how great that diligence is cannot be appreciated unless time and scope are granted to display it. The greater these disadvantages mount, Gaius Aquilius, the more carefully you and your council must hear our words — so that truth, weakened by many handicaps, may at last be revived by the equity of men such as yourselves.

⁵ For if you, the judge, shall be seen to have offered no shelter to isolation and want against force and influence, if before this council a case is to be weighed by means rather than by truth, then surely there is nothing left holy or pure in our state, nothing that can offer the lowly any consolation in the gravity and virtue of the judge. Surely either with you and these men sitting beside you the truth will prevail, or, driven from this place by force and influence, it will find no resting-place at all. I do not say this, Gaius Aquilius, because your loyalty and constancy are in any doubt with me, or because Publius Quinctius ought not to repose his highest hope in these picked men of the state whom you have summoned. What is the matter, then?

⁶ First: the magnitude of his danger has struck the man with extreme fear, since by a single judgment everything he has is decided. As he turns this over, the thought of your power comes to him no less often than the thought of your fairness; for everyone whose life is placed in another's hands thinks more often about what the man in whose dominion and power he stands *can* do than about what that man *ought* to do.

⁷ Second: Publius Quinctius has Sextus Naevius for an adversary in name only — in reality he has the most fluent, most forceful, most flourishing men of our generation, who by united effort and with all their resources are defending Sextus Naevius — if defending is the right word for accommodating one man's appetite so that he can the more easily crush by an unjust verdict whomever he chooses.

⁸ For what more inequitable, what more shameful thing, Gaius Aquilius, can be uttered or even mentioned, than that I, who am to defend another's life, his reputation, his fortunes, must speak first? Especially when Quintus Hortensius, who in this trial holds the place of the prosecutor, will speak against me — a man on whom nature has lavished the highest abundance and ease of speech. So it has come about that I, whose proper task is to deflect blows and heal wounds, am compelled to perform that task before the adversary has thrown a single weapon; while they are given the time of attack at the very moment when no power is left us either to dodge their assault or, if they shall do what they are prepared to do — fling some false charge as though some envenomed weapon — to apply any remedy.

⁹ This has come about by the praetor's inequity and injustice. First, because contrary to all custom he chose that judgment on the man's character should precede judgment on the substance; second, because he so set up that very judgment that the defendant should be compelled to argue his case before he had heard a word from his accuser. And this was done at the instance of those whose influence and power are such that, just as if their own substance or honour were at stake, they so devotedly accommodate Sextus Naevius's enthusiasm and appetite, and so freely test out their own resources in cases of this kind, in which — the more they can do because of their virtue and noble birth — the less they ought to display how much they can do.

¹⁰ Burdened and battered, then, by so many and such great difficulties, Publius Quinctius has taken refuge, Gaius Aquilius, in your good

faith, your truthfulness, your mercy. Up to this point he has not been able to find equality of right against the violence of his adversaries, nor equal capacity to act, nor a magistrate fairly disposed; up to this point everything has been hostile and harmful to him through the highest injustice. He prays you, Gaius Aquilius, and you who sit beside him in council, that you allow equity — thrown about and harassed by many wrongs — in this place at last to find a footing and be made firm.

¹¹ That you may do this the more easily, I will take pains to make plain to you from the beginning how the affair was conducted and contracted. Gaius Quinctius was the brother of this Publius Quinctius. In the rest of his affairs he was a careful and attentive paterfamilias, in one matter rather less considered: that he formed a partnership with Sextus Naevius. Naevius is a respectable enough man, but not so trained that he could know the rights of partnership and the duties of a settled paterfamilias. Not for any want of natural ability — Sextus Naevius was never reckoned an unwitting buffoon nor a coarse auctioneer. What is the truth, then? When nature had given him nothing better than a voice, and his father had left him nothing but his freedom, he turned his voice to profit and used his freedom for licence to be impudent.

¹² For which reason, indeed, the only thing you would gain by taking him on as your partner was to put him to school in your money on what the profits of money might be. Yet, drawn in by old habit and intimacy, Quinctius made (as I have said) a partnership in the affairs that were being managed in Gaul. He had a substantial cattle business, and an estate in the country well farmed and very productive. Naevius is taken from the Licinian halls and from the auctioneers' bench, and ferried off to Gaul, all the way across the Alps. The change of place was great; the change of character, none. For a man who from his boyhood had set himself to make money without outlay, once he had laid out something or other and put it to the joint stock, could not be content with a moderate profit.

¹³ Nor is it any wonder, if a man whose voice had been for sale supposed that what he had earned by his voice was destined to bring him a great profit. And so, by Hercules, he was not moderate in funnelling whatever he could from the joint funds into his own private house — in this matter as scrupulous as if those who conduct partnership in good faith are accustomed to be condemned in arbitration on the partner's be-

half. But on these matters I have no need to say what Publius Quinctius is eager to have me mention. The case demands it, but because it merely demands and does not insist, I will pass over it.

¹⁴ When the partnership had now run for several years, and when Naevius had often been suspect to Quinctius and could not easily render an account of those things he had managed by appetite rather than by reason, Quinctius dies in Gaul, with Naevius present, and dies suddenly. By his will he left as heir this Publius Quinctius, so that the man on whom the highest grief came by his death might also receive the highest honour from the same source.

¹⁵ On his brother's death, not very long afterwards, Quinctius sets out for Gaul. There he lives on familiar terms with this Naevius. They are together for nearly a year, frequently consulting between themselves about the partnership and about the whole of that Gallic account and business. In all that time Naevius let drop not a single word that the partnership owed him anything or that Quinctius personally had been in his debt. Since some debt had been left behind, on accounts of which money would need to be raised at Rome, Publius Quinctius here gives notice that he intends to hold an auction at Narbo, in Gaul, of those things that were his own private property.

¹⁶ Then this excellent Sextus Naevius — at much length — dissuades the man from holding the auction. He could not sell so easily at the time he had advertised; the means in money were available to himself at Rome; and these, if Quinctius had any sense, he would consider their joint resource, in view of that brotherly closeness and his own connection by marriage. (Naevius has a cousin of Publius Quinctius's as wife, and children by her.) Because Naevius was saying what an honourable man ought to say, Quinctius believed that one who imitated the speech of honourable men would imitate their actions too. He drops the plan to hold the auction; he sets out for Rome. Naevius, leaving Gaul, comes to Rome at the same time.

¹⁷ Since Gaius Quinctius had owed money to Publius Scapula, Publius Quinctius settled, with you as arbiter, Gaius Aquilius, what should be paid out to Scapula's children. The settlement was managed through you because, owing to the state of the treasury, it was not enough to have looked at the books to see how much was owed: one also had to ask at the temple of Castor how much was actually being paid. You decide, and

on account of your friendship with the Scapulae, you fix exactly what should be paid them, to the last denarius.

¹⁸ All this Quinctius was doing on Naevius's prompting and advice. Nor is there any wonder if he relied on the counsel of one whose support he believed assured. For Naevius had not only promised in Gaul, he was saying every day at Rome that, the moment Quinctius gave him the nod, he would pay the money down. Quinctius for his part saw that Naevius could do it, understood that he ought to do it, and did not suppose he would lie, since there was no reason for him to lie. As if he had the cash at home, so he set down with the Scapulae what he would give them. He notifies Naevius and asks him to see to what he had said.

¹⁹ Then this excellent fellow — I am afraid he will think himself made fun of, that for the second time now I call him excellent — thinking he had brought his man into the tightest of corners, and meaning at the very crisis of the moment to bind him to his own terms, says he will not give a copper coin until first all the affairs and accounts of the partnership had been settled, and he had ascertained that no controversy with Quinctius was going to remain. "We will look at those things later, Quinctius," he says. "For the present I would prefer that you yourself see to what you have undertaken, if you don't mind." Quinctius says he will not act on any other terms. What he had promised, says Naevius, was no more binding on him than if, when conducting an auction, he had promised something at the owner's bidding.

²⁰ Crushed by that desertion, Quinctius gets a few days' grace from the Scapulae and sends to Gaul that the things he had advertised should be sold. He holds the auction in his absence at a worse moment, and pays off the Scapulae on harder terms. Then he himself approaches Naevius and says that, since he suspected there would be some controversy on some point, Naevius should see to it that the whole business was wound up as soon and as painlessly as possible.

²¹ Naevius gives as his friend Marcus Trebellius, our common acquaintance; we put up Sextus Alfenus, our relative — a man brought up in his house and one whom Naevius habitually used a great deal. The matter could in no way be settled, because our man wanted to take a moderate loss, and Naevius was not content with moderate plunder.

²² From that moment forward, then, the affair began to proceed by sureties for appearance. When the dates set for appearance had often

been postponed and a fair amount of time had been used up to no purpose, Naevius came in for the next appearance. I beg you, Gaius Aquilius, and you who sit beside him in council, give your closest attention, that you may recognise an unprecedented kind of fraud and a new method of laying snares.

²³ He says he had held the auction in Gaul; that what had seemed to him to be his, he had sold; that he had taken pains to leave nothing owing to himself from the partnership; that he was no longer requiring any sureties for appearance from Quinctius nor giving any himself; if Quinctius wished to take any action against him, he would not refuse. At this, Quinctius — eager to revisit his Gallic affairs — does not bind the man over for the present; and so they part without sureties for appearance. Then Quinctius stays in Rome for about thirty days; he postpones the other sureties for appearance that he had outstanding, so as to be free to go to Gaul; he sets out. He left Rome two days before the Kalends of February.

²⁴ Quinctius did so, that is, on the 29th of January, in the consulship of Scipio and Norbanus. I beg you to commit that day to memory. Lucius Albius, son of Sextus, of the Quirina tribe — a respectable man and of the first rank for honour — set out with him. When they had come to the place called Ad Vada Volaterrana, they meet a close acquaintance of Naevius's, who was bringing slaves for sale from Gaul to him: Lucius Publicius. He, on coming to Rome, tells Naevius where he had seen Quinctius.

²⁵ On hearing this from Publicius, Naevius sends his slaves around among his friends. He himself rounds up his own associates from the Licinian halls and the entrance to the meat-market, asking them to be at his side at the second hour next day at the Sextian Bank. They turn up in numbers. Naevius testifies that Publius Quinctius had not appeared and that he himself had appeared. The records are signed and sealed in the chief place by the seals of distinguished men, and they break up. Naevius applies to the praetor Burrienus to be allowed, by his edict, to take possession of Quinctius's goods. Burrienus orders the goods to be advertised — the goods of one with whom Naevius had had close intimacy, partnership, family connection through children still living, things that could in no way be torn apart.

²⁶ From this it could easily be understood that there is no obligation,

however sacred and solemn, that greed does not habitually weaken and violate. For if friendship is cultivated by truth, partnership by good faith, kinship by affection, then a man who has tried to strip a friend, a partner, a kinsman of his reputation and his fortunes must necessarily admit that he is empty, faithless, and wicked.

²⁷ Sextus Alfenus, agent for Publius Quinctius — a close associate and relation of Sextus Naevius — tears down the bills of advertisement, takes back a single slave whom Naevius had seized, and gives notice that he is the agent, that Naevius ought to consider the reputation and fortunes of Publius Quinctius and to wait for his return; that if Naevius will not do so but has settled on coercing him by such tactics into accepting his terms, Alfenus on his side will plead nothing, and if Naevius wishes to take any action, will defend him by trial.

²⁸ While these things are being done at Rome, Quinctius in the meantime — contrary to law, custom, and the praetor's edicts — is forcibly driven out of their common pasture and field by their common slaves. Suppose, Gaius Aquilius, that everything Naevius has done at Rome was done with restraint and reason: only if what was done in Gaul on his written orders looks rightly and properly done. Driven and ejected from the property after suffering an outstanding wrong, Quinctius takes refuge with Gaius Flaccus, the commander, who at that time was in the province — a man whom, as his rank requires, I name with honour. How vigorously he thought the matter ought to be redressed you can learn from his decrees.

²⁹ Alfenus meanwhile was fighting daily at Rome with that ageing gladiator Naevius, and was using a public substantial enough, since Naevius was unrelenting in his pursuit of Quinctius's life. Naevius demanded that the agent give security for satisfying judgment. Alfenus says it is not fair for an agent to give security in a matter where the principal would not be required to give it if he were present. The tribunes are appealed to. From them aid was obtained for certain, and so the affair is broken off on these terms: that on the Ides of September Sextus Alfenus would undertake to produce Publius Quinctius.

³⁰ Quinctius comes to Rome and discharges his bond. This man — this most ferocious creature, possessor, expeller, plunderer of goods — for a year and six months claims nothing, lies quiet, leads our man on with negotiations as long as he can. Then at last he applies to the praetor

Gnaeus Dolabella that Quintius be required to give him security for satisfying judgment under the formula: “in respect of which he sues a man whose goods have been in possession for thirty days under the praetor’s edict.” Quintius did not refuse to be ordered to give such security, if his goods had been possessed under the edict. Dolabella decrees — I will say nothing of how fair it was, only this: that it was unprecedented; and even this I would rather have left unsaid, since either point was perceptible to anyone — that Publius Quintius should enter into a sponsio with Sextus Naevius: “if his goods were not in possession for thirty days under the edict of Praetor Burrienus.” Those who were then attending Quintius objected, and pointed out that the issue ought to be tried on its merits, so that either both should give security to each other or neither: there was no necessity to bring the reputation of one party alone into the trial.

³¹ Quintius himself protested loudly that the reason he was unwilling to give security was so as not to seem to have judged that his goods had been possessed under the edict; further, that if he were to enter into the sponsio in such terms, he would — as is in fact what is happening now — have to argue a case for his life and reputation in the prior place. Dolabella — in the manner of noble persons, who, whether they begin to act rightly or wrongly, are so excellent in either course that no one of our station could match them — proceeds to commit the wrong with the utmost firmness. He orders us either to give security or enter the sponsio, and meanwhile orders our advocates, who were objecting, to be sharply removed.

³² Quintius leaves much shaken, as well he might, who had been given a choice as miserable as it was inequitable: either himself to condemn himself in a capital matter (had he given security), or to argue the case for his life in the prior place (had he made the sponsio). Since in the one course there was no escape from rendering the gravest possible judgment — one’s own judgment of oneself — but in the other there was hope of coming before such a man as judge as could bring the more help the less he could bring of personal influence, he preferred to make the sponsio. He made it. He chose you, Gaius Aquilius, for judge, and brought the action on the bond. In this the whole essence of the trial and the case rests.

³³ You see, Gaius Aquilius, that this is a trial not about money, but

about the reputation and fortunes of Publius Quinctius. And whereas our forebears so framed things that the man who pleaded for his head should plead in the latter place, you understand that we are pleading in the prior place, and on the basis of an unheard prosecution charge. Further, you see those who have been our defenders turned to prosecuting us, and natural gifts which used to be turned to bringing safety and aid being turned to ruin. One thing only remained — and they did it yesterday: to take you to the praetor in order to have him fix in advance the time we might be allowed for speaking. They would readily have got that from him, had you not made known what your jurisdiction and your duty and your power are.

³⁴ And up to this point we have had no one but you with whom to maintain our right against them, and they have never been content with maintaining what could win general approval. They suppose that influence stripped of injustice is shallow and weak. Since, however, Hortensius is pressing on you to retire to consider, asking that I not consume time with my speech, complaining that under our previous advocate the case could never be brought to a peroration — I will not allow that suspicion to remain, that we do not wish the case to be judged. I will not claim that I can present the case more conveniently than it has been presented before, nor will I make many words about it. The reason is that the case has been already laid out by the man who spoke then, and brevity is required of me, who can neither think up nor utter a great deal — a brevity that is, in any case, my closest friend.

³⁵ I shall do what I have often noticed you doing, Hortensius. I shall divide the whole presentation of my case into definite parts. You always do this, because you always can; I shall do it in this case, because in this case I think I can. What nature gives you in always being able to do it, the present case grants me in being able to do it today. I shall set myself definite limits and boundaries, beyond which I cannot go even if I most want to, in order that I may have a fixed subject on which to speak, that Hortensius may have the points laid out to which he must reply, and that you, Gaius Aquilius, may be able to know in advance the matters on which you are about to hear evidence.

³⁶ We deny, Sextus Naevius, that you took possession of Publius Quinctius's goods under the praetor's edict. The sponsio has been made on that issue. I shall show, first, that there was no cause for which you

could apply to the praetor to be allowed to take possession of Publius Quinctius's goods; second, that you could not have taken possession under the edict; and last, that you did not take possession. I beg you, Gaius Aquilius, and you who sit in council, to commit carefully to memory what I have promised. You will the more easily grasp the whole matter if you keep this in mind, and you will easily call me back by your judgment if I try to step beyond the bounds I have set for myself. I deny there was any cause for the application; I deny you could have taken possession under the edict; I deny you took possession. When I have shown these three things, I shall make my peroration.

³⁷ There was no cause for the application. How can this be made clear? Because Quinctius owed Sextus Naevius nothing on the partnership account, nor anything privately. Who is the witness to this? The same person who is its bitterest adversary. On this matter I will summon you, you yourself, Naevius, as my witness. For a year and more after Gaius Quinctius's death, Quinctius was in Gaul together with you. Show that you ever asked him for that vast unheard-of sum of money, show that you ever made mention of it, ever said it was owed — and I will grant that it was owed.

³⁸ Gaius Quinctius dies, who, as you say, owed you a great sum on definite accounts. Publius Quinctius, his heir, comes into Gaul, to you in person, to your common land, in fact to the very place where not only the property but every account and every paper was. Who would be so loose in his domestic affairs, who so neglectful, who so unlike you, Sextus, that, when an estate had passed from the man with whom he had contracted to that man's heir, he would not, the first time he saw the heir, inform him, address him, render his account, and, if anything came into dispute, settle it either privately or by strict law? Is that how it is? What good men do, if they wish their kinsmen and connections to be dear to others and to be regarded as honourable — this Sextus Naevius did not do, who burns and is borne along by greed to such a pitch that he is willing to give up some part of his own advantage so as not to leave any part of any honour to this kinsman of his?

³⁹ And he would not, of course, demand money if any were owed — he, who, because what was never owed has never been paid, is now trying to snatch away not just money but the lifeblood and very life of a kinsman? You did not, of course, wish to bother the man whom now

you do not let breathe freely; the man you now wickedly wish to kill, you were too modest to dun. So I am to believe: a kinsman, attentive to you, an honourable man, a respectful man, your senior — you were unwilling, or didn't dare, to dun him. Often, as happens, having steadied yourself, having resolved to mention the money, having come up prepared and rehearsed, this timid soul with maidenly modesty would suddenly hold himself back; the words would suddenly fail; you would want to address him but didn't dare, lest he hear unwillingly. That, no doubt, is what happened.

⁴⁰ Are we to believe that Sextus Naevius, who is now attacking the man's life, spared his ears in those days? If he had owed it, Sextus, you would have demanded it — demanded it at once. If not at once, then a little later. If not a little, then somewhat later. Within those six months, surely. By a year's end, beyond doubt. But after a year and six months, when you had daily access to the man to remind him, you say not a word. After almost two full years are gone, you finally accost him. What ruined and prodigal spendthrift, with a fortune not yet eaten away but actually overflowing, was ever so dilatory as Sextus Naevius? When I name the man, I think I have said enough.

⁴¹ Gaius Quinctius owed you; you never demanded it. He died; the property passed to the heir. Though you saw him daily, only after two years do you finally address him. Will it be doubted whether it is more probable that Sextus Naevius would have demanded what was owed at once, or that he would not have addressed his man even after two years? Was there no time to address him? But he lived with you for over a year. Could the matter not be conducted in Gaul? But justice was administered in the province, and trials were held in Rome. The remaining options are that either the highest negligence stood in your way, or unique generosity. If you say negligence, we shall be amazed; if you say goodness, we shall laugh. I cannot find what else you might say. There is sufficient proof that nothing was owed to Naevius, in the fact that for so long he demanded nothing.

⁴² What if I show that this very thing he is now doing is a witness that nothing is owed? What is Sextus Naevius doing now? What is the controversy about? What is this trial in which we have now been engaged for two years? What business is being conducted in which he is wearing out so many men of such standing? He is asking for money. Now at last?

Very well, let him ask; let us hear him.

⁴³ “He wants the accounts and disputes of the partnership decided.” Late — but at some point, after all. Granted. “That,” he says, “is not what I am pursuing, Gaius Aquilius, and not what I am working at now. Publius Quinctius has been using my money for so many years.” Let him use it freely; I am not asking. Why then are you fighting? Is it for what you have often said in many places — so that he should be no citizen, no longer hold the place he has hitherto held with the highest honour, no longer be counted among the living? So that the verdict on his life and all his honours may be passed; so that he may plead his case before a judge in the prior place; so that, only when he has finished, he may at last hear his accuser’s voice? What? What is the point of this? That you may sooner have what is yours? But if you wanted that, the matter could long ago have been concluded. So as to fight a more honourable contest?

⁴⁴ But you cannot cut the throat of Publius Quinctius, your kinsman, without the highest crime. So that the trial may be easier for you? But Gaius Aquilius does not gladly give judgment in a capital matter, and Quintus Hortensius has not learned to speak against a man’s life. What, then, is being asked of us, Gaius Aquilius? He demands money; we deny it is owed. Let there be a trial at once: we do not refuse. Anything else? If he is anxious about whether the proceeds of judgment will be ready when judgment is given, let him take security for satisfying judgment; in the same words in which he takes security from me, let him give security on what I demand. The thing can already be over with, Gaius Aquilius; you can already walk free of a burden almost as heavy as Quinctius’s.

⁴⁵ Where do we stand, Hortensius? What do we say to this offer? Can we at last lay down our arms and dispute about money without the parties’ fortunes being on the line? Can we so pursue our own claim that we leave a kinsman’s life intact? Can we take on the part of plaintiff and lay down the part of accuser? “No,” he says, “I will take security from you; but I will not give security to you.” Who, pray, allots us terms so even as that? Who has decreed this — that what is fair against Quinctius is unfair against Naevius? “Quinctius’s goods,” he says, “were possessed under the praetor’s edict.” So you ask, in order that I might admit it, that what we are arguing in court has never been done, we should — as if it had been done — confirm by our own action.

⁴⁶ Can no way be found, Gaius Aquilius, that each may come as soon as possible to what is his own without disgrace, infamy, or destruction to anyone? Surely if anything were owed he would demand it, would prefer some other procedure to this single one out of which all these proceedings are sprung. The man who in all those years did not even address Quinctius, when he could have done so daily; who, when he first did begin to act, used up all his time in postponing the appointed dates; who afterwards even let the bond go; who by ambush forcibly threw him off their common land; who, when he could have brought the matter to trial without any objection, preferred a *sponsio* about character; who, when he is recalled to the very trial out of which all this has grown, repudiates the fairest of terms — such a man as good as openly admits that he is seeking not money but life and blood. Such a man openly says: “If anything were owed me, I would demand it, and would already long ago have got it;

⁴⁷ I would not need so vast an undertaking, so invidious a trial, so abundant a body of advocates, if it were a matter of demanding. It must be wrung out unwillingly; what is not owed must be torn out and squeezed; Publius Quinctius must be tipped off all his fortunes; the powerful, the eloquent, the noble must all be summoned. Force must be brought against truth, threats hurled, dangers held up, terrors interposed, so that, conquered and frightened by these things, he gives himself up at last.” All which, by *Hercules*, when I see those who fight against us and reflect on this assembly, seems to be at hand and impending and impossible to escape; but when I have turned my eyes and mind back to you, Gaius Aquilius, the more vehemently and zealously these things are pursued, the lighter and feebler I judge them. Nothing, then, was owed — as you yourself proclaim.

⁴⁸ What if it had been owed? Would there have been ground for applying to the praetor for permission to take possession of the goods? I do not think so — in justice, nor to anyone’s profit. What does *Naevius* show, then? He says his bond was broken. Before I prove that this was not done, I would like, Gaius Aquilius, to consider both the affair itself and *Sextus Naevius*’s own action in the light of his duty and of universal practice. “He had not come to the bond” — as you say — “the man with whom you had connection by marriage, partnership, every old reason and tie of intimacy”. Was it right at once to rush to the praetor? Was it

right at once to apply for leave to take possession of the goods under the edict? Were you so eager to descend to those last and most hostile remedies that you reserved nothing more grave or cruel for what you might do later?

⁴⁹ What more shameful thing can happen to a man, what more bitter and miserable to a man of standing? What disgrace can be greater, what calamity comparable? If fortune has taken money from someone, or someone's injustice has snatched it away, still, while reputation is intact, honour easily consoles want. Even one who is afflicted with disgrace or convicted in a shameful trial enjoys at least his own goods — though he has, what is most miserable, no expectation of another man's resources — in his miseries he is yet relieved by this aid and comfort. But the man whose goods have been put up for sale, the man whose ample fortunes — and not only those: even his necessary food and clothing — have been put up under the auctioneer with disgrace, this man is not only thrust out of the number of the living, but, if it can be done, is sent away below the dead too. For an honourable death often even adorns a shameful life; a life so shameful does not leave even an honourable death any room.

⁵⁰ And so, by Hercules: when a man's goods are taken into possession under the edict, his whole fame and reputation is taken with the goods. The man whose advertisements are posted in the most thronged places is not allowed to perish even in silence and obscurity. The man for whom managers are appointed and proprietors set up to declare on what law and on what conditions he is to be sold; the man over whom the auctioneer's voice declaims and fixes a price — to him, while still alive and seeing, the bitterest funeral is announced; if it is to be called a funeral when not friends gather to honour the obsequies, but buyers of goods, like executioners, gather to tear and rend the remains of his life.

⁵¹ Therefore our forebears wished this rarely to happen, and the praetors arranged that the thing should be done with great consideration. Honest men, even when they are openly being defrauded, even when there is no power of bringing them to trial, descend to that step timidly and step by step, compelled by force and necessity, unwilling, after many bonds have been broken, often after they themselves have been tricked and let down. For they consider how serious a thing it is, and how great, to advertise another man's goods. To cut a citizen's throat, even by the law, no good man wants. He prefers it remembered that, when he

could have ruined a man, he spared him, rather than that, when he could have spared him, he ruined him. These things good men do for the most distant strangers, in the end even for their bitterest enemies, both for the sake of human reputation and for the sake of common humanity, so that, having done no harm to another knowingly, no harm by right may justly fall on themselves.

⁵² “He did not come to the bond.” Who? A kinsman. If the matter taken by itself were grave, still its severity would be lightened by the name of kinship. “He did not come to the bond.” Who? A partner. You ought to extend something even more handsome to the man whom either choice associated with you, or fortune linked. “He did not come to the bond.” Who? The man who had always been at your service. So, against him who only this once committed the error of not being at your service, you have hurled all the weapons that are kept in store for those who have done many wrongs and committed many frauds?

⁵³ If a wretched twopence of yours were at stake, Sextus Naevius, if in some trifling matter you feared some entrapment, would you not at once have run to Gaius Aquilius or to one of those gentlemen who give legal opinions? When the rights of friendship, partnership, kinship were at stake, when account had to be taken of duty and of reputation, you not only did not refer to Gaius Aquilius or Lucius Lucilius — you did not even consult yourself; you did not even say this much to yourself: “It is two hours past the time. Quinctius has not come to his bond. What am I to do?” By Hercules, if you had said these two words to yourself — “what am I to do?” — your appetite and avarice would have caught its breath, you would have given some little space for reason and consideration; you would have collected yourself; you would not have come to such a nasty pass as to have to confess before such men as these that, in the same hour in which the bond fell to you broken, you took the resolve of overturning a kinsman’s fortunes from the foundations.

⁵⁴ I now consult these gentlemen on your behalf, after the time and on someone else’s matter, since you in your own matter forgot to consult, when there was time. I ask you, Gaius Aquilius, Lucius Lucilius, Publius Quinctilius, Marcus Marcellus: “A certain partner and kinsman of mine, with whom I have an old close tie and a recent dispute over money, has not come to his bond. Do I apply to the praetor to be allowed to take possession of his goods — or, when his house, wife, and children are at

Rome, do I rather give notice at the house?" What is the answer that any of you could possibly give? Surely, if I have rightly understood your goodness and prudence, I am not far wrong, were you to be consulted, in what your reply would be: first, to wait; then, if he should seem to be in hiding and to be putting things off, to consult friends, to ask who is acting as agent, to give notice at the house. It is hard to say how many things you would all answer ought to be done before having recourse, of necessity, to that last extreme.

⁵⁵ What does Naevius say to all this? He laughs at our madness, no doubt, in supposing that he should be measured by the rule of the highest duty, in expecting in his life the institutions of honourable men. "What have I to do with that lofty sanctity and scrupulousness? Let honourable men look to those duties; for me, the question is what I have, not by what means I have got it, nor how I was born, nor how I was brought up." I remember the old saying: a buffoon can become rich much more easily than the head of a household.

⁵⁶ What he does not dare to say in words, in deed he openly proclaims. For if he wishes to live by the rule of good men, there are many things he must learn and unlearn, both of which are hard at his age. "I did not hesitate," he says, "when the bond had been broken, to advertise the goods." Wickedly! But since you claim this for yourself and demand it be granted, let it be granted. What if he never broke it? If this whole charge has been concocted from beginning to end by your sheer fraud and malice? If you had no bond with Publius Quinctius at all? What name shall we call you by? Wicked? But even if the bond had been broken, in this petition and advertisement of the goods you would still have been found utterly wicked. Malicious? You do not deny it. Fraudulent? You actually claim it for yourself and think it praiseworthy. Bold, greedy, perfidious? Common and stale words; the matter is new and unheard-of.

⁵⁷ What is to be said, then? I am afraid, by Hercules, of using either weightier words than the natural force of the case bears, or lighter words than the case demands. You say the bond was broken. Quinctius asked you, the moment he returned to Rome, on what day you said this bond had been due. You replied at once: "On the Nones of February." As Quinctius was leaving you, he came to remember the day on which he had set out from Rome for Gaul. He turns to his diary; he finds the day of his departure: the day before the Kalends of February. If he was at

Rome on the Nones of February, we say nothing as to whether or not he gave you a bond.

⁵⁸ What now? How can this be discovered? Lucius Albius set out with him — a man of the first rank for honour. He will give his testimony. Friends accompanied both Albius and Quinctius. They too will give their testimony. The diary of Publius Quinctius, the witnesses — so many, with the strongest possible reasons why they could know, none why they should lie — will be set against your single corroborator.

⁵⁹ And in a case like this, will Publius Quinctius struggle? Will the wretched man go on longer in such fear and danger? Will his adversary's standing terrify him more vigorously than the judge's good faith consoles him? For he has always lived a rough and uncultivated life. He has been by nature austere and reserved. He has not been one for the sundial, nor for the Campus, nor for dinner-parties; his aim has been to keep his friends by attention, his estate by parsimony. He has loved the old idea of duty, the splendour of which has been worn dim by these manners of ours. If, in an equal case, he were to seem to leave the field the worse off, even then there would be no slight cause for complaint. As it is, in the better case he does not even ask to be on equal terms; he allows himself to be on inferior terms — only just so far as not to be surrendered, with all his goods, his reputation, his fortunes, to the appetite and cruelty of Sextus Naevius.

⁶⁰ I have shown what I promised first, Gaius Aquilius: that there was no cause whatsoever for Naevius to make his application; because nothing was owed in money, and that, even granting it had been owed, no act had been done that would warrant resort to that procedure. Now turn your attention to the point that Publius Quinctius's goods could in no way be possessed under the praetor's edict. Read the edict. "The man who shall have hidden himself for the sake of fraud." Quinctius is not such a man — unless those count as hiding who go about their own business and leave an agent in their place. "The man who shall leave no heir." Not he, either. "The man who shall have changed his country for the sake of exile." At what time, Naevius, do you think Quinctius ought to have been defended in his absence, and how? At the time when you were applying to take possession of the goods? Nobody was present, for nobody could have divined that you were going to apply, nor could anyone have been concerned to oppose what the praetor was ordering

— not, indeed, ordering to be done, but ordering to be done under his edict.

⁶¹ What was the first opportunity, then, given to the agent for defending the absent man? When you were posting the advertisements. Well: he was there, he did not allow it; Sextus Alfenus tore down the bills. The first step of duty was kept, and kept by the agent with the highest diligence. Let us see what came next. You catch a slave of Publius Quinctius's in public; you try to take him off. Alfenus does not allow it; he wrests the man from you by force; he sees to it that the slave is brought back to Quinctius's house. Here too the diligent agent's duty stands fully maintained. You say Quinctius is in your debt. The agent denies it. You wish him to give bond; he gives it. You summon him to court; he follows. You demand a trial; he does not refuse. What it is, in any other terms, to be defended in absence, I do not understand. "But what sort of person was the agent?"

⁶² Some shabby fellow picked out, no doubt, a litigious wretch, capable of bearing a wealthy buffoon's daily abuse. Nothing of the kind. A wealthy Roman knight, well in command of his own affairs — in fact the very man whom, every time Naevius set out for Gaul, he left as his own agent at Rome. And do you dare, Sextus Naevius, to deny that Quinctius was defended in his absence, when the very man who used to defend you was defending him? When the man into whose hands you used, on setting out, to commend and entrust your property and your name accepted the trial on Quinctius's behalf, do you try to say that no one was found to defend Quinctius in court?

⁶³ "I demanded," he says, "that he give security." You demanded it wrongly. "It was so ordered." Alfenus refused. "So, but it was the praetor who decreed." — The tribunes were therefore appealed to. — "At this point I have you," he says, "this is not to suffer trial nor to defend by trial, when you seek aid from the tribunes." This, when I consider how prudent Hortensius is, I do not think he will say. But when I hear that he has said it before, and consider the case itself, I cannot find what else he can say. For he admits that Alfenus tore down the bills, gave bond, did not refuse to accept the trial in the very words Naevius proposed — only by the established custom and procedure, through that magistrate who is appointed for the very purpose of giving aid.

⁶⁴ Either these things must not have been done, or else Gaius Aquil-

ius, a man of his quality, must, on his oath, lay down this rule of right in our state: that one whose agent has not accepted every trial put up to him in any words a plaintiff likes; one whose agent has dared to appeal from the praetor to the tribunes — that man is not defended; his goods can rightly be possessed; and it is fitting that, in his absence, miserable, ignorant of his fortunes, every ornament of his life should be torn from him with the highest disgrace and ignominy.

⁶⁵ Since this can be approved by no one, this surely must be approved by everyone: that *Quinctius*, in his absence, was defended in court. And that being so, the goods were not possessed under the edict. “But the tribunes did not even hear the case.” I admit that, if so, the agent ought to have obeyed the praetor’s decree. What of it, then? If Marcus Brutus said openly that he would interpose his veto, unless something were settled between *Alfenus* himself and *Naevius* — does it not appear that the appeal to the tribunes succeeded, not for delay, but for assistance?

⁶⁶ What happens next? *Alfenus* — so that all might understand that *Quinctius* was being defended in court, and lest any base suspicion could attach either to his own duty or to *Quinctius*’s reputation — summons several honourable men, attests in *Naevius*’s hearing that on the basis of their common kinship he asks first that *Naevius* do nothing more savage in his absence to *Publius Quinctius* without cause; but if, on the other hand, he is determined to press the contest with all hostility, that *Alfenus* is ready, by every honest and rightful procedure, to defend the proposition that what he claims is not owed; he accepts the trial on the terms *Naevius* proposes.

⁶⁷ The tablets of that proposal and condition were sealed by several honourable men. The matter cannot fall into doubt. So, with everything still entire, with the goods neither advertised nor in possession, *Alfenus* undertakes that *Quinctius* will appear before *Naevius*. *Quinctius* comes to that bond. The case lies in dispute, with *Naevius* wrangling, for two whole years, until a way could be found by which the matter might depart from the usual practice and the whole cause be locked into this unique trial.

⁶⁸ What duty of an agent, *Gaius Aquilius*, can be mentioned that *Alfenus* appears to have neglected? On what grounds is it claimed that *Publius Quinctius* was not defended in absence? Or perhaps *Horten-*

sius will say — as I think he will, since he has lately suggested it and Naevius keeps shouting it — that Naevius did not have an equal contest with Alfenus at that time, when those persons were dominant. Even if I should be willing to admit it, they will surely concede this much: it was not that Publius Quinctius had no agent, but that his agent had influence. For my purposes, it is enough for victory that he had *an* agent through whom the trial could be brought. What sort of man he was, provided he was defending the absent man through law and through a magistrate, has nothing to do with the matter, in my judgment.

⁶⁹ “He belonged to that party,” he says. Why not? — a man brought up in your house; a man you had so trained from boyhood that he would not back even a noble gladiator. If Alfenus wanted what you yourself always wanted to the highest degree, were you on that score not on equal terms with him? “He was a friend of Brutus’s,” he says; “and so Brutus was the one interposing.” But you, on the other side, had Burrienus deciding wrong, and indeed all those who at that time had the greatest power through force and crime, and who dared what they could. Or did you wish to defeat all those whom these now labour with so much effort to make you defeat? Have the courage to say so — not in public, but to the very men you have summoned.

⁷⁰ Yet I am unwilling to revive that subject by recalling it; the memory of which I think ought to be utterly torn up and erased. I will say only this: if Alfenus was strong because of party loyalty, Naevius was the strongest. If Alfenus, relying on influence, was demanding something inequitable, Naevius was getting much more inequitable things. There was no difference, I think, between your party allegiance: in talent, seniority, technique, you easily defeated him. To leave the rest aside, this is enough: Alfenus perished along with and on account of those whom he loved; you, on the other hand, when those who had been your friends could no longer prevail, contrived that those who did prevail should be your friends.

⁷¹ But if you do not think you had equal right at that time with Alfenus — since, however, he could call out someone against you, since some magistrate could be found before whom Alfenus’s case could stand — what must we say at the present time of Quinctius? For whom no fair magistrate has yet been found, no usual trial granted; no terms, no *sponsio*, no demand has ever been made — and not just no fair demand, but

a demand of a kind that, until this time, no one had even heard of. “I want to dispute about money” — it is not allowed. “But that is the controversy.” — “It does not concern me; you must plead a capital cause.” — “Make your accusation, then, where that is necessary.” — “No,” he says, “unless you first speak in the prior place, in this new way.” — “Then I must perforce speak.” — “Hours will be set in advance at our pleasure; the judge himself will be coerced. —”

⁷² “What then?” — “You will find some advocate or other, a man of old-school duty, who would not give a thought to our brilliance and influence. Lucius Philippus will fight for me — the most flourishing man in our state for eloquence, weight, and honours; Hortensius will speak — a man of outstanding talent, nobility, and reputation. Beside, the noblest and most powerful men will be present: their numbers and their massed presence will make even him quail who is a stranger to the danger, let alone Publius Quinctius, whose head is at stake.”

⁷³ This is an unequal contest, not the one in which you used to ride against Alfenus. To this man you have not even left a place to stand against you. So either you must show that Alfenus denied he was the agent, did not tear down the bills, was unwilling to accept the trial; or, since these things were so done, you must concede that you did not take possession of Publius Quinctius’s goods under the edict. For if you had taken possession under the edict, I ask: why were the goods not sold? Why did the other guarantors and creditors not turn up? Was no one to whom Quinctius owed anything? There were, and there were a great many, because his brother Gaius had left a fair amount of debt. What of it, then? They were all complete strangers to our man, and they were owed money; but no one was found so signally wicked as to dare violate the reputation of Publius Quinctius in his absence.

⁷⁴ One man only there was — a kinsman by marriage, a partner, a connection, Sextus Naevius — who, though he himself was a debtor besides, contended as eagerly as if a special prize had been offered for the crime, that the kinsman whom he had himself afflicted and overthrown should be deprived not only of his honourably acquired goods but even of the common light of day. Where were the other creditors then? Where, indeed, are they now? Is anyone saying that he hid himself for the purpose of fraud? Anyone denying that Quinctius in his absence

was defended? No one is to be found.

⁷⁵ On the contrary, all those who have, or have had, dealings with him are present, supporting him, working that the loyalty of our man — known on so many occasions — be not undermined by the perfidy of Sextus Naevius. For a sponsio of this kind, witnesses ought to be supplied from the kind of men who would say: “He broke a bond with me; he defrauded me; he asked me for a postponement on a debt he had denied; I could not bring him to a trial; he hid himself; he left no agent.” None of these things is being said. Witnesses are being procured to say so. Well, we will see, when they have spoken. Yet let them ponder this one thing: that they are weighty enough to be able, if they choose to keep the truth, to keep their weight; if they neglect it, they are slight enough that all may understand their authority is no help in maintaining a lie, only in proving the truth.

⁷⁶ I ask these two things: first, on what reasoning Naevius did not finish the business he had undertaken — that is, why he did not sell the goods of which he was in possession under the edict; and second, why, of so many creditors, no one else came forward on this account. From which it must necessarily be admitted either that no one else was so reckless, or that you yourself, after most shamefully undertaking the thing, could not bring yourself to persevere and complete it. What if you, Sextus Naevius, have yourself decided that Publius Quinctius’s goods were not possessed under the edict? Your own testimony, which would be worthless in another’s case, ought to weigh most heavily in your own, since it tells against you. You bought the goods of Sextus Alfenus when Lucius Sulla, the dictator, was selling them; you registered Quinctius as your partner in the purchase. I say no more. Were you forming a voluntary partnership with the man who, you say, had defrauded you in your inherited partnership? Were you commending — by your own judgment — the man whom you supposed stripped of all reputation and fortune?

⁷⁷ I doubted, by Hercules, Gaius Aquilius, whether I could stand fast in this case with steady and confirmed mind. So I thought to myself: when Hortensius is going to speak against me, when Philippus is going to listen to me attentively, I shall, in many points, slip from fear. I told this Quintus Roscius, whose sister is married to Publius Quinctius, when he was asking and most earnestly pressing me to defend his kinsman, that it

was very hard for me, against such orators as these, not merely to make my peroration in such a case but even to attempt to utter a word at all. Since he was urging eagerly, I told him — as friend to friend — that anyone with a brazen face who tries to do gestures with him in the audience seems to me to be impudent, and that anyone who contends with him — even if before they had seemed to have something correct or graceful — loses it. Lest something of the same kind happen to me, when about to speak against such an artist, I am afraid.

⁷⁸ Then Roscius told me many other things to encourage me; so that, by Hercules, even if he had said nothing, by his own silent duty and zeal toward his kinsman he would have moved anyone — for as he is an artist of a kind that he alone seems worthy to be looked at on stage, so he is a man of a kind that he alone seems worthy not to come on it. Yet at last: “What,” he said, “if you have a case in which you must make this plain, that no one can in two days, or at the outside three, walk seven hundred miles — are you still afraid you cannot make this contention against Hortensius?”

⁷⁹ “Not at all,” I said; “but what has that to do with the matter?” “Beyond doubt,” he said, “the case rests on it.” How? He is teaching me one of those matters of fact and acts of Sextus Naevius which, if it were brought forward together, would by itself be enough. I beg you, Gaius Aquilius, and you who are sitting in council, to attend carefully. You will surely understand that on the one side, from the start, appetite and audacity have been fighting; on the other, truth and modesty have been holding out as far as they could. You apply for leave to take possession of the goods under the edict. On what day? You yourself, Naevius, I want to hear; I want a deed unheard-of to be convicted by the very voice of the man who committed it. Tell us the day, Naevius. “On the fifth day before the Kalends of the intercalary month.” Well said. How far from here is it to your Gallic estate? Naevius, I am asking you. “Seven hundred miles.” Excellent. Quinctius is thrown off the estate — on what day? Can we hear this too from you? Why are you silent? Tell us the day, I say. He is ashamed to say. I see. But it is too late and useless to be ashamed. He is thrown off the estate, Gaius Aquilius, the day before the Kalends of the intercalary month. Two days later, or, if someone ran straight from the law-court at the very moment, in not three full days, seven hundred miles cannot be covered.

⁸⁰ O incredible thing! O reckless appetite! O winged messenger! Sextus Naevius's footmen and satellites cross from Rome over the Alps into the Sebagnine country in two days. O lucky man, to have such messengers — no, rather, such Pegasi! Here, even if all the Crassi and Antonii of the world should rise up, even if you, Lucius Philippus, who flourished among them, were willing to plead this case with Hortensius, still I must come off the better. For things are not, as you suppose, all in eloquence. There is a kind of truth so visibly clear that nothing can shake it.

⁸¹ Did you, before you applied to take possession of the goods, send to see to it that the owner be forcibly thrown out of his own estate by his own household? Choose either: one is incredible, the other a crime, and until now both unheard-of. Do you maintain that seven hundred miles were covered in two days? Speak. You say no? Then you sent before. So much the worse. If you said the first, you would seem to be lying impudently; in admitting the second, you grant that you have committed a thing that not even a lie can cover up. Will so eager, so audacious, so reckless a piece of policy be approved by Aquilius and by men of his standing?

⁸² What does this madness, this haste, this immaturity signify, but force, but crime, but brigandage — in short, anything sooner than law, than duty, than modesty? You sent without the praetor's order. With what design? You knew he was going to order it. What of it? Once he had ordered, could you not then send? You were going to apply. When? After thirty days. Of course, that is, if nothing hindered you, if your wish remained the same, if you were in good health, if you were even alive at all. Of course, the praetor would have given the order — yes, if he willed, if he were in health, if he were on the bench, if no one objected, if the man would, by his own decree, give security and accept trial.

⁸³ For, by the immortal gods! if Alfenus, Publius Quinctius's agent, had at that moment been willing to give you security and accept the trial, willing in fact to do everything you were applying for, what would you have done? Would you have called back the man you had sent into Gaul? But by then the man had already been thrown off his estate, hurled out headlong from his own household gods, and — what is most outrageous — violently assaulted by the hands of his own slaves, on your message and at your bidding. You were going to put these things right afterwards, of

course. Do you dare to speak of any man's life — you, who must concede that you were so blinded by appetite and avarice that, ignorant of what would later happen, with many things capable of intervening, you set the hope of an immediate wrong on the uncertain outcome of the time to come? And I am speaking as if at the very moment when the praetor had ordered you to take possession under the edict, if you had sent men into possession, you ought to have had, or could have had, the right of throwing Publius Quinctius out of possession.

⁸⁴ Everything in this case, Gaius Aquilius, is so plain that anyone can see in it wickedness and influence pitted against want and truth. How did the praetor order you to take possession? Under his edict, of course. In what words was the sponsio framed? "If Publius Quinctius's goods were not in possession under the praetor's edict." Let us go back to the edict. How does it order possession to be taken? Is there any reason, Gaius Aquilius, why, if Naevius took possession in a way far different from what the praetor's edict prescribed, he did not take possession under the edict, and I have won the sponsio? None, I think. Let us examine the edict. "Those who under my edict shall come into possession." He is speaking of you, Naevius, in your own way of looking at it; for you say you came under the edict. He is defining what you are to do, instructing you, giving you precepts. "It seems fitting that they be in possession in this manner." How? "What they will rightly be able to take care of in the place itself, let them take care of in the place itself; what they cannot, that it shall be lawful for them to carry away and lead off." What then? "It is not our pleasure that the unwilling owner be thrust out." Even the very man who is hiding himself for fraud, even the very man whom no one has defended in trial, even the very man who is dealing badly with all his creditors — it forbids him to be thrust out unwilling from the property.

⁸⁵ As you set out to take possession, the praetor himself, Sextus Naevius, says to you in plain terms: "See to it that you possess in such a way that Quinctius possess together with you; possess in such a way that no force is brought against Quinctius." What of it? How do you observe this? I forgo the point that the man was not hiding himself, that he had a house at Rome, a wife, children, an agent; the man who had not failed to come to your bond. All this I forgo. I say only this: that the owner was driven out of his estate; that the owner had hands laid on him by

his own household before his own household gods. I say this: if anyone takes possession by some means or other of one estate, but allows the owner to keep the rest of his property, he seems — in my judgment — to be in possession of the estate, not of another man's goods. What is it to take possession? Surely it is to be in possession of the things that, at the time, can be possessed. When there was a house at Rome, slaves, and in Gaul itself private estates of Publius Quinctius which you never dared to take into possession; if you were taking possession of Publius Quinctius's goods, you ought to have been in possession of them all under the same right. (*From a paraphrase by Iulius Severianus, ch. 16: that Naevius did not even address Quinctius, when he was both at hand and able to bring suit daily; secondly, that he preferred all those most difficult trials, brought with the greatest unpopularity to himself and the greatest danger to Publius Quinctius, to the one suit about money that could be settled in a single day — from which, by his own admission, all this has sprung.*) On which point I made the offer: that if he wished to claim money, Publius Quinctius would give security for satisfying judgment, provided that he himself, if he wanted to claim anything, used the same condition.

⁸⁶ I have shown how many things ought to have happened before the goods of a kinsman could be applied for in possession — especially when his house, wife, and children were at Rome and an agent who was kinsman to both. I have shown that, although Naevius says the bond was broken, there was no bond at all: that on the day on which he says Quinctius gave it to him, Quinctius was not even at Rome. I have promised to make this plain by witnesses who would have every reason to know and no reason to lie. I have shown, further, that the goods could not have been possessed under the edict, since Quinctius had neither hidden himself for the sake of fraud nor was said to have changed his country for the sake of exile.

⁸⁷ It remains: that no one defended him at trial. To which I have replied that on the contrary he was abundantly defended — not by some stranger, nor by some pettifogger or rogue, but by a Roman knight, his own kinsman and connection, the very man Sextus Naevius himself had been accustomed before now to leave as his agent. Nor was he, by appealing to the tribunes, any the less prepared to suffer a trial; nor was Naevius's right wrenched from him by the agent's influence. On the con-

trary, Naevius was at that time only just superior in his own influence, and now scarcely allows us breathing-room.

⁸⁸ I have asked what cause there was that the goods were not sold, when they were in possession under the edict; and further, why, of so many creditors, none did the same thing then nor speaks against him now, but all are fighting for Publius Quinctius — particularly when in such a trial the testimony of creditors is reckoned to bear most on the matter. Then I have used the testimony of the adversary himself, who recently registered as his partner the very man whom now, on his pleading, he claims was not even among the living. Then I produced that incredible speed — or rather audacity. I established the necessity that either seven hundred miles were covered in two days, or that Sextus Naevius sent men into possession many days before he applied for leave to take possession of the goods.

⁸⁹ I then read the edict, which expressly forbids that an owner be thrust off an estate. By which it is settled that Naevius did not take possession under the edict, since he admits that Quinctius was forcibly thrust off the property. I established further that the goods were not, on the whole, possessed — because the possession of goods is reckoned not in some part but in the whole of what can be held and possessed. I have said that there was a house at Rome which Naevius did not even approach; many slaves, of whom he took possession of none, did not even touch one. There was one whom he tried to touch; he was prevented and let it go.

⁹⁰ You learnt that in Gaul itself Sextus Naevius did not enter the private estates of Quinctius; lastly, that even from this estate, of which he took possession after forcibly expelling his partner, not all of Quinctius's private slaves were ejected. From this, and from the rest of Sextus Naevius's words, deeds, and designs, anyone can understand that he has done nothing else, and is doing nothing else now, except contrive that by violence, by injustice, by inequity of judgment he can make his own the whole estate that is held in common.

⁹¹ Now that the case has been pleaded out, the matter itself and the magnitude of the danger seem to compel Publius Quinctius, Gaius Aquilius, to beseech and entreat you and those who sit beside you in your council — by his old age, by his isolation — to do nothing other than to follow the bent of your own nature and goodness; that, since the truth

makes with him, his want should weigh more towards mercy than this man's wealth towards cruelty.

⁹² On the day we came to you as judge, on that same day we began to set lightly by those threats which we had previously dreaded. If case were contending with case, we judged that we could readily prove ours to anyone. The reason it was, that one rule of life was to be set against another rule of life is the very reason we judged we needed all the more to have you for judge. For the question is now in the balance: whether that rough and uncultivated parsimony of his can defend itself against luxury and licence, or whether, defaced and stripped of every ornament, it must be surrendered naked to appetite and insolence.

⁹³ Publius Quinctius does not match himself with you in influence, Sextus Naevius; he does not contend in resources, in capacity. All the arts in which you are great he yields to you; he confesses that he cannot speak elegantly, cannot speak to please, cannot desert a friendship in trouble and fly off to one in flower; cannot live by lavish expense; cannot adorn a banquet with magnificent splendour; cannot have a house closed to modesty and sanctity but open — in fact thrown open — to appetite and pleasures. He claims, on the other hand, that duty, faith, diligence, a life always rough and dry, have been dear to his heart. That those things are higher today and count for most in our manners — he is aware. What of it, then?

⁹⁴ Not so far that those who, abandoning the discipline of good men, have preferred to follow Gallonius's manner of profit and expenditure — and who, what was not in him, have moreover lived with audacity and perfidy — should be lord over the lives and fortunes of the most honourable men. If a man may live whom Sextus Naevius does not wish to, if there is room for an honourable man in the state against Naevius's will, if it is right for Publius Quinctius to draw breath against Naevius's nod and command, if the marks of distinction his modesty has earned for him he can keep, against insolence, with me defending him, then there is hope that this miserable and unhappy man may at last be allowed to stand. But if Naevius shall be permitted to do whatever he likes, and shall like what is not lawful, what is to be done? What god is to be called on? What man's faith is to be implored? What complaint, what mourning, what sorrow can fitly be found, in so great a calamity?

⁹⁵ It is miserable to be tipped off all one's fortunes; more miserable,

by injustice. It is bitter to be cheated by anyone; more bitter, by a kinsman. It is calamitous to be overturned in one's goods; more calamitous, with disgrace. It is deadly to have one's throat cut by a brave and honourable man; more deadly, by one whose voice was once for sale on the auctioneer's stand. It is unworthy to be defeated by an equal or a superior; more unworthy, by an inferior or a baser man. It is grievous to be handed over to another along with one's goods; more grievous, to an enemy. It is horrible to plead a capital case; more horrible, to plead it in the prior place.

⁹⁶ Quinctius has looked all about, has tried everything, Gaius Aquilius. He could not find a praetor from whom he could obtain his right — not even one before whom he could lodge his application as he pleased. He could not even find friends of Sextus Naevius — at whose feet he often and at length lay prostrate, beseeching them by the immortal gods either to contend with him by law or to lay any injustice on him without ignominy.

⁹⁷ At last he has subjected himself to that adversary's most haughty face. He has, with tears, taken Sextus Naevius's own hand — the hand practised in advertising a kinsman's goods — and besought him by the ashes of his own dead brother, by the name of kinship, by Naevius's own wife and children (none of whom is closer than Publius Quinctius), that at last he show some mercy: have some regard, if not for kinship, then for his own age; if not for the man, then for human nature. That he settle with him on any terms whatever, with his reputation kept whole — on any terms, however hard, only let them be tolerable.

⁹⁸ Refused by Naevius himself, unsupported by Naevius's friends, harassed and terrified by every magistrate, he has no one whom he can appeal to except you. To you he commits himself, to you all his goods and fortunes; to you he commits the reputation and hope of the rest of his life. Worn down by many insults, tossed by many wrongs, he takes refuge with you not as a disgraced man but as a wretched one. Thrown out of his richest estate, set upon by every kind of disgrace, when he saw Naevius lording it in the goods his own father bequeathed, he could not provide a dowry for his marriageable daughter — yet he committed nothing alien to his earlier life.

⁹⁹ Therefore he beseeches this of you, Gaius Aquilius: that the reputation, the honour which now, when his life is almost over and run out,

he has brought into your judgment, he be allowed to bear away with him from this place — that the man on whose duty no one ever cast doubt should not, in his sixtieth year, be marked with disgrace, with a stain, with the foulest ignominy; that Sextus Naevius should not abuse all his ornaments as if they were spoils; that it should not happen through you that the same reputation which carried Publius Quinctius all the way to old age should not also escort him all the way to the funeral pyre.

FOR SEXTUS ROSCIUS OF AMERIA

*Pro Sex. Roscio Amerino*80 BC

Delivered at Rome in 80 BC, when Cicero was twenty-six and a novus homo only three years past his first surviving speech. The case is a defence of Sextus Roscius the younger, of Ameria, against a charge of parricide; the real target of Cicero's attack is Lucius Cornelius Chrysogonus, the most powerful of Sulla's freedmen, who had acquired the murdered father's estates at a corrupt sale and now wished the son condemned in order to silence the only witness. The speech secured Roscius's acquittal and made Cicero's reputation: it is the first work in which the rhetorical and political voice that defines the later corpus is fully present, and the first in which Cicero attacks a named representative of the Sullan order. He does so with elaborate deference to Sulla himself, naming Chrysogonus as the architect of every crime while protesting that the dictator's victory was just and willed by the gods.

¹ I imagine, gentlemen of the jury, that you wonder what it is that has happened: that with so many of the leading orators and the noblest men in Rome sitting here, I in particular should have stood up — I, who in years and in talent and in standing am not to be compared with those who sit. Every one of these men whom you see in attendance for the defence holds that an injury contrived by an unprecedented criminality ought to be opposed; but to oppose it themselves they do not dare, given the harshness of the times. So they are present, because duty requires it, and silent, because they want to avoid the danger.

² What then? Am I the boldest of all? Not in the least. Or so much more dutiful than the rest? I am not so eager for that praise either as to want it snatched from others. What is it, then, that has driven me beyond the rest to take up the cause of Sextus Roscius? Because if any of those gentlemen had spoken, men whose authority and standing are very great, and had let fall a single word about the state of the commonwealth — as in this case must of necessity be done — he would be thought to have said far more than he had in fact said.

³ If, on the other hand, I speak openly everything that needs to be said, my words will not, even so, get out and spread among the public in the same way. Then again, what others say cannot pass unnoticed, given their high birth and standing; nor can it be excused as said rashly, given their age and prudence. As for me, if I have spoken with some freedom, it can either pass unnoticed, since I have not yet entered public life; or it can be pardoned to my youth — though by now both the principle of pardoning and the practice of taking notice have been wholly abolished from our state.

⁴ There is also this further reason: that perhaps the others were asked to speak in such a way as left them free to think they could either accept or refuse without compromising their duty. I was approached by men whose friendship, whose kindness, whose standing weighs heaviest with me, men whose kindness towards me I could not ignore, whose authority I could not slight, whose request I could not disregard.

⁵ For these reasons I have stood up to speak, not as the man chosen with the most ability, but as the one with the least responsibility left over from other engagements; and not so that Sextus Roscius might be defended by an advocate of standing, but so that he should not be left wholly without one. Perhaps you will ask: what is this case, that scares off so many of the leading men? You will not wonder when you hear what it is. For I think you will judge that no one could possibly have been left more abandoned and helpless than the man for whom I now must speak.

⁶ I will set out the whole charge — and the manner of the prosecution — as briefly as I can, gentlemen. Then you will easily understand both why this affair has fallen to me and what the situation is. The father of this Sextus Roscius, a man of Ameria — by far the first man in his municipality, and not only by birth but by character and means — and indeed in standing among the leading men of all Italy, given his connections of friendship and hospitality with the most distinguished houses of our city, —

⁷ this man, with all his rank in the municipality and his reputation in the wider world, with all the praise that high character could earn, was killed; and although his death is, in itself, the matter of accusation, the case of his son is what comes to trial. The son, who in this case is the defendant, is here. He is charged with parricide. What sort of son? You

will understand when I have set out the rest in order.

⁸ For the murder, the persons accused are those whom I will name. As for who killed Sextus Roscius the elder — whether it was those who, as I will show, gained most by his death; or those who feared him most while he was alive and rejoiced most when he was dead; or those who at the time were already implicated in similar atrocities — this you will judge for yourselves once the full circumstances are laid out.

⁹ Sextus Roscius the father, gentlemen, was a man of the old school, a Roman of rank in his own town, devoted to the leading citizens of Rome, especially to the Metelli, the Servilii, and the Scipios — houses whose names I mention with respect, since their friendship was both an ornament to him and an honour. While he lived, he visited Rome only as a private citizen who held a place of dignity in their banquets and in their councils. He was a friend, in particular, of the late Caecilia, sister of Nepos, daughter of Balearicus — a woman whose memory the better sort of citizens are bound to cherish; in her household this Sextus Roscius the younger took refuge when his father had been killed, and there he was sheltered.

¹⁰ For this woman, by her tenacity in keeping faith, has held to the dictates of an ancient and noble decency in our days, days in which we are scarcely able to recognise such virtue any longer. She has not allowed the son of a friend, the man whom she had received under her protection, to be cast forth into the streets, even when his fortune was at its lowest, when his enemies were at their highest, when by the law of the times nothing was further from prudence than to take in such a man.

¹¹ Through her courage, her fidelity, her diligence, what we have on our hands now is a defendant accused while still living, and not a corpse stripped of all rights. For you must know, gentlemen, that those who killed the father of this Sextus Roscius wanted, on top of the killing, to disinherit, despoil, and destroy the son. They are men who can endure no witness to their crimes; they wish them to be shrouded in such a way that not even rumour can reach the public. And so, though they have driven the son from his ancestral lands, they are seeking even now, on top of what they have done, his blood. They could not be content with how they had glutted their cruelty, unless they added this final touch to the rest.

¹² Bitter is what we suffer, gentlemen; bitter and unworthy: but

more endurable, perhaps, if those who do these things were our enemies, or strangers, or barbarians. As it is, the men I will name — you will judge — were of our own household: they ate at our table, they shared in our family business, they were treated as kin. From these men this defendant has had to defend his life, his property, and his good name. From these men he must now defend himself before you. Whatever you decide, you must decide with full understanding of what they did, of what they sought, and of what they intend.

¹³ I will go through the matter from the beginning. Sextus Roscius the father, a citizen of Ameria, in standing the foremost man of his town, in property well-furnished, in friendships at Rome very richly endowed — he was, as I have said, on close terms with the noblest houses of our city. There was, in his own neighbourhood, a man named Titus Roscius Magnus, and another named Titus Roscius Capito, both of his own family, both equally ill-disposed towards him, but unequally distinguished in their lives: Capito the elder thug, Magnus the cleverer one. From these two men, his kinsmen, came the trouble that destroyed him.

¹⁴ For these men had quarrelled with him over a long-standing grudge, and as their quarrel grew, they began to look about for some way of getting rid of him. Now Sextus Roscius the elder used to come down to Rome from time to time. One night, on his way back from supper, near the Pallacinian baths, he was set upon and killed. The kinsmen, who had long planned for this moment, immediately seized the opportunity that the death gave them.

¹⁵ For there was at this time a powerful man in Rome named Lucius Cornelius Chrysogonus — I do not need, I think, to remind you who he was; you know that he was the most influential of all the freedmen of Lucius Sulla, and that for several years he held a very free hand in the public proscriptions. With this Chrysogonus the kinsmen of the elder Roscius opened a private negotiation. Once the murder was done, before the news could reach Ameria by any reliable channel, they had a courier on the road from Rome to the elder Roscius's neighbours — a courier of theirs, in their pay, with their instructions. The decuriones of Ameria, hearing of the death, sent messengers to Sulla, urging him to set apart the property of the murdered man, since it was illegal to confiscate the goods of one who had not been proscribed. Their messengers reached Sulla's camp at Volaterrae — but they did not see Sulla.

¹⁶ For Chrysogonus, in the meantime — working with the kinsmen — had pulled it off. Within a few days the property of Sextus Roscius the father, an estate worth some six million sesterces, was put up at auction, sold for two thousand sesterces, and bought in by Chrysogonus himself — though some of the most valuable farms passed at once to Magnus and Capito as their share. The decuriones' deputation arrived at the camp; they were intercepted by Chrysogonus, given assurances that all would be done as they wished, and sent home. Sulla never even heard of the matter. The corpse was barely cold when the booty was being divided.

¹⁷ Now of all the murdered man's goods the son got nothing. He was driven from the house, expelled from the lands, denied even the funeral rites of his father in their proper manner. He fled, naked of all support, to Caecilia, of whom I have spoken. Through her, he came at last under the patronage of Marcus Messalla, a young man whose nobility you all see, whose energy and decency are conspicuous. Messalla, finding the son entirely alone, with no one to take his part, with not a pretext of help to be had from anywhere, agreed at last to bring the case before this court.

¹⁸ While these things were being done in Ameria, Magnus and Capito enjoyed for a time their share of the estates. Then, fearing that someone might at last begin to ask questions, they conceived a fresh plan: to get rid of the son too. Their first attempt was to have him killed on the spot. When that failed, when the son had escaped to Rome, they decided to murder him in Rome. When that too proved impractical, they hit upon a more elegant device — they prosecuted him for the murder of his own father.

¹⁹ For if they could secure his condemnation on a charge of parricide, they would not only put a definitive end to the only witness who could testify against them: they would also so cover their own crime under the colour of justice that no one would ever again hear a word said against them. The infamy of the parricide-conviction would silence everyone — and the goods now in Chrysogonus's hands would be theirs in safety forever. So they have come into court to prosecute, and they have made an arrangement with one Erucius, who carries the prosecution for them, that he is to make speeches and they are to remain in the background while my client is being charged with their crime.

²⁰ Now, gentlemen of the jury — such is the whole matter. The son

of a man whom they killed, whom they robbed of his estate, whom they cast from his ancestral lands, this same son they now charge with parricide. Could anything more outrageous be conceived? Could anything more shameless be imagined? In what court of the Roman people, in what age of the Republic, has such a thing been heard? But of all this you will hear more, in detail, as I proceed.

²¹ Let me begin, then, by saying who Sextus Roscius the elder was, what kind of life he led, what kind of household he kept, and how it stood between him and his kinsmen who now charge his son. He was, gentlemen, a man of the old Roman virtues. He had no acquaintance with luxury; he had every acquaintance with industry. He worked his lands; he managed his establishment; he raised a son. He was loyal to the friendships he had inherited from his father; he was generous to the friends he had made for himself. He was very rich, and he carried his riches without ostentation.

²² The kind of son he raised, you may judge from the fact that, while his father lived, he never set foot in Rome. He spent his life on the family estates, working with his own hands when work was wanted, supervising others when supervision was wanted, knowing little of city affairs and less of city pleasures. From this you can see what kind of person you are now asked to convict of parricide. A young man, raised in country quietness, ignorant of every luxury, ignorant of every refinement of vice — and condemned, on no evidence whatever, to a charge that has scarcely been heard at Rome twice in living memory.

²³ The case for the prosecution, when you strip away its rhetorical flourishes, comes to this: that this defendant murdered his father. The evidence offered? None. The motive supplied? None worth a man's consideration. The means, the place, the moment of the alleged killing? Nothing definite is said. We are simply asked to believe that he did it because Erucius says he did. Erucius! Who, when his fee has been paid, will go home and forget that Sextus Roscius ever existed; whose voice you have only heard so loudly today because he has been hired to make a noise.

²⁴ I shall divide my whole defence into three parts. First, I will speak about the charge of parricide, and refute Erucius's argument piece by piece. Second, I will speak about the seizure of the property and the persons involved in that seizure. Third, I will speak about Chrysogonus's

part in the matter — because, although I shall do it at the cost of some of his displeasure, the truth in this case cannot be told without naming him.

²⁵ On the first part, then. Erucius made a long speech, but his charge has substance only at one point: he says my client wished to kill his father because of a quarrel that had risen between them. I ask, gentlemen of the jury, whether anyone has ever before been brought into a court on so slender a thread. There was a quarrel between father and son, says Erucius. What sort of quarrel? Was the son disinherited? No: not even when the father was angriest with him was that ever proposed. Was the son banished from the household? No. Was anything done to the son to suggest that the father wished, in any degree, to be rid of him? Nothing: nothing was done.

²⁶ They were so afraid, this Sextus Roscius and his neighbours, that they preferred to die rather than have Sulla informed of what was being done. They were men of the old school, who imagined others to be like themselves; and when Chrysogonus assured them that he would have the name of Sextus Roscius struck off the proscription rolls and the estates handed back to the son intact, and when Titus Roscius Capito — one of the ten delegates — promised that this would in fact be done, they believed it. Without ever pleading their case, they went home to Ameria. At first these gentlemen merely put off the matter day by day; then they grew lazier still and toyed with their promises; finally — as was easily perceived — they began to plot against the life of this Sextus Roscius, judging that they could not long hold the property of another while its owner was still alive.

²⁷ As soon as my client realised this, on the advice of his friends and kinsmen he fled to Rome and put himself under the protection of Caecilia, sister of Nepos, daughter of Balearicus — a name I mention with respect — with whom his father had had close and constant friendship. In this woman, gentlemen, even now — as everyone has always thought — the traces of the ancient sense of duty remain, almost as a specimen of what once was. She received Sextus Roscius into her house, destitute, driven from his home, dispossessed of his property, fleeing the swords and threats of cut-throats; she stood by a guest who had already been crushed and given up for lost by everyone else. By her courage, her loyalty, and her diligence it has come about that this man stands before you

alive on a charge, instead of being entered, dead, on the proscription lists.

²⁸ For when these gentlemen perceived that Sextus Roscius's life was being guarded with the greatest care, and that no opportunity of murdering him was to be found, they took up a plan full of crime and audacity — to lay against him a charge of parricide, to procure for the prosecution some old hand who could speak to a matter on which there was in fact no shred of suspicion, and finally, since they could not win on the merits, to win by the timing alone. The talk that was put about ran like this: that since trials had been suspended for so long, the first man to be brought into court was bound to be condemned; that this defendant would have no advocate, owing to Chrysogonus's standing; that no one would breathe a word about the sale of the estates or about the partnership; that the very word "parricide" and the horror of the charge would, by themselves, be enough to ensure that he was disposed of without any difficulty, since he had no one to defend him.

²⁹ Driven by this design, by this very madness, those who could not kill him themselves — though they wanted to — have handed him over to you for the killing. What shall I lament first, gentlemen? Where shall I begin? Whose help, and against whom, shall I invoke? The faith of the immortal gods? Or of the Roman people? Or of you, who hold the supreme authority of the state at this moment?

³⁰ His father has been murdered, foully. His house has been seized by his enemies. His goods have been taken, occupied, plundered. The son's life has been threatened; he has been hunted with steel and ambush. What kind of crime is missing from all these crimes? And yet on top of all this they pile and heap further outrages: they fabricate an incredible charge; they procure witnesses against him; they hire prosecutors with the very money they took from his father. They offer my wretched client this choice: either give his throat up to Titus Roscius's knife, or be sewn into a sack and lose his life in the most disgraceful manner. They thought he would have no advocates: he has none. But, gentlemen, the man who will speak openly, who will defend him with good faith — which is what this case really requires — has not, after all, failed him.

³¹ Perhaps in undertaking the case I was driven a little impulsively by the rashness of youth. Yet, having once undertaken it, even if every threat, every terror, every danger were to bear down on me from every quarter, I will see it through; I will face whatever comes. I have made up

my mind, and I have settled it: that I will say everything which I judge relevant to the case — and not just say it, but say it gladly, boldly, freely. Nothing that may arise, gentlemen, will ever weigh upon me with such force that fear can outweigh good faith.

³² Truly, who is so spiritless as to see all this and remain silent and indifferent? You murdered my father, though he had not been proscribed. You then put down his name on the list of the proscribed. You drove me from my own house by force. You hold my patrimony. What more do you want? Have you come now into the court itself, with steel and weapons, in order either to murder this defendant or to procure his condemnation?

³³ We had recently in our city a man as bold as any in living memory, Gaius Fimbria, and — as everyone agrees, except those who are themselves madmen — as mad as any. When he had arranged at the funeral of Gaius Marius for Quintus Scaevola to be wounded — Scaevola, the most upright and most distinguished man of our state, of whose praises this is not the place to say much (and not much could be said, in any case, beyond what the Roman people preserve in memory) — and when he learned that Scaevola was likely to recover, he laid an indictment against him. When he was asked what he could possibly find to charge against a man whom no one could really praise enough to do him justice, he is said — being the maniac he was — to have answered: "for not having taken the whole weapon into his body." The Roman people have seen nothing more shocking than this — except the death of that same Scaevola, which was so disastrous that, by his murder, all those whom he had wished to save by negotiation perished with him; the men he had hoped to spare by compromise killed him.

³⁴ Is the present action so very different from that saying and that deed of Fimbria's? You bring a charge against Sextus Roscius. Why? Because he escaped from your hands. Because he refused to let himself be killed. The other case, since it concerned Scaevola, looks more shocking; but this one, because it is being done by Chrysogonus, is intolerable. By the immortal gods! What in this case requires defence? Where is the talent of an advocate, where the eloquence of an orator, urgently required? Let us simply set the whole matter forth, gentlemen, and consider it laid out before our eyes. So you will most easily see what is at stake in the whole trial, on what points I ought to speak, and in what direction your

judgement ought to move.

³⁵ There are three things, so far as I can judge, that stand in the way of Sextus Roscius today: the charge brought by his adversaries, their audacity, and their power. The fabrication of the charge has been undertaken by the prosecutor Erucius. The audacity belongs to the Roscii, who have claimed that part for themselves. And Chrysogonus, the man with most influence, fights with his power. About every one of these things I see I must speak.

³⁶ But not in the same way about every one. The first — the charge — belongs to my office. The other two have been laid upon you by the Roman people. I must dilute the charge to nothing. You must resist their audacity, and you must extinguish and crush, at the very first opportunity, the dangerous and intolerable power of men of this kind.

³⁷ Sextus Roscius is accused of having killed his father. By the immortal gods, what a wicked, what an unspeakable deed! What a crime, in which all crimes seem to be wrapped up in one! For if — as the wise have so finely said — filial duty can be wounded merely by an expression of the face, what punishment harsh enough can be found for one who has dealt his parent his death? The man for whom, if matters had required it, divine and human law alike would have compelled him to die in his father's place.

³⁸ For so great, so atrocious, so singular a crime — a crime so rare that, if ever it has been heard of, it is reckoned among portents and prodigies — with what arguments, Gaius Erucius, do you suppose a prosecutor ought to come forward? Ought he not to show the singular audacity of the man brought to trial, his savage character and inhuman nature, a life given up to every vice and every disgrace, and finally everything in the man wrecked and ruined to the point of self-destruction? Of all this, you have brought forward not one shred against Sextus Roscius — not even by way of slander.

³⁹ Sextus Roscius killed his father. Who is the man, then? A young rake, corrupted, led astray by worthless companions? More than forty years old. A practised assassin, no doubt, a daring fellow, often involved in murders? Not a word of any such thing have you heard from the prosecution. So it must have been luxury, or a great burden of debt, or unbridled passions of the heart, that drove him to this crime. Of luxury Erucius cleared him by saying that he was hardly ever even at a dinner

party. Debt — he has never owed anyone a thing. Passions of the heart — what passions can there be in a man who, as the prosecutor himself has charged, has lived all his life on the land, working a farm? A life as far removed from passion, and as bound up with duty, as any can be.

⁴⁰ What was it, then, that turned this enormous madness against Sextus Roscius? "He did not please his father," he says. He did not please his father? Why? It must have been a serious and obvious cause. For just as this is incredible — that a son should have brought death upon a father without very many and very weighty reasons — so this too is unbelievable: that a son should have been hated by a parent without many and weighty and compelling causes.

⁴¹ Let us return, then, to the same point and ask: what such great failings were there in this only son that he displeased his father? But it is plain there were none. Is the father then to be supposed mad, who hated without cause the son he had begotten? But the father was the most level-headed of men. So this much is now plainly clear: if the father was not mad, and the son was not depraved, then there was neither a cause for hatred on the father's side, nor a cause for crime on the son's.

⁴² "I do not know," he says, "what cause there was for the hatred — but that there was hatred I gather from this: that the father, while he had two sons, used to keep the one who has since died at his side at all times, and had relegated this one to country estates." What was happening to Erucius in his bad and silly prosecution is happening also to me in my excellent case: he could not find a way to make his fictitious charge stand up; I cannot find a way to refute and dilute objections so flimsy.

⁴³ What are you saying, Erucius? So many estates, so beautiful, so productive, Sextus Roscius the elder had handed over to his son to manage and look after as a kind of relegation and punishment? What? Heads of households who have children — especially men of that rank, from country municipalities — do they not consider it the most desirable thing for their sons to be most actively engaged in the family business, and to spend all their effort and care on the management of the estates?

⁴⁴ Or had he sent him off in such a way that he was to be on the land merely to be fed at the farmhouse, deprived of every comfort? What if it is established that not only did he have charge of the estates, but that he was accustomed, in his father's lifetime, to enjoy the profits of certain particular farms? Will you still call that life of his in the country

a relegation, an exile? You see, Erucius, how far your argument is from the substance and the truth. What fathers do as a matter of custom, you reproach as if it were something new. What is done out of affection, you allege was done out of hatred. What the father, as a mark of honour, granted his son, you say he did as a punishment.

⁴⁵ You are not unaware of all this. But you are so short of substantive accusations that you think you must speak not only against us, but against the nature of things, against the customary practice of mankind, against everyone's settled opinions. "But, with two sons, he kept one always with him, and let the other live in the country." Erucius, please — I beg you to take this in good part; I will not say it to wound you, but to remind you.

⁴⁶ If fortune did not give you a known father from whom you could learn what a father's feeling for his children is, nature certainly gave you no small share of human feeling; and to that has been added a love of letters, so that you are not a stranger even to literature. Take it from the comic stage. Does the old man in Caecilius's play seem to you to value Eutychus, his country son, less than that other one — Chaerestratus, I think the name is — whom he keeps at his side in town as an honour, while he relegates the other to the country as a punishment?

⁴⁷ "Why are you wandering off into these absurdities?" you will ask. As if it were difficult for me to bring forward as many examples as you like by name — and not to wander too far afield, my own fellow tribesmen and neighbours, who wish to have their children, of whom they think the world, made into hard-working farmers. But it is tiresome to call up real names, partly because it is doubtful whether the people in question would be glad to be named, partly because no one will be more familiar to you than this Eutychus, and partly because in fact it makes no difference whether I name a young man from a comedy or someone from the territory of Veii. Indeed I think these things were composed by the poets so that we might see our own ways set out in others' persons — a faithful image of daily life.

⁴⁸ Now turn your mind to the truth of the matter. Consider — not just in Umbria and the country round it, but in those old country municipalities of Italy — what kinds of pursuits in their sons heads of households especially praise. You will see at once that, for want of charges, you have made the highest praise of Sextus Roscius into a fault and a reproach.

And this is not only what their sons do at their fathers' wish: I myself know many — and unless I am mistaken, every one of you knows men — who, themselves on fire with enthusiasm for everything connected with the farm, regard this country life — which you take as something necessarily disgraceful and criminal — as the most honourable and the most agreeable kind of life there is.

⁴⁹ What do you suppose is the energy and intelligence with which this very Sextus Roscius pursues country matters? From his neighbours — men of the highest reputation — whom I have heard speak of him, you, Erucius, are not more skilled in your prosecuting trade than he is in his. But I suppose, as it pleases Chrysogonus, who has not left him a single farm, that he will have to forget his trade and lay aside his pursuits. Wretched and unworthy as that is, he will bear it calmly enough, gentlemen, if through you he can keep his life and his good name. But this is what cannot be borne: that the very excellence and abundance of his estates, and the eagerness with which he cultivated them, should be the chief grounds of his ruin — as if it were not misery enough that he cultivated them for others, not himself, but he must also be made a defendant for having cultivated them at all.

⁵⁰ You really would have made an absurd prosecutor, Erucius, had you been born in those days when men were called from the plough to be made consul. For if you suppose it a disgrace to be in charge of cultivating a farm, you would surely have judged that Atilius, whom they found scattering seed with his own hand, the most disgraceful and dishonourable of men. But by Hercules our ancestors thought far otherwise of him and of others like him; and so it is that, from the smallest and slenderest of states, they left us the greatest and most flourishing. They cultivated their own fields with care; they did not greedily reach after the fields of other men. By so doing — in fields and in cities and in nations — they enlarged the state, and our empire, and the very name of the Roman people.

⁵¹ I do not bring forward these matters because they are to be set side by side with the case at hand, but to make this point understood: that since among our ancestors the leading and most distinguished men — men who at every moment ought properly to be at the helm of state — nevertheless spent some part of their effort and their time on the cultivation of their own land, it is right to forgive a man who admits that he is a countryman, who has lived steadily in the country, especially when there

was nothing he could possibly have done that was either more pleasing to his father, or more agreeable to himself, or in real truth more honourable.

⁵² So the bitter hatred of the father against the son is shown, I take it, Erucius, by this single fact: that the father allowed him to live in the country. Is there anything else? "Yes, indeed," he says, "there is. For he had it in mind to disinherit him." I am listening; now you say something to the point. For those other things, I take it, even you grant are flimsy and absurd: "He did not attend dinner parties with his father." Naturally, since he hardly even came to town except very rarely. "Almost no one invited him to his house." No wonder, since he neither lived in the city nor was likely to return the invitation.

⁵³ But you yourself understand that all this is trifling. Let us look at what we set out to look at, the surer ground from which an inference of hatred could possibly be drawn. "The father was thinking of disinheriting his son." I will not press to ask why; I ask only how you know. Though it was your duty to say it and to enumerate every reason. It was the office of a serious prosecutor, who was bringing a charge of so monstrous a crime, to set out every fault and every offence of the son, by which the parent could have been so inflamed as to overcome nature itself, to drive that deeply implanted love out of his mind, and finally to forget that he was a father at all. Without grave failings on the son's part, I do not believe such a thing could happen.

⁵⁴ But I will allow you to leave aside what, by your silence, you concede was nothing at all. You must at least make this much plain: that he wished to disinherit. What evidence do you bring forward, that we should suppose this happened? You can produce nothing real; invent something at least, with some skill, so as not to look exactly as you do look — making sport of this wretched man's misfortune and of the dignity of these distinguished gentlemen. He wished to disinherit his son. For what reason? "I don't know." Did he disinherit him? "No." Who stopped him? "He was thinking about it." Thinking? To whom did he say so? "To no one." What is this but to abuse, for profit and for caprice, the courts and the laws and the dignity of this body — to bring a charge in this fashion, to assert what you cannot make plain and which you do not even attempt to make plain?

⁵⁵ There is not one of us, Erucius, who does not know that you have no quarrel of your own with Sextus Roscius. Everyone sees what

brings you forward as his enemy. Everyone knows that the prospect of his money has drawn you. What of it? You ought to have been moderate enough in your greed at least to think that the opinion of these gentlemen, and the *lex Remmia* (a law against malicious prosecution) ought to count for something.

⁵⁶ It is useful to have many prosecutors in the state, so that audacity may be held in check by fear. But it is useful in such a way that we are not to be made absolute fools of by prosecutors. A man is innocent — but, though he is free from guilt, he is nevertheless not free from suspicion: a sad case, but the man who prosecutes him I could in some way pardon, since, having something to which he can give a criminal and suspicious colour, he does not look like one knowingly playing a public game and suing for spite. So we readily put up with as many prosecutors as you like, because the innocent man, if accused, can still be acquitted, while the guilty cannot be condemned unless he is accused. It is more useful that the innocent be acquitted than that the guilty go untried. Geese are publicly fed at the cost of the state, and dogs are kept on the Capitol, that they may give warning if thieves come. They cannot tell thieves apart, but they sound the alarm if anyone has come up onto the Capitol at night; and, since this is suspicious, although they are mere brutes, they err at any rate on the side of caution. But if the dogs barked even by daylight, when worshippers came to greet the gods, I take it their legs would be broken — because they are sharp at a moment when there is no suspicion at all.

⁵⁷ The case with prosecutors is exactly the same. Some of you are geese, who only make a noise and cannot bite. Others are dogs, who can both bark and bite. We see provisions made for you. But you ought above all to attack those who deserve it. That is what most pleases the people. Then, even when there is some likelihood that someone has done something, you may bark on suspicion — that too can be allowed. But if you proceed in this fashion, charging a man with the killing of his father, when you can say neither why nor how, and merely bark without any ground for suspicion at all — nobody, I dare say, will break your legs; but, if I know these gentlemen, they will fix that letter to your forehead — the letter you so detest that you hate even the Calends — so firmly that ever afterwards you will be able to prosecute no one but your own ruined fortunes.

⁵⁸ What have you given me to defend, my good prosecutor? And

what have you given these gentlemen to suspect? "He was afraid of being disinherited." I am listening; but no one says why he ought to have been afraid. "His father had it in mind." Make it plain. There is nothing. Nothing about with whom he discussed it, whom he informed, by what route this suspicion has come into your minds. When you prosecute in this manner, Erucius, are you not openly saying: "I know what fee I have received; I do not know what to say. The one thing I had in view was what Chrysogonus said — that this man would have no advocate, that no one in the present time would dare to breathe a word about the sale of the property and the partnership"? This false notion is what pushed you into this dishonesty. By Hercules, you would not have said a word, had you thought anyone would answer you.

⁵⁹ It would have been worth your while, gentlemen, if you had observed it, to consider his negligence in conducting the prosecution. I imagine that, when he saw what kind of men were sitting on these benches, he asked whether this man or that one was likely to undertake the defence; about me he had not even a suspicion, since I had not before pleaded any public case. After he had ascertained that none of those who customarily and capably plead such cases would do so, he began to be so careless that, whenever it occurred to him, he would sit down, then he would walk about, sometimes he would even call a slave-boy — to give orders for his dinner, I take it — treating your assembly and this gathering as if it were the merest emptiness. He did at last finish his speech and sit down. Then I rose.

⁶⁰ He seemed to breathe more easily that no one of greater standing was speaking. I began to speak. I noticed, gentlemen, that as long as I had not yet named Chrysogonus, he kept up his joking and his other distractions; but the moment I touched the name, the fellow immediately drew himself up, and seemed astonished. I knew what had stung him. I named Chrysogonus a second time and a third. After that the men did not stop running back and forth, conveying news, I suppose, to Chrysogonus that there was someone in the city bold enough to speak against his wishes, that the case was being conducted otherwise than he had supposed, that the sale of the property was being opened up, that the partnership was being dragged through the mire, that his influence and his power were being slighted, that the jurors were paying close attention, that the Roman people thought the affair scandalous.

⁶¹ Since these calculations have failed you, Erucius, since you see that everything has been turned upside down, that the case for Sextus Roscius is being argued, if not gracefully, at least freely, that the man you thought delivered up is being defended, that those whom you hoped would betray him you see giving judgement on him — restore to us, at long last, that old shrewdness and prudence of yours; admit that you came in here in the hope that this would be brigandage, not a trial. The case is one of parricide; no reason has been given by the prosecutor why a son should have killed his father.

⁶² What in the smallest crimes and in those lighter offences which are now more frequent and almost daily is asked first and above all — “what was the cause of the wrongdoing?” — Erucius does not think need be asked in a case of parricide. In which crime, gentlemen, even when many causes seem to have come together in one place and to fit in with one another, even then the matter is not lightly believed; nor is the case settled on slight conjecture; nor is an uncertain witness listened to; nor is the matter decided by the prosecutor’s cleverness. Many previous offences must be shown, a thoroughly ruined life, a singular audacity — and not audacity alone, but the highest fury and madness. And though all these be present, still the marks of the crime ought to stand out plainly: where, by what means, by whose hand, at what time the deed was done. Unless these are many and obvious, then a thing so wicked, so atrocious, so unspeakable, simply cannot be believed.

⁶³ For the force of human feeling is great. The bond of common blood weighs heavily. Nature herself cries out against suspicions of this sort. It is the surest of portents and prodigies that there should be anyone in human shape and form so far surpassing the beasts in savagery as to deprive most outrageously of the light those through whom he himself looked upon this most pleasant light — when even wild beasts are bound to one another by birth and rearing and by nature itself.

⁶⁴ Not many years ago, they say, a certain Titus Caelius of Terracina, a man of some standing, having dined and gone to bed in the same room with his two grown sons, was found in the morning with his throat cut. When neither slave nor free man was found on whom suspicion could fall, and when the two sons — already of an age to be aware of things — said that, sleeping near him, they had not noticed anything, charges of parricide were laid against the sons. What could be more suspicious?

That neither one of them had heard a thing? That anyone should have ventured into that room precisely at the moment when the two grown sons were lying there, who could easily both notice him and defend their father? Furthermore, there was no one against whom the suspicion could fit.

⁶⁵ And yet, when it was made plain to the jurors that they were found asleep with the door open, the young men were acquitted by the verdict and freed of all suspicion. For no one believed that there could be anyone who, having defiled by an unspeakable crime every law human and divine, could immediately afterwards drop into sleep — because those who have committed so great an offence not only cannot rest without unease, they cannot even draw breath without dread.

⁶⁶ Do you not see how those whom the poets have handed down to us as having taken vengeance on a mother for their father's sake — though they are said to have done it at the bidding and oracles of the immortal gods themselves — nevertheless are driven by the Furies and never allowed to rest, because not even the dutiful could perform such a deed without crime? So it stands, gentlemen: a parent's blood, a father's or a mother's, has great force, great urgency, great holiness; and once a stain has been incurred from it, it not only cannot be washed off, but it sinks so deep into the soul that the highest madness and frenzy follow.

⁶⁷ Do not suppose, as you so often see in stories, that those who have done some impious and wicked deed are driven and terrified by the Furies' burning torches. Each man is most tormented by his own deceit and his own dread. Each man is harried and unhinged by his own crime; his own evil thoughts and his own conscience are what frighten him. These are the relentless Furies of the wicked, dwelling in the home, who day and night exact the parents' penalty from sons stained with crime.

⁶⁸ The very magnitude of the offence makes the matter such that, unless the parricide is shown almost manifestly, it is not credible: unless there is a base youth, unless there is a life polluted with every disgrace, unless there are extravagances and shameful and dishonourable expenses, unless there is open audacity, unless such recklessness as is not far from insanity. Add to this hatred of the parent, fear of paternal correction, wicked friends, slaves who are accomplices, a fitting time, a place chosen for the deed. I will almost say: the jurors must see hands actually spattered with a father's blood, if so great a crime, so monstrous, so cruel, is

to be believed.

⁶⁹ Wherefore, the less credible the thing is unless it is shown, the more it must be punished if it is convicted. So just as our ancestors are seen to have surpassed other nations not only by force of arms but by judgement and wisdom in many things, so most especially in this: that for impious offenders they devised a singular punishment. Consider in this matter how far they outran in prudence those who are reckoned the wisest among other peoples.

⁷⁰ The most prudent state is said to have been Athens while she held the supremacy; and of that state Solon is said to have been the wisest man — the same Solon who wrote the laws which they still use today. When he was asked why he had set down no penalty for one who had killed his parent, he replied that he had not supposed anyone would do such a thing. He is said to have done wisely in not having decreed anything against an act not before committed, lest he seem rather to have suggested it than forbidden it. How much more wisely our ancestors did! For when they realised that there is nothing so holy that audacity will not at some time profane it, they devised a singular punishment for parricides, so that those whom nature herself could not hold to their duty might be deterred from the offence by the magnitude of the penalty. They ordered them to be sewn up alive in a sack and so cast into the river.

⁷¹ What singular wisdom, gentlemen! Do they not seem to have plucked such a man up out of the natural order, suddenly stripping him of sky, sun, water, and earth — so that he who had killed the man from whom he himself was born should be deprived of all those very things from which all things are said to be born? They were unwilling to throw the body to wild beasts, lest by their having touched so great a crime we should ourselves use beasts grown more savage. They were unwilling simply to fling them naked into the river, lest, when they were carried out into the sea, they should pollute the very element by which all other things that have been violated are thought to be cleansed. There is, in short, nothing so cheap or so common of which they have left them any share whatsoever.

⁷² For what is so common as breath to the living, earth to the dead, the sea to the tossed, the shore to the cast-up? They live, while they can, in such a way that they cannot draw breath from the open sky; they die in such a way that the earth does not touch their bones; they are tossed

by the waves in such a way that they are never washed clean; finally they are cast up in such a way that they do not even rest, dead, on the rocks. Of an offence so vast, for which a punishment so distinctive has been instituted, do you suppose, Erucius, that you can persuade men of this sort, when you have not even produced a cause for the offence? If you were prosecuting this man before the very buyers of his property, with Chrysogonus presiding over the court, you would still have come better prepared.

⁷³ Do you not see what is in question, or before whom it is being heard? It is a matter of parricide, which cannot be undertaken without many causes; and it is being heard before men of the greatest prudence, who understand that no one commits even the smallest crime without a cause. Very well: you cannot bring forward a cause. Although I ought to have won outright at this point, I will yield some of my right and grant you, in this case, what in any other I would not concede — relying on my client's innocence. I am not asking you why Sextus Roscius killed his father; I am asking how he killed him. I ask you that, Gaius Erucius, in such a way that I will give you the chance to answer, or to interrupt, or even to put questions, if you will, in your turn.

⁷⁴ How did he kill him? Did he strike him with his own hand, or did he hand him over to others to be killed? If you charge him with the act itself, he was not at Rome. If you say it was done through others, I ask: which others? Slaves or freemen? If freemen, what sort of men? Men from the same place, Ameria? Or these cut-throats from the city? If from Ameria, who are they? Why are they not named? If from Rome, where had Roscius come to know them, who had not been in Rome for many years and was never there for more than three days? Where did he meet them? In what manner did he speak with them? How did he persuade them? "He paid them money." To whom did he pay it? Through whom did he pay it? Where did he get it? How much did he give? Is it not by such tracks that one usually arrives at the source of a crime? And remember at the same time how you yourself painted his life: that this was a wild and rustic man, who had never had a conversation with anyone, who had never set foot in any town.

⁷⁵ I pass over here a point that could have been a very strong argument for his innocence: that in country habits, in a hard fare, in this rough and uncultivated kind of life, crimes of this kind do not generally

arise. Just as you cannot find every fruit and every tree in every soil, so not every crime is born from every life. In the city, luxury is bred. From luxury greed must inevitably break out. From greed audacity bursts out, and from there spring all the kinds of crime and offence. But this country life, which you call rustic, is the school of frugality, of diligence, of justice.

⁷⁶ But I let this go. I ask only this: a man who, on your own showing, was never among men, through which men could he have done so great a deed — so secret, especially from a distance? Many things are false, gentlemen, which can nonetheless be put into a suspicious light. In these matters, if even suspicion is found, I will concede that the guilt is there. Sextus Roscius was killed at Rome while his son was on the estates at Ameria. I suppose he sent letters to some assassin who knew no one in Rome. He summoned someone. Whom or when? He sent a messenger. Whom, or to whom? With money, with favour, with hopes, with promises he induced someone. Of all this, not a thing can even be invented; and yet the case is being argued as parricide.

⁷⁷ It remains for him to have done it through slaves. O immortal gods — a wretched and ruinous business! What? In so grave a charge, the thing which is usually a help to an innocent man — to offer up his slaves for examination under torture — this is something that Sextus Roscius is not allowed to do? You who prosecute him have all his slaves. Of so great a household, not one slave-boy, the manager of his daily provisions, has been left to Sextus Roscius. I appeal to you now, Publius Scipio; to you, Marcus Metellus; with you as advocates, with you as counsel, Sextus Roscius has several times demanded of the opposing party two of his father's slaves for examination. Do you remember Titus Roscius's refusal? What of those slaves? Where are they? They follow Chrysogonus, gentlemen; they enjoy honour and are highly prized by him. Even now I demand that they be examined; my client begs and beseeches it.

⁷⁸ What are you doing? Why do you refuse? Doubt now if you can, gentlemen, by whom Sextus Roscius was killed: by the man who, because of that death, lives in poverty and in danger, who is not even allowed to make inquiry into his father's death — or by those who flee inquiry, who have his property, who live in murder and from murder. Everything in this case, gentlemen, is wretched and unworthy; but nothing more bitter, nothing more unjust, can be brought forward than this:

that a son is not allowed to hold an examination concerning the death of his father by means of the slaves of his father! Will he not even for that long be the master over his own slaves — long enough to have them questioned about his father's death? I shall come, and not long hence, to this point; for the whole of it concerns the Roscii, of whose audacity I promised to speak when I had refuted the charges of Erucius.

⁷⁹ Now, Erucius, I come to you. We must agree, you and I — if this offence touches my client at all — that he either committed it with his own hand (which you deny) or did it through some freemen or slaves. Freemen? You can show neither how he could have met them, nor by what argument he could have induced them, nor where, nor through whom, nor with what hope, nor at what price. I, on the contrary, show that Sextus Roscius not only did none of these things, but could not even have done them, because he was not in Rome for many years, and never went away from the estates without good reason. The only resource left to you appeared to be the title of slaves, into which, like a harbour, you could take refuge from the rest of the suspicions; but here you strike a rock of such a kind that you not only see the charge bouncing off my client, but realise that all the suspicion falls back upon yourselves.

⁸⁰ What is it, then, to which the prosecutor still takes refuge in his lack of arguments? "The times were such," he says, "that men were murdered indiscriminately and with impunity. So you, because of the multitude of cut-throats, could have done this without any trouble." Sometimes you seem to me, Erucius, to want to gain two ends with one fee — to shower us with the trial, and to accuse the very men from whom you took your fee. What are you saying? That men were murdered indiscriminately? By whom and at whose hands? Do you not realise that you have been brought here by the dealers in confiscated goods? What then? Do we not know that in those times the same men were dealers in throats and in property?

⁸¹ Will those men, finally, who at that time ran armed about, day and night, who were constantly at Rome, who at every moment were involved in plunder and bloodshed, throw at Sextus Roscius the bitterness and unfairness of those times, and reckon that the multitude of cut-throats, of which they themselves were the leaders and chiefs, will tell against him? — a man who was not only not in Rome, but knew nothing of what was being done at Rome, since he was steadily, as you yourself

admit, in the country.

⁸² I am afraid, gentlemen, of being tedious to you, or of seeming to mistrust your judgement, if I dwell longer on matters so plain. The whole of Erucius's accusation, I take it, has been undone — unless you are perhaps expecting me to dissolve those things he raised about embezzlement and other made-up accusations, novel and unheard of by us before this moment, which he seemed to me to be reciting from some other speech composed against some other defendant; so little did they relate either to the charge of parricide or to the man whose case is being heard. Since he has charged them only with a word, it is enough to deny them with a word. If there is anything he is keeping in reserve for the witnesses, there too he will find us better prepared, as in the case proper, than he supposed.

⁸³ I come now to where it is not eagerness that draws me, but loyalty. For if I wished to prosecute, I would prosecute others, from whom I might rise. But this I am resolved not to do, as long as I have the choice. The man who seems to me most distinguished is the one who reaches a higher place by his own virtue, not the one who climbs by means of another's misfortune and ruin. Let us at last leave off scrutinising what is empty. Let us look for the offence where it is and where it can be found. You will see at once, Erucius, by how many suspicions the certain crime is convicted, even though I shall not say everything and shall touch each thing only lightly. I would not even do this, were it not necessary; and the proof that I am doing it unwillingly will be that I will not pursue the matter further than my client's safety and my own good faith require.

⁸⁴ You found no cause in Sextus Roscius. I find one in Titus Roscius. For the matter is between you and me, Titus Roscius Magnus, since you sit there and openly profess yourself an opponent. Of Capito we shall see later, if — as I hear — he comes forward as a witness; then he will become acquainted with other "victories" of his of which he does not even suspect that I have heard. The famous Lucius Cassius — whom the Roman people thought a most truthful and most wise judge — used repeatedly to ask in cases: "to whose advantage was it?" For human life is such that no one tries to commit a crime without hope and gain.

⁸⁵ Those who were brought into danger fled and trembled at this judge — even though he was the friend of truth, his nature seemed not so much inclined to mercy as bent towards severity. I, although the man

who presides over this present court is most resolute against audacity and most merciful to innocence, would yet readily plead for Sextus Roscius even if that very harshest of judges were holding the inquiry, or before Cassian jurors, whose name those who must plead before them dread to this day.

⁸⁶ For in this case, when they saw that the others held the very greatest sums of money, while my client was in the depths of want, they would not even ask "to whose advantage was it?" They would attach the charge and the suspicion to the gain rather than to the destitution. What if it is added that you were thin in resources before? What if greedy? What if audacious? What if a particular enemy of the man who was killed? Need we still ask what cause has driven you to so great a crime? Of these things, what can be denied? Your scant means are such that they cannot be hidden; the more you hide them, the more they shine out.

⁸⁷ You display your greed, when you have entered into a partnership with utter strangers over the property of a fellow townsman and a kinsman. How great your audacity is, leaving aside everything else, all could see from this — that of the whole partnership, that is, of so many cut-throats, you alone were found to sit on the prosecutor's bench, not only showing your face but actually thrusting it forward. That you had quarrels with Sextus Roscius, and grave disputes about family property, you must necessarily concede.

⁸⁸ It remains, gentlemen, only this for us to be in doubt about: which of the two killed Sextus Roscius — the one to whom riches came through his death, or the one to whom destitution came; the one who was thin in means before, or the one who was reduced afterwards to the most absolute want; the one who, burning with greed, is borne hostile against his own kin, or the one who has always lived in such a way that he knew no kind of gain except the fruit of his own labour; the one who is the boldest of all the partners in confiscations, or the one who, for unfamiliarity with the Forum and the courts, dreads not only the benches but the city itself; finally, gentlemen — and this is to my mind the chief point of the matter — whether an enemy or a son.

⁸⁹ If you, Erucius, had hit upon so many and such weighty things in your accused, how long would you not be speaking! How you would strut! By Hercules, time would fail you sooner than your eloquence. For in any one of these matters there is enough material to take up a whole

day. Nor am I incapable of doing the same; for I do not so far depreciate myself, even though I make no claim, as to think that you can speak more copiously than I. But I, perhaps, because of the multitude of advocates, may be reckoned simply one of the herd; you the carnage of Cannae has made a sufficiently good prosecutor. We have seen many slain — not at Lake Trasimene, but at Lake Servilius.

⁹⁰ Who there was not wounded by Phrygian steel? It is unnecessary to call up all the Curtii, Marii, Memmii, whom age was already calling away from battle; finally old Priam himself, Antistius, whom not only age but also the laws forbade to fight. Then those whom no one names because of their obscurity — there are six hundred of them prosecuting in cases of murder and poisoning. So far as concerns me, I should be glad if every one of them lived. For there is no harm in there being as many dogs as possible where there are very many things to watch over and very much to guard.

⁹¹ But, as happens, the violence of war and its tumult often work many things by reckless leaders. While the man who held supreme command was occupied with other matters, there were in the meantime those who treated their own wounds; men who, as if a perpetual night had fallen upon the commonwealth, rushed in the dark and threw everything into confusion. From them I am surprised that, just as no trace of the courts was left, even the benches were not burnt; for they did away with prosecutors and jurors alike. There is at least this consolation: they so lived that they could not, if they wished, kill all the witnesses. As long as the human race lasts, there will not be wanting men to bring charges; as long as the state lasts, courts will be held. But, as I began to say, both Erucius, if he had in this case the things I have mentioned, could go on at any length, and so could I, gentlemen; but my plan is, as I said before, to pass lightly over the points and merely to graze each in turn, that everyone may understand that I am prosecuting from no zeal, but defending from duty.

⁹² I see, then, that there are very many causes that might have driven this man on. Let us see now whether he had any opportunity of undertaking the offence. Where was Sextus Roscius killed? — "At Rome." — And you, Titus Roscius Magnus: where were you then? — "At Rome. But what does that prove? Many others, too." — As if the question now were "which of so great a multitude killed him," and not rather this: of

the man who was killed at Rome, is it more probable that he was killed by one who was constantly at Rome at that time, or by one who had not come anywhere near Rome for many years?

⁹³ Now consider also the other opportunities. There was at that time, as Erucius mentioned, a multitude of cut-throats, and men were killed with impunity. What sort of multitude? Either, I take it, of those engaged in seizing property, or of those hired by them to kill someone. If you mean those who were after another man's goods, you yourself are in their number, you who are rich at our expense. If you mean those whom under a softer name they call "strikers," ask yourself whose protection and patronage they are under. Believe me, you will find someone from your own partnership; and whatever you say in reply, weigh it against our defence. So you will most easily see Sextus Roscius's case set side by side with yours.

⁹⁴ You will say: "What of it, if I was constantly at Rome?" I will reply: "But I was not there at all." — "I confess that I am a confiscation-dealer; but so are many others." — "But I, on your own showing, am a farmer and a countryman." — "Just because I have entered the gang of assassins, I am not, on that account, an assassin." — "But I, who do not even know any assassin, am most certainly far from any such charge." There are very many things that could be said to show that you had every facility for undertaking the deed; which I leave aside, partly because I do not gladly accuse you yourself, and even more because, if I wished to relate the killings done in those times in just the manner in which Sextus Roscius was killed, I am afraid my speech would be seen to bear on more men than this one.

⁹⁵ Let us look now briefly, as at the other points, at what was done by you, Titus Roscius Magnus, after the death of Sextus Roscius; things so open and manifest that, by my faith, gentlemen, I say them unwillingly. For I am afraid, whatever sort of man you are, Titus Roscius, that I shall seem to have been so anxious to save my client that I have not spared you at all. Even while I am in this fear and wish to spare you in some respect that good faith permits, again I change my mind — because your face comes back to me. You, when the rest of your associates were fleeing and hiding themselves, so that this trial should appear to concern not their plunder but my client's offence, demanded, of all people, this part: to be in the trial yourself and to sit with the prosecutor? In which

you accomplish nothing else than to make your audacity and your shamelessness known to all mankind.

⁹⁶ When Sextus Roscius was killed, who was the first to bring the news to Ameria? Mallius Glaucia, whom I named before, your client and intimate. What was the point of his bringing the news especially — since, if you had no plan formed beforehand about the man's death and his property, and had entered into no partnership of crime or of reward with anyone, this least of all concerned you? — "Mallius is bringing the news of his own accord." What, I ask you, was it to him? Did it happen by chance that, having come to Ameria for some other reason, he should be the first to bring news of what he had heard at Rome? For what reason had he come to Ameria? "I cannot guess," he says. I shall bring matters to such a point that no guessing will be necessary. Why did he bring the news first to Titus Roscius Capito? When at Ameria there was Sextus Roscius's house, his wife, and his children, when there were so many close kin and relatives on the best of terms with him — by what reasoning did it come about that this client of yours, the messenger of your crime, should bring the news first of all to Titus Roscius Capito?

⁹⁷ He was killed on his way home from supper. It was not yet light when the news was known at Ameria. What does this incredible speed signify, this enormous haste and hurrying? I do not ask who struck the blow. There is no need, Glaucia, for you to be afraid; I will not search you to see whether you happened to have a weapon; I do not strip you. I think it does not concern me; since I find by whose plan he was killed, by whose hand he was struck I do not trouble myself. Just this much I take, which your manifest crime opens to me: where, or from whom, did Glaucia hear it? How did he know so quickly? Granted that he heard immediately — what was it that compelled him in a single night to cover so great a journey? What necessity pressed him so hard that, if he were going to Ameria of his own accord, he should set off from Rome at that hour and rest no part of the night?

⁹⁸ Even in matters so transparent must we look for argumentation or take up conjecture? Do you not, gentlemen, seem to see with your own eyes the things you have heard? Do you not see that wretched man, ignorant of his own danger, returning from supper? The ambush set, the sudden onslaught? Does not Glaucia hover before your eyes in the murder? Is not this Titus Roscius present? Does he not with his own

hands set in his chariot that Automedon — the messenger of his most cruel crime and his unspeakable victory? Does he not beg him to keep the night through, to take the trouble for his sake, to bring the news to Capito at the earliest possible moment?

⁹⁹ What was it that he wished Capito to know first? I do not know — except that I see this: that Capito is a partner in this property; that of thirteen farms I see him hold three of the noblest.

¹⁰⁰ I hear, moreover, that this is not the first time such suspicion has been levelled at Capito. He has many infamous "victories" to his credit; this one, however, is the first that has come to him from Rome with the ribbon of distinction. There is no method of killing a man by which he has not killed several — many with steel, many with poison. I have besides to say that he threw down off the bridge into the Tiber, against the custom of our ancestors, a man under sixty years of age. If he comes forward — and he will come forward, for I know he will — he will hear of these things. Let him only come; let him unfold that volume of his —

¹⁰¹ which volume, I can prove, Erucius drafted; which they say he held over Sextus Roscius, and threatened that he would offer the whole of it as testimony. What an excellent witness, gentlemen! What gravity, equal to the expectation! What an honourable life — such that you will gladly fit your sworn oath to his testimony! Truly we should not see these men's misdeeds with such clarity, did not greed and avarice and audacity blind them themselves.

¹⁰² The one sent a swift courier from the very place of the murder to Ameria, to his partner — or rather to his master — in such a way that, even if everyone wished to dissemble that they knew to whom the offence belonged, he himself laid his manifest crime out before the eyes of all. The other — if it pleases the immortal gods — is even going to give evidence against Sextus Roscius. As though the question now were whether what he says is to be believed, and not what he has done is to be punished. So it has been laid down by ancient custom that, even in the smallest matters, men of the highest rank do not give evidence in their own cause.

¹⁰³ Africanus — whose very surname declares that he subdued a third part of the world — nevertheless would not have given evidence, had it been a matter touching himself. For of so great a man I do not dare to say this: that, if he gave evidence, he would not be believed. See

now how everything has been turned upside down and changed for the worse. When the matter is one of property and of murder, a man is going to give evidence who is at once a confiscation-dealer and a cut-throat — that is, who is the buyer and possessor of the very property at issue, and who arranged the killing of the man whose death is being investigated.

¹⁰⁴ What of you, my excellent fellow? Have you anything to say? Listen to me: see that you do not fail yourself; your own great affair is also at stake. You have done many things wickedly, audaciously, dishonourably, perfidiously — one thing most foolishly, surely on your own and not on Erucius's advice: there was no need for you to be sitting there. No one uses an accuser dumb, or a witness who rises from the prosecutor's bench. Add to this that your greed of yours might at least have been a little hidden, a little under cover. As it is, what is there that any of you should wish to hear, when what you do is of such a kind that you seem to be doing it on purpose to make my own task against you easy? Now, gentlemen, let us look at what came next.

¹⁰⁵ At Volaterrae, in the camp of Lucius Sulla, the death of Sextus Roscius was reported to Chrysogonus on the fourth day after he was killed. Even now, must it be asked who sent the courier? Is it not plain that it was the same man who sent the messenger to Ameria? Chrysogonus arranges for the man's property to be sold at once — a man whom he did not know, and a property he did not know. But how did it occur to him to covet the estates of an unknown man, whom he had certainly never seen? When you hear something of this kind, gentlemen, you usually say at once: "Some fellow townsman or neighbour must have told him; they generally inform; through them most things are betrayed." Here you have nothing to take up by way of conjecture.

¹⁰⁶ For I shall not argue thus: "It is likely that the Roscii brought the matter to Chrysogonus; for they had a friendship with him beforehand. Although the Roscii had many old patrons and family friends inherited from their ancestors, they ceased to court and respect them all, and entrusted themselves to the protection and clientele of Chrysogonus."

¹⁰⁷ I could say all these things truthfully; but in this case there is no need of conjecture. I know for certain that they themselves do not deny that Chrysogonus came to this property at their suggestion. If you will see with your own eyes the man who has received a share for the act of informing, can you doubt, gentlemen, who informed? Who, then,

are the people in this property to whom Chrysogonus has given a share? Two Roscii. Anyone else besides? No one, gentlemen. Can there then be any doubt that the men who have taken from him a share of the spoils were the men who brought him the spoils?

¹⁰⁸ Now consider the action of the Roscii in the light of Chrysogonus's own judgement. If the Roscii had done nothing in this affair worth a price, why were they being rewarded by Chrysogonus with such great gifts? If they had done nothing but bring the matter to him, was it not enough to thank them, or, to be very generous, to bestow some honour upon them? Why are three estates, of so much money, given immediately to Capito? Why does this Titus Roscius hold all the rest jointly with Chrysogonus? Is it not plain, gentlemen, that Chrysogonus, with full knowledge of the case, has handed these spoils to the Roscii?

¹⁰⁹ Capito came among the ten chief delegates as an ambassador to the camp. Learn the man's whole life, character, and habits from this very embassy alone. Unless you understand, gentlemen, that there is no duty, no right so sacred and unblemished that his crime and treachery would not have violated and impaired it, then judge him a most excellent man.

¹¹⁰ He stops Sulla from being informed about these matters. He betrays to Chrysogonus the plans and wishes of the rest of the deputation. He warns him to take care that the affair is not openly conducted; he points out that, if the sale of the goods were undone, he would lose a great sum of money, and Capito himself would be in danger of his life. He sharpens Chrysogonus, deceives those who had been sent with him, repeatedly warns the one to be on guard, treacherously holds out a false hope to the others; with the one he forms plans against these others, and reveals their plans to him; with him he bargains for his own share; with the others, relying on some pretext of delay, he constantly blocks every approach to Sulla. Finally, with this man as instigator, author, mediator, the deputation never went to Sulla; they were duped by his trustworthiness — or rather by his treachery (which you will hear from them, if the prosecutor is willing to call them as witnesses), and so brought home, instead of a settled matter, a false hope.

¹¹¹ In private affairs, if anyone discharged a commission entrusted to him not only with malice for his own gain or convenience, but even just with negligence, our ancestors thought he had committed the most disgraceful kind of disgrace. So a court of mandate was established, no

less shameful than that of theft, because, in matters in which we cannot ourselves be present, the trust of friends takes the place of our own action. He who damages that trust attacks the common protection of all, and so far as in him lies, breaks up the partnership of life. We cannot do everything by ourselves; one man is more useful in one matter, another in another. For this reason friendships are entered into, that common advantage may be steered by mutual offices.

¹¹² Why do you accept a commission, if you intend either to neglect it or turn it to your own benefit? Why do you offer yourself to me, and, with feigned dutifulness, get in the way of and obstruct my interests? Stand aside; I will deal through someone else. You take up the burden of duty, which you think you can sustain. It seems heaviest to those who are themselves least light-minded. So this fault is shameful for this reason: it violates two of the most sacred things, friendship and good faith. For hardly anyone gives a commission except to a friend, nor entrusts anything except to one whom he thinks faithful. So it is the act of the most utterly ruined man both to dissolve a friendship and to deceive a man who would not have been wronged unless he had trusted.

¹¹³ Is it not so? In the smallest matters, the man who neglects a commission must necessarily be condemned in the most disgraceful trial. In so great a matter, when the man to whom the reputation of the dead and the fortunes of the living were entrusted has stained the dead with infamy and reduced the living to want, will he be counted among honourable men — or even among the living? In the smallest, private matters even mere negligence is brought to a charge of mandate and a verdict of infamy, because, if all is done as it ought to be, the man who gave the commission must be the one to neglect it, not he who accepted it. In so great a matter, which was conducted publicly and entrusted publicly — a man who has not by negligence wronged some private interest, but by treachery has polluted and stained the very ceremony of the embassy itself — with what penalty in the end will he be visited, in what court will he be condemned?

¹¹⁴ If Sextus Roscius had privately given him this charge, to settle and arrange matters with Chrysogonus, and, if necessary, to pledge his good faith to that end, and the man who had undertaken this had then turned even some little of the business to his own profit, would he not, condemned by an arbitrator, both have to restore the property and lose

all his good name?

¹¹⁵ As it is, Sextus Roscius did not give him this charge. What is much graver: Sextus Roscius himself — with his reputation, his life, all his goods — was, by the decuriones, publicly entrusted to Titus Roscius. From this affair Titus Roscius did not turn a little into his own pocket: he overturned the man utterly out of his goods, bargained three estates for himself, and held the will of the decuriones and of all the townsmen as worth precisely as much as he held his own pledged faith.

¹¹⁶ See now, gentlemen, the rest, that you may understand that no kind of crime can be invented with which this man has not befouled himself. In smaller matters, to deceive a partner is most shameful, and equally shameful with what I have just spoken of, and not without justice; for he who shares a thing with another reckons that he has joined to himself a help. To whose good faith, then, will he flee for refuge, when he is wounded by the good faith of the man to whom he has entrusted himself? And those wrongs ought above all to be marked which can least be guarded against beforehand. We can be on our guard against strangers; intimates necessarily see many more open things; how can we be on our guard against a partner? Even if we fear him, we wound the very right of duty. Rightly, then, our ancestors thought that he who had cheated a partner ought not to be reckoned in the number of good men.

¹¹⁷ But this Titus Roscius cheated not a single partner in a money matter — a serious matter, but somehow bearable — but nine men of the highest standing, partners in the same charge, the same embassy, the same duty, the same commission. He led them on, deceived them, abandoned them, betrayed them to the opposite party, cheated them with every sort of fraud and treachery: men who could suspect nothing of his crime, who ought not to have feared a partner in their duty, who did not see his malice, who believed in his empty talk. So now those most honourable men, on account of his treachery, are thought to have been not cautious or foreseeing enough; while he, who at the start was a betrayer, then a deserter, who first betrayed his fellow ambassadors' counsels to the other party and then formed a partnership with that very other party, even now terrifies and threatens us, decked out in three estates — the rewards of his crime. In a life like this, gentlemen, in so many and such great offences, you will find this offence too — the one on trial.

¹¹⁸ For this is how you must inquire: where you see many things

done greedily, audaciously, dishonourably, treacherously, then count that crime too lurks among such offences. Although this very crime is the least concealed; it stands out so plainly that it is not so much understood from the other crimes (which it is agreed are in him) as it is, by itself, used to prove the others, if any of them by chance is in doubt. What say you, gentlemen? Does that gladiator-trainer seem to you to have laid aside the sword altogether yet? Or this pupil to fall short of his master in the art by even a little? Their greed is the same, their dishonesty alike, their shamelessness identical, their audacity twin to each other.

¹¹⁹ Since you have learned the master's good faith, learn now the pupil's fairness. I have already said many times that two slaves were demanded by them for examination. You always refused, Titus Roscius. I ask you: were the men demanding it unworthy to obtain it? Or did the man for whom they demanded it not move you? Or did the matter itself seem to you unfair? They who demanded it were the noblest and most upright men of our state, whom I named earlier; men who have so lived, and are so reckoned by the Roman people, that whatever they say no one would not consider fair. They demanded it on behalf of the most wretched and unhappy of men, who himself would gladly hand himself over to torture, if only the matter of his father's death were investigated.

¹²⁰ Furthermore, the request was such that it made no difference whether you refused it or confessed the offence. Since this is so, I ask why you refused. When Sextus Roscius was killed, those slaves were on the spot. Of the slaves themselves I neither bring an accusation nor a defence, so far as concerns me. That I see you fighting against having them given up for examination is suspicious. That they are with you in such great honour, plainly they must know something which it would be ruinous to you if they said. — "It is unjust to question slaves against their masters." — But there is no such question; for Sextus Roscius is the defendant, and when he is on trial, the question is not against masters; you say that you are the masters. — "They are with Chrysogonus." — I believe it. By their letters and refinement Chrysogonus is so smitten that, among his own boys — chosen from so many elegant households for every delicacy and every art — he should wish these to take their place; men barely fit for labour, from the rustic discipline of an Amerian country household.

¹²¹ It is certainly not so, gentlemen; it is not likely that Chrysogonus has fallen in love with their letters or culture, or has come to know their

diligence and faithfulness in domestic affairs. There is something hidden, which the more eagerly it is suppressed and concealed by these men, the more it stands out and shows itself. What then?

¹²² Does Chrysogonus refuse the inquiry into them in order to conceal his own offence? By no means, gentlemen; I do not think everything fits everyone. So far as concerns me, I suspect nothing of that kind in Chrysogonus; nor is this the first time it occurs to me to say so. You remember that I divided the case at the beginning into the charge — whose whole argument was committed to Erucius — and the audacity, whose part was put upon the Roscii. Whatever there is of crime, of wickedness, of murder, that must be the property of the Roscii. The excessive influence and power of Chrysogonus we say obstructs us, and cannot in any way be borne, and ought, since the power has been given you, not only to be weakened but to be punished by you.

¹²³ I judge thus: he who wishes inquiry to be made of those who, it is agreed, were present when the murder was done, that man wishes the truth to be found; he who refuses, surely, even though he does not dare to say it in words, by the very fact confesses to his own offence. I said at the start, gentlemen, that I was unwilling to say more about their crime than the case demanded and necessity itself compelled. For many things can be brought up, and any one of them can be expounded with many arguments. But what I do unwillingly and from necessity, I cannot do at length nor in detail. Those things which could not be passed over I have lightly touched, gentlemen; those which depend on inferences which, if I begin to speak of them, would have to be set out at length, I leave to your own judgement and conjecture.

¹²⁴ I come now to that golden name of Chrysogonus, under which name the whole partnership has lain hidden; concerning whom, gentlemen, I am unable to find either how I shall speak or how I shall be silent. For if I am silent, I leave out the greatest part. If I speak, I am afraid that not he alone, which does not concern me, but many others may think themselves injured. Although the matter is so situated that, in my view, there is no great need for me to say anything bearing on the common cause of the confiscation-dealers, since this case is plainly new and singular. Chrysogonus is the buyer of Sextus Roscius's property.

¹²⁵ Let us first look at this: in what way was that man's property put up for sale, or in what way could it have been put up? And I shall

not ask this in the sense of saying that it is shameful that an innocent man's property was sold — for if such things may be heard and freely said, Sextus Roscius was not so great a man in the state that we should especially complain of him — but I ask this: how could it have been, even by that very law on the proscription, whether it is the *lex Valeria* or the *lex Cornelia* (for I do not know which, nor do I particularly know), how could the property of Sextus Roscius, even by that very law, have been sold?

¹²⁶ For they say it is written thus: "Either the property of those who have been proscribed shall be sold," in which number Sextus Roscius is not; "or of those who have been killed in the strongholds of the enemy." So long as there were any strongholds, he was in Sulla's. After everyone had laid down arms, while returning from supper at Rome, in a time of complete peace, he was killed. If by law, I confess that the property too was sold by law. But if it is established that he was killed against all laws, not only old but new, by what right or in what way or by what law was the property sold? — I ask.

¹²⁷ Against whom do I say this, you ask, Erucius? Not against the man you wish and think; for both my speech, from the start, and his own outstanding virtue have always cleared Sulla. I say that all this was done by Chrysogonus: that he lied; that he pretended Sextus Roscius had been a bad citizen; that he said he had been killed in the enemies' lines; and that he did not allow Lucius Sulla to be informed of these matters by the deputation of the Amerians. Finally, I even suspect this: that the property was not sold at all. Which, if you, gentlemen, allow, will be made plain hereafter.

¹²⁸ For I think there is in the law a date by which the proscriptions and sales should take place, undoubtedly the Kalends of June. Several months after that, the man was killed and the property is said to have been sold. Either the property never went into the public records at all (and we are being more cleverly mocked by this rascal than we suppose), or, if it did, the public records have been corrupted somehow; for that the property could not have been sold by law is plain. I am aware, gentlemen, that I am exploring these matters before their time, and almost wandering from my purpose — since, when I ought to be dressing the wound at the head of Sextus Roscius, I am attending to a hangnail. For he does not labour over money; nor does he take account of any private

advantage of his own. He thinks he will easily bear his poverty, if he is freed from this unworthy suspicion and fabricated charge.

¹²⁹ But I beg you, gentlemen, to listen to these few things that remain in such a way that you understand me to be speaking partly for myself, partly for Sextus Roscius. For what seems to me unworthy and intolerable, and what seems to me to concern us all unless we take care, that I declare for myself out of the feeling and the pain of my own mind. What concerns the case and circumstance of his life, and what he wishes to be said in his own behalf, and on what condition he is content — this you will hear, gentlemen, in the closing part of our speech.

¹³⁰ I, leaving Sextus Roscius aside, ask of Chrysogonus on my own account: first, why was the property of an excellent citizen sold? Then, why was the property of a man who was neither proscribed nor killed in the enemies' lines sold, when the law was written for these alone? Then, why was it sold so long after the day fixed in the law? Then, why was it sold for so paltry a sum? Of all this, if (as worthless and dishonest freedmen often do) he wishes to put the responsibility on his patron, he will achieve nothing; for everyone knows that, owing to the magnitude of events, many men did many things which Lucius Sulla either disapproved of or was unaware of.

¹³¹ Is it then permissible that something be passed over by oversight in matters of this kind? It is not permissible, gentlemen, but it is necessary. For if Jupiter, the best and greatest, by whose nod and judgement the heavens, the earth, and the seas are ruled, has often by violent winds, by immoderate storms, by excessive heat, by intolerable cold, harmed men, destroyed cities, and ruined crops — of which we suppose nothing was done for our destruction by divine plan, but by the very force and magnitude of things — yet by contrast, the advantages we use, the light we enjoy, the breath we draw, all these we see given and shared to us by him: what wonder is it, gentlemen, that Lucius Sulla, while he alone governed the commonwealth and ruled the world, while he was confirming by laws the majesty of empire which he had recovered by arms, could not notice some things? Unless this is wonderful: that human attention should fall short of what divine power cannot reach.

¹³² But, leaving aside what has already been done, can anyone fail to understand from what is being done now, at this very moment, that the whole architect and engineer is one man, Chrysogonus? — who saw to

it that Sextus Roscius's name was laid on the indictment, and for whose sake Erucius said he was bringing the prosecution... [a passage is missing here]... men in the Sallentine country or in Bruttium, where they can scarcely hear news three times in a year, suppose themselves to have a properly arranged household.

¹³³ The other comes down to you from the Palatine and his own house. He has, for his pleasure, a country estate near Rome and pleasant; many other estates besides, and not one of them but is splendid and close at hand. His house is stuffed with vessels of Corinth and Delos, among which is that "self-cooking" pot which he recently bought at such a price that, when passers-by heard the auctioneer enumerate the figure, they thought a farm was being sold. What besides of chased silver, of embroidered fabric, of painted panels, of statues, of marble do you suppose he has? As much, of course, as could be heaped together in one house from many splendid families amid the tumult and the plundering. As for his household of slaves, how large it is, and with what varied accomplishments, what shall I say?

¹³⁴ I pass over the common arts: cooks, bakers, litter-bearers. For the soul and the ear he keeps so many men that the whole neighbourhood resounds daily with the music of voices and strings and pipes, and with nightly revels. In this kind of life, gentlemen, what daily expenses, what extravagances do you suppose are going on? What sort of dinners? Honourable, no doubt, in such a house — if "house" is the word, rather than a workshop of vice and a lodging-place for every disgrace.

¹³⁵ You see, gentlemen, how the man himself flits about everywhere through the Forum, his hair carefully done and shining with oil, with a great train of toga-clad followers; you see how he despises everyone, how he counts no man a man beside himself, how he thinks himself alone happy, alone powerful. If I were to recount what he carries off and what he attempts, I am afraid, gentlemen, that some less informed person might suppose that I wished to wound the cause and the victory of the nobility. Although by my own right I may, if anything in this part of things does not please me, find fault with it; for I do not fear that anyone will think me to have been ill-disposed towards the cause of the nobility.

¹³⁶ Those who know me know that I, in proportion to my slender and weak share, after the thing I most desired could not be done — a settlement — chiefly defended this: that those should win who have won.

For who was there who did not see that lowness was contending with rank for greatness? In which contest it was the act of a desperate citizen not to join himself to those by whose preservation rank was retained at home and authority abroad. That this has been carried through, that to each man his honour and his place have been restored, I rejoice, gentlemen, and am very glad; and I understand that all this was done by the will of the gods, the zeal of the Roman people, and the planning, command, and good fortune of Lucius Sulla.

¹³⁷ That punishment was visited on those who fought against all reason, I cannot reproach. That brave men, by whose extraordinary work in the conduct of affairs, honour was given, I praise. I judge that the war was waged in order that these things might come about, and I confess that I was on that side in zeal of party. But if this was done, and arms were taken up, in order that the lowest men should be enriched out of others' money and should make assault on each man's fortunes, and if this is something which it is not permitted not only to forbid in fact but even to censure in words — then truly in this war the Roman people were not regenerated nor restored, but subdued and crushed.

¹³⁸ But it is far otherwise; nothing of all this is so, gentlemen. The cause of the nobility will not be wounded by your resisting these men, but rather adorned. For those who wish to find fault with these things complain that Chrysogonus has so much power. Those who wish to praise them recall that he has not been allowed it. And there is now nothing such that anyone is either so foolish or so wicked as to say: "I should have liked to have leave; I would have said this thing." Say it: you may. "I would have done this." Do it: nobody forbids you. "I would have voted thus." Vote, only correctly: everyone will approve. "I would have judged thus." Everyone will praise you, if you have judged rightly and in order.

¹³⁹ While there was need, and the situation itself compelled it, one man could do all things. Once he created magistrates and established laws, his own administration and authority have been restored to each. If those who have got it back wish to keep it, they will be able to retain it forever. But if they will either commit, or will approve of, these murders and lootings and these so great and so wasted expenditures — I do not wish to say anything heavier against them, even by way of omen — I say only this: unless our nobility are watchful and good and brave and merciful, they must necessarily yield those ornaments of theirs to men

who have these qualities.

¹⁴⁰ Wherefore let them at last cease to say that anyone has spoken ill, if anyone has spoken truly and freely; let them cease to make their cause common with Chrysogonus's; let them cease, if he is wounded, to think that anything has been taken from themselves; let them see how shameful and wretched a thing it is that those who could not endure the splendour of the equestrian order should be able to bear the domination of a worthless slave. Which domination, gentlemen, used to operate in other matters before, but now you see what road it is paving, what path it is aiming at: at trust, at the sworn oath, at your courts, at that which alone in our state remains, almost, sound and inviolate.

¹⁴¹ Does Chrysogonus think he can do something here too? Does he wish to be powerful here too? O wretched and bitter business! By Hercules, I do not take this with indignation because I fear he can do anything, but because he has dared, because he has hoped that, before such men, he could do anything for the destruction of an innocent man — this very thing I lament. Was it for this that the awaited nobility, with arms and steel, restored the commonwealth — that, at their pleasure, the freedmen and slaves of the nobility might harry our property, our fortunes, our very altars?

¹⁴² If that was done, I confess that I was wrong who preferred this to come about; I confess I was mad who agreed with them. Although unarmed, gentlemen, I did agree. But if the victory of the nobility ought to be an ornament and a benefit to the state and the Roman people, then in truth my speech ought to be most welcome to every best and noblest man. If anyone thinks that he himself and the cause are wounded when Chrysogonus is reproached, he does not understand the cause but knows himself well; for the cause becomes more splendid if every worthless man is resisted. Only that most dishonest supporter of Chrysogonus, who thinks he has a common reckoning with him, is wounded when, from the splendour of the cause, he is set apart.

¹⁴³ But all this speech of mine, as I said before, is mine, which the commonwealth and my own pain and the wrong of these men have compelled me to use. Sextus Roscius thinks none of this unworthy, accuses no one, complains nothing about his patrimony. He thinks — a man inexperienced in modes of life, a farmer and rustic — that all those things which you say were done by Sulla were done by custom, by law, by the

law of nations. Cleared of guilt and freed from the abominable charge, he wishes to leave you;

¹⁴⁴ if he is freed from this unworthy suspicion, he says he will bear with an equal mind being deprived of all his goods. He asks and beseeches you, Chrysogonus, if he has converted nothing of his father's most ample fortune to his own use, if in nothing he has defrauded you, if in entire good faith he has handed over, counted, weighed out everything of his to you, if he handed over to you the very clothing he wore and the ring on his finger, if he excepted nothing from anything but himself, naked — to allow him through your good will to live an innocent life among his friends in poverty.

¹⁴⁵ You possess my estates, I live by another's pity; I yield, both because my mind is even-tempered and because it is necessary. My house is open to you, closed to me; I bear it. You enjoy my huge household; I have no slave; I endure it and think it bearable. What more do you want? Why do you pursue me, why do you assail me? In what point do you suppose your wishes are wounded by me? Where do I cross your interests? What do I block in your path? If you wish to kill the man for the sake of the spoils, you have spoiled him; what more do you seek? If because of enmity, what enmities do you have with one whose estates you possessed before you knew him? If from fear, do you fear anything from one whom you see unable to ward off so great a wrong from himself? But if it is because the property which was Roscius's has become yours, and on that account you are eager to ruin this son of his — do you not show that you fear what, beyond all others, you ought not to fear: that some day the patrimony of the proscribed may be restored to their children?

¹⁴⁶ You do me wrong, Chrysogonus, if you place a greater hope of keeping your purchase in this man's destruction than in the things which Lucius Sulla has done. But if you have no reason why you should wish this wretched man to be afflicted with so great a calamity, if he has handed over to you everything except his life, and has reserved for himself nothing of his father's — not even by way of memorial — in the name of the immortal gods, what is this great cruelty, what so wild and savage a nature? What pirate was ever so unspeakable, what corsair so barbarous as, when he could have his prize whole and without bloodshed, to prefer to take the booty bloody?

¹⁴⁷ You know that this man has nothing, dares nothing, is capable of nothing, has never thought anything against your interest; and yet you assail one whom you cannot fear and ought not to hate, in whom you see nothing left that you can take. Unless you think it unworthy that he sits clothed in court, whom you yourself drove out of his patrimony as out of a shipwreck, naked. As if you did not know that he is fed and clothed by Caecilia, daughter of Balearicus, sister of Nepos, a woman of the greatest distinction, who, though she had a most distinguished father, the most renowned uncles, the most adorned brother, nevertheless, woman though she was, has so wrought by her excellence that, however much honour she received from their dignity, she gave back no smaller ornament to them by her own praise.

¹⁴⁸ Or do you think that, because he is being defended diligently, that is an unworthy fact? Believe me, if for the sake of the friendship and good will inherited from his father, all his guest-friends were willing to stand by him and to defend him freely, he would be defended copiously enough. But if, in proportion to the magnitude of the wrong, and in proportion to the fact that the very basis of the commonwealth is being tested in his danger, all these men were to claim it as their own, you would not, by Hercules, be permitted to stand in your present place. As it is, he is defended in such a way that the adversaries should not greatly take it amiss, nor consider themselves overborne by power.

¹⁴⁹ What needs doing at home is done through Caecilia. The business of the Forum and the court Marcus Messalla, as you see, gentlemen, has undertaken; who, if he had now sufficient age and strength, would himself be speaking for Sextus Roscius. Since age stands in the way of his speaking — and the modesty which adorns his age — he has handed the case over to me, whom he understood to wish, as I owed it, to take it up for his own sake; and he himself, by his constancy, his counsel, his authority, his diligence, has brought it about that the life of Sextus Roscius, snatched from the hands of the confiscation-dealers, has been committed to the votes of the jurors. For surely, gentlemen, on behalf of this kind of nobility the greater part of the state was in arms; this was what we fought for, that those nobles should be restored to the state who would do what you see Messalla doing: defend the head of the innocent, resist injustice, would rather show what they could do for another's safety than for his ruin. And if all who were born into the same rank did the same, both the

commonwealth would suffer less from them, and they less from envy.

¹⁵⁰ But, gentlemen, if we cannot prevail upon Chrysogonus to be content with our money and not to seek our life — if he cannot be brought to this, that, having taken from us all that was peculiarly ours, he should not also wish to snatch from us this common light — if it is not enough for him to glut his greed with money, unless blood too has been offered to his cruelty — then the one refuge, the one hope left to Sextus Roscius, gentlemen, is the same as that left to the commonwealth: your old goodness and pity. If these remain, we can still even now be saved; but if that cruelty which has been at work in the commonwealth at this time hardens and embitters even your minds — which surely cannot happen — it is finished, gentlemen; better to spend one's life among wild beasts than in such great savagery.

¹⁵¹ Were you reserved, were you chosen for this purpose — to condemn those whom the confiscation-dealers and cut-throats could not slaughter? Good generals do this when they engage in battle: in the place where they think the enemy's flight will be, they station soldiers to fall, unforeseen, upon any who flee from the line. Just so, I take it, these confiscation-buyers think that you, men of this calibre, sit here to receive those who have escaped from their hands. May the gods forbid, gentlemen, that what our ancestors wished to be called "the public council" should be reckoned the bodyguard of confiscation-dealers!

¹⁵² Do you not understand, gentlemen, that nothing else is being done than that the children of the proscribed should be removed by every method, and that the beginning of this is being sought in your sworn oath and in Sextus Roscius's danger? Is it doubtful to whom the offence belongs, when on one side you see a confiscation-dealer, an enemy, an assassin — and at the same time a prosecutor in this case — and on the other a destitute son, well-regarded by his own people, in whom not only no fault, but not even any suspicion, has been able to take hold? Do you see anything else here standing against Roscius except that his father's property has been sold?

¹⁵³ If you take this on yourselves, and offer your service to that purpose — if you sit here so that the children of those whose property was sold shall be brought to you — by the immortal gods, gentlemen, take care that a new and far more cruel proscription be not seen to be inaugurated through you. That earlier one which was made against those who

could take up arms, the Senate nevertheless was unwilling to undertake, lest something sharper than ancestral practice should seem to be done by public counsel. This other one, which extends to their children and to the cradles of their infants — unless by this present judgement you reject it and turn from it, by the immortal gods, see to what point you suppose the commonwealth must come.

¹⁵⁴ Wise men, endowed with the authority and power that you have, ought above all to apply remedies to the things from which the commonwealth most suffers. There is no one of you who does not understand that the Roman people, who once were thought most lenient towards their enemies, at this moment suffer from cruelty at home. Take this away from the state, gentlemen; do not allow it to go on any longer in this commonwealth; which has not only this evil in it, that it has carried off so many citizens most atrociously, but even this — that it has taken away the capacity for pity from the gentlest of men, by the habit of these afflictions. For when at every hour we see or hear of something atrocious being done, even those of us who are by nature most mild lose, by the constancy of these troubles, all sense of human feeling from our minds.

FOR QUINTUS ROSCIUS THE COMIC ACTOR

*Pro Q. Roscio Comoedo*76 BC

Date disputed — somewhere between c. 76 and 66 BC — and the opening of the speech is lost. A civil case before the iudex C. Calpurnius Piso over a partnership dispute. Cicero defends the famous comic actor Quintus Roscius (no relation to Sextus Roscius of Ameria) against the plaintiff Gaius Fannius Chaerea, who sought fifty thousand sesterces on a claim arising from a joint ownership in the slave-actor Panurgus, whom Roscius had trained and Flavius of Tarquinii had killed. The speech is narrowly technical — on Roman partnership law, account-books, formulae, and the difference between iudicium and arbitrium — but is also Cicero's warmest tribute to a friend, calling Roscius "more worthy of the senate house by his self-restraint than of the stage by his art." It is incomplete at the close.

¹ ...natural malice would have to be assumed. He, naturally, — excellent man, endowed with singular good faith — in his own case is trying to use his own account-books as witnesses. Those who have entered a sum charged against an honourable man on their books generally say: "Could I have corrupted such a man, that he should make a false entry in the day-book on my account?" I am waiting for the moment when Chaerea will use this very line: "Could I have driven this hand of mine, full of treachery, and these fingers of mine, to write up a false entry?" If he produces his own books, Roscius will produce his too. The entry will be in his books; in this man's it will not be.

² Why is the one to be believed rather than the other? — "He would have written it, if he had not entered the sum at this man's bidding?" — "Would my client not have written what he had given orders to be entered as charged against him? For just as it is shameful to write down what is not owed, so it is dishonest not to enter what you do owe. The book of the man who did not enter what is true is condemned just as much as the book of the man who entered what is false." But, relying on the abundance and capacity of my case, see how far I will go: if Gaius

Fannius produces his books of receipts and expenses, written for his own purpose at his own discretion, I will not refuse to have you decide in his favour.

³ What brother grants this to brother, what father to son: that whatever he had entered should be held ratified? Roscius will hold it ratified. Produce them. Whatever has persuaded you will persuade him; whatever has been proven to you will be proven to him. A little while ago we were demanding the books of Marcus Perpenna, of Publius Satrius. Now, Gaius Fannius Chaerea, we are pressing for yours alone, and we are not refusing that the case be decided in accordance with them. Why then do you not produce them?

⁴ Does he not keep books? On the contrary, very meticulously. Does he not enter small sums in his day-book? On the contrary, every sum. Is this entry slight and trifling? It is fifty thousand sesterces. How is it that you have so great a sum of money lying out of your account? How is it that fifty thousand sesterces are not in the book of receipts and expenses? By the immortal gods! Is anyone endowed with such audacity that, what he is afraid to enter into his books as a debt, he dares to claim; what he was unwilling to enter into the day-book unsworn, he does not hesitate to swear to in litigation; what he cannot prove to himself, he tries to persuade another of?

⁵ He says I am too quick to be indignant about the books. He admits that this entry is not in the book of receipts and expenses, but contends that it stands in the rough waste-book. Is your love of yourself, your magnificent self-regard, so great that you claim money not from your books but from your waste-book? To recite your own day-book in the place of evidence is arrogance; to produce a waste-book of your own scribbles and erasures — is that not insanity?

⁶ If the waste-book has the same force, care, and authority as the proper book, what is the point of keeping a day-book, of writing it up, of preserving the order, of handing the antiquity of the records to memory? But if, because we trust the waste-book in nothing, we have therefore established the writing of a day-book — shall what is even universally regarded as light and weak be considered weighty and inviolate before a judge? What is the reason that we write the waste-book carelessly?

⁷ What is the reason we make up the day-book diligently? For what reason? Because the waste-book is monthly, the books are eternal; the

waste-book is rubbed out at once, the books are kept inviolate; the waste-book embraces the memory of a small time, the books embrace the trust and conscience of a perpetual estimation; the waste-book is scattered, the books are made up in order. So no one ever produced his waste-book in court; he produced his day-book; he read out his books. You, Gaius Piso, adorned with such good faith, virtue, gravity, authority, would not dare to claim money out of a waste-book.

⁸ I ought not to dwell longer on what is plain by custom. But what very much concerns the matter, I ask: how long ago, Fannius, did you enter this sum into your waste-book? He blushes; he does not know what to answer; he has no fiction ready on the spur of the moment. "It is two months now," you will say. Even so, it should have been transferred to the book of receipts and expenses. "More than six months." Why has this entry been lying so long in the waste-book? What if it is now more than three years? How is it that, when all who keep books transfer to them their accounts almost monthly, you allow this entry to lie more than three years in the waste-book?

⁹ Have you the rest of your entries digested into a book of receipts and expenses or not? If not, how do you keep books at all? If you have, why, when you were entering all the others in order, did you leave this entry — which was among the largest — for more than three years in the waste-book? You did not wish it to be known that Roscius owed you this. Then why were you writing it down at all? You had been asked not to enter it. Then why did you have it written in the waste-book? But although I see that all this is firm enough, still I cannot satisfy myself unless I take from Gaius Fannius's own self the testimony that this money is not owed to him. What I attempt is great; what I promise is hard. Unless Roscius shall have the same man as both adversary and witness, I do not wish him to win.

¹⁰ A definite sum was owed you, which is now claimed before the iudex (the judge in the case of a definite sum), in which a sponsio (the legal stake) for the lawful share has been entered. If here you have claimed even one sesterce more than was owed you, you have lost your case — because a iudicium (a trial of definite sum) is one thing, an arbitrium (an arbitration of an indefinite claim) another. The iudicium is for definite money, the arbitrium for indefinite. To the iudicium we come in such a way as to obtain or to lose the entire suit. To the arbitrium we approach

in such a frame of mind as to get neither nothing nor as much as we asked for. The very words of the formula are evidence of this.

¹¹ What is in the iudicium? It is direct, harsh, simple: "If it appear that one thousand sesterces ought to be paid..." Here, unless he makes it plain that one thousand sesterces are owed him to the last farthing, he loses his case. What is in the arbitrium? Mild, moderate: "However much it is more equitable and better that be paid." There the claimant himself confesses that he is asking for more than is owed; but he says he has more than enough in what is granted to him by the arbitrator. So the one trusts in his case, the other distrusts.

¹² Since this is so, I ask you why you, of all things, made an arrangement to refer this money — these very fifty thousand sesterces, the credit of your books — to a compromise; why you took an arbitrator under the formula "however much it is more equitable and better that be paid," and on the further pledge "if such be found." Who, in this matter, was the arbitrator? Would that he were even at Rome! He is at Rome. Would that he were here in court! He is here. Would that he sat on the council of Gaius Piso! He is Gaius Piso himself. Were you taking the same man as arbitrator and as judge? On the same man you were calling for unlimited indulgence and binding him to the narrowest formula of the sponsio? Who ever obtained from an arbitrator as much as he asked? No one — for he asked for as much as it was equitable should be given him. The matter on which you went to an arbitrator, you have come on to the iudex! Other people, when they see their case is shaky before the iudex,

—
¹³ take refuge with the arbitrator: this man dared to come from the arbitrator to the iudex! And when he took an arbitrator about the credit of the books for this very money, he had judged that the money was not owed him. Two parts of the case are already wrapped up: he says he did not pay the sum down; he does not say he entered it as a debt — since he does not read out the books. It remains only that he should say that he had a stipulatio (a formal verbal contract); for besides this I do not see how he can claim a definite sum. You stipulated — where, on what day, at what time, in whose presence?

¹⁴ Who says that I made a sponsio? No one. Were I to make an end of speaking here, I should seem to have done enough for my own credit and care, enough for the case and the controversy, enough for the

formula and the sponsio, enough also for the iudex — to show that judgement ought to be given for Roscius. A definite sum was claimed; with the third part the sponsio was made. This money must necessarily either have been given, or entered as a debt, or stipulated. That it was not given, Fannius admits; that it was not entered as a debt, Fannius's books confirm; that it was not stipulated, the silence of the witnesses concedes. What then?

¹⁵ Because both the defendant is the man for whom money has always been the lightest of things and reputation the most inviolate, and the iudex is one whom we wish to think well of us no less than to give judgement for us, and the body of advocates here is such that, on account of its remarkable distinction, we ought to revere it as a single iudex, we shall speak as if all lawful trials, all honorary arbitrations, all duties of household life were summed up and enclosed in this formula. The earlier speech was necessary; this will be voluntary. The earlier was for the iudex, this is for Gaius Piso; the earlier was for the defendant, this is for Roscius; the earlier was prepared for the sake of victory, this for the sake of his good name.

¹⁶ You claim money, Fannius, from Roscius. What money? Say it boldly and openly. Is it what is owed you out of the partnership, or what was promised and held out to you out of his liberality? The first is graver and more odious, the latter slighter and easier. What is owed out of the partnership? What say you? This is now no light matter, nor to be carelessly defended. For if there are any private trials of the highest reputation and almost (I would say) of life and death, these are three: of fiducia (trust), of tutela (guardianship), of societas (partnership). For it is equally treacherous and unspeakable to break the faith which sustains life, to defraud a ward who has come into your guardianship, and to deceive a partner who has joined you in business. Since this is so, —

¹⁷ let us consider who it is that has cheated and deceived a partner. The life lived already will at this point silently give a firm and weighty witness, in one direction or the other. Quintus Roscius? What say you? Is it not so, just as fire thrown into water is at once put out and cooled, so that a hot false charge dropped into the purest and chastest life is at once extinguished and dies? Roscius cheated a partner! Can this offence cling to this man? — a man who, by Hercules — and I say it boldly — has more good faith than art, more truth than discipline; whom the Roman

people consider a better man than an actor; who is so worthy of the stage by his art that he is no less worthy of the senate house by his self-restraint.

¹⁸ But why am I so foolish as to speak of Roscius before Piso? An unknown man, surely, I am commending in many words! Is there anyone of all men of whom you think more highly? Is there anyone who seems to you purer, more modest, kindlier, more dutiful, more generous? What of you, Saturius, who come against him — do you think otherwise? As often as you have hit upon his name in the case, have you not as often called him a good man and named him with respect — which no one is accustomed to do for any but a most honourable or most friendly man?

¹⁹ In which matter you have struck me as ridiculously inconsistent — that you wound and praise the same man, and call him both a most excellent gentleman and a most dishonest one. The same man you addressed with respect, called a leading man, and accused of having cheated a partner? But, I take it, you assigned the praise to truth and the charge to favour. About him, you said what you thought; the case you conducted at Chaerea's discretion. Roscius cheated! It is absurd to all ears and minds. What if at last he had encountered some timid, witless, rich, lazy man unable to take legal action, —

²⁰ even so, it would be incredible. But let us look at whom he is supposed to have cheated. Roscius cheated Gaius Fannius Chaerea! I beg and beseech you, you who know them, to compare the lives of the two with each other; you who do not know them, to consider the face of each. Does not his very head, and those eyebrows shaved away to the skin, seem to reek of malice and to cry out cunning? From the tips of his toes to the very crown of his head, if the silent figure of the body offers any inference to men, does he not seem entirely composed of fraud, deceit, and lies? — a man who has his head and eyebrows always shaved that he may be said to have not a hair of a good man on him; whose character Roscius has finely played on the stage — and yet receives no equal gratitude in return for the favour. For when he plays that most dishonest and most perjured pander Ballio, he plays Chaerea: that filthy, foul, hateful character is impressed in this man's manners, nature, and life. Why he should think Roscius like himself in fraud and malice I can scarcely see, unless perhaps because he sees how splendidly Roscius plays his part in the role of the pander.

²¹ For this reason, again and again, Gaius Piso, consider who is said

to have cheated whom. Roscius Fannius! What is this? An honest man cheating a dishonest one, a modest one an immodest, a chaste one a perjurer, an unskilled one a cunning one, a generous one a greedy one? Incredible. Just as, if Fannius were said to have cheated Roscius, both things would seem likely from each man's character — both that Fannius did it through malice and that Roscius was deceived through unwariness — so, when Roscius is charged with having cheated Fannius, both are incredible: both that Roscius sought anything through avarice, and that Fannius lost anything through goodness.

²² Such are my opening points; let us look at the rest. Quintus Roscius cheated Fannius of fifty thousand sesterces. Why? Satrius smiles, the old fox, as he supposes; he says, "for the sake of those very fifty thousand." I see; but I ask why he was so violently set on those very fifty thousand. For you, Marcus Perpenna, you, Gaius Piso, surely fifty thousand would not have weighed so much as to make you cheat a partner. Why fifty thousand should have meant so much to Roscius — I ask the cause. Was he in want? On the contrary, he was wealthy. Was he in debt? On the contrary, he was managing his own money freely. Was he greedy? On the contrary, even before he was wealthy, he was always most generous and most munificent.

²³ By the faith of gods and men! He who refused to make 250,000 sesterces a year as profit — for he could and ought to have earned 250,000 sesterces, if Dionysia can earn 200,000 — he, by the highest fraud and malice and treachery, hunted after fifty thousand? And the one was a vast sum, the other a tiny one; the one honourable, the other sordid; the one pleasant, the other bitter; the one his own, the other staked on a case at law. In these last ten years he could most honourably have earned 6,000,000 sesterces. He refused. He took on the labour of profit; he rejected the profit of his labour. He has not yet stopped serving the Roman people; he stopped serving himself long ago.

²⁴ Would you, Fannius, ever have done this? If you could have taken in such profits, would you not at the same moment have been performing both gestures and your last gasp? Now you say that you have been swindled out of fifty thousand sesterces by Roscius — a man who refused such great and unlimited sums, not from idleness in labour, but from the magnificence of his generosity! Why should I now mention what I am sure occurs to you? Roscius cheated you in a partnership! There are laws,

there are formulas established about everything, so that no one may err either in the kind of injury or in the form of the action. Formulas for every man's loss, pain, inconvenience, calamity, injury have been formed by the praetor publicly, to which a private suit is fitted.

²⁵ Since this is so, I ask why you did not haul Quintus Roscius before an arbitrator under the formula "for partnership." Did you not know the formula? It was very well known. Did you not wish to test it in a serious trial? Why? On account of old intimacy? Why then are you wounding him? On account of the man's integrity? Why then are you accusing him? On account of the gravity of the offence? Indeed? The man whom you could not catch by arbitrator — where the trial would have been on the very point — you will condemn him by iudex, where there is no arbitrium on the point at all? Either bring this charge where you may bring it, or do not throw it about where you ought not. And yet by your own testimony the charge has already been removed; for at the time when you refused to use that formula, you indicated that this man had committed no fraud upon the partnership. For tell me: do you have your books or not? If not, how is there a contract?

²⁶ If you have them, why do you not name them? Now say that Roscius asked you to take his close friend as arbitrator! He did not ask. Say that he made a deal that he should be acquitted! He made no deal. Ask why he was acquitted! Because he was a man of the highest innocence and integrity. For what happened? You came of your own accord to Roscius's house, you settled the matter; for what you had rashly entered upon, you asked him to forgive you for serving the citation; you said you would not appear; you cried out that he owed you nothing on account of the partnership. He gave notice to the iudex of this. He was acquitted. And yet you dare to make mention of fraud and theft? He persists in his shamelessness. "He had made a contract with me," he says. To prevent his being condemned, of course. What reason had he to fear condemnation? — the matter was plain, the theft open.

²⁷ Of what theft? He begins, with great expectation, to expound the partnership of the old actor. "Panurgus," he says, "was Fannius's; he becomes shared between him and Roscius." Here Saturius first complained, not lightly, that Panurgus was made joint-property gratis with Roscius, when he had been Fannius's by purchase. Of course Fannius — generous, dissolute, overflowing with kindness — gave him as a gift to

Roscius. So I take it.

²⁸ Since he stopped here a little, I too must dwell here a little. You say, Saturius, that Panurgus was Fannius's own. I, on the contrary, contend that he was wholly Roscius's. For what was Fannius's? The body. What was Roscius's? The training. The face was nothing; the art was costly. As the part that was Fannius's, he was not worth a thousand sesterces; as the part that was Roscius's, he was worth more than 200,000. For nobody looked at him from the trunk of his body; everyone valued him by the comic art — for those limbs by themselves could not earn more than the prentice's pay; the training, which had been imparted by my client, hired itself out for no less than 200,000.

²⁹ What an unfair, unworthy partnership, where one brings a thousand to the partnership and the other 200,000! Unless that is why you take it ill: that you brought a thousand out of the strongbox, and Roscius drew 200,000 from the training and the art. For what hope and expectation, what zeal and what favour Panurgus brought with him onto the stage — being Roscius's pupil! Those who esteemed him favoured the pupil; those who admired him approved the pupil; those, finally, who had heard his name reckoned the pupil polished and finished. So is the multitude: it judges few things from truth, many from opinion.

³⁰ Few took notice of what he knew; everyone asked where he had learned it. They thought that nothing depraved or perverse could be put forth by this man. If Panurgus had come from Statilius, even though he surpassed Roscius in art, no one could have looked at him; for no one would think that, just as a good son cannot be born of a worthless father, a good comic actor can come from a wretched one. Because he came from Roscius, he seemed to know even more than he knew. The same recently happened with Eros the actor: who, after he was hissed off the stage — not only with whistles, but with abuse — took refuge as at an altar in this man's house, his discipline, his patronage, his name. So in a very short time, one who had not been even among the latest actors came to the foremost rank of comic players.

³¹ What lifted him up? The single recommendation of this man — who nevertheless took the famous Panurgus into his home, not just so that he could be called Roscius's pupil, but trained him at the cost of the highest labour, frustration, and suffering. For the cleverer and more talented a man is, the more irritably and laboriously he teaches; for what

he himself grasped quickly, when he sees it slowly perceived, he is racked. My speech has been carried a little farther, that you may exactly know the condition of the partnership.

³² What followed then? "Panurgus," he says, "this slave of ours in common, was killed by a certain Quintus Flavius of Tarquinii. In this matter," he says, "you appointed me your representative. The suit having been registered, the trial for unlawful damage having been set up, you settled with Flavius without me." For half my share, or for the whole? Let me put it more plainly: for myself, or both for myself and for you? For myself; I could do so by the example of many; it was permitted; many have done so by right; in that I did you no injury. Sue for your own; demand and carry off what is owed; let each man hold and pursue his share of the right. — "But you have managed your business well." — Manage your own well too. — "You settled your half for a great sum." — Settle your half for a great sum too. — "You took five hundred thousand sesterces." — So be it; take you five hundred thousand too.

³³ But this settlement of Roscius's, you may exalt by speech and by impression; in fact and in truth you will find it ordinary and slight. For he received a piece of land in those times when prices of estates were lying low; an estate which had no farmhouse and was not under cultivation in any part; which is now worth far more than it was then. And no wonder. For at that time, owing to the calamities of the commonwealth, the holdings of all were uncertain; now, by the kindness of the immortal gods, the fortunes of all are settled. Then the land was uncultivated, without a roof; now it is most fully cultivated, with the best of farmhouses.

³⁴ But, since you are so malevolent by nature, I will never free you from that worry and care. Roscius transacted his business splendidly, took away a most productive estate; what is that to you? Settle your half-share, however you please. Here he changes his ground and tries to feign what he cannot prove. "You settled the whole matter," he says. So the whole case is reduced to this: whether Roscius made the agreement with Flavius for his own share or for the entire partnership. For I confess that,

³⁵ if Roscius touched anything in the joint name, he ought to render it to the partnership. He acquired the partnership's suit, not his own private one, when he received the farm from Flavius. Why then did he not give security that no one further should claim a sesterce? He who set-

ties for his own share leaves intact the action of the rest; he who settles on behalf of partners gives security that none of them shall claim afterwards. Why did it not occur to Flavius to take security for himself? He must, of course, not have known that Panurgus was in the partnership. He did know. He did not know that Fannius was Roscius's partner. Excellent — for Fannius too had a suit registered with him.

³⁶ Why then does he settle and not take a counter-stipulation that no one shall claim further? Why does he depart from the farm and is not acquitted in the iudicium? Why does he act so unskilfully as to bind Roscius by no stipulation, nor to be acquitted by Fannius in court?

³⁷ This is, first, both from the condition of the law and from the customs of legal precaution, the firmest and weightiest argument, which I would embrace at greater length, were I not to have other surer and clearer testimonies in the case. And, lest you should declare that I have promised this in vain, I will, you yourself, Fannius, raise from your benches as witness against yourself. What is your charge? That Roscius settled with Flavius on behalf of the partnership. When? Fifteen years ago. What is my defence? That Roscius transacted with Flavius for his own share. You give a counter-promise to Roscius three years ago. What? Read out that counter-stipulation more plainly. Pay attention, please, Piso. I am compelling Fannius, unwilling and twisting this way and that, to give witness against himself. For what does the counter-stipulation cry out? "Whatever I shall have got from Flavius, I promise to pay half of it to Roscius." This is your voice, Fannius.

³⁸ What can you take from Flavius, if Flavius owes nothing? What is this man now further stipulating about, what he has already long ago himself collected? Why, indeed, will Flavius give you anything, who has paid Roscius all that he owed? Why, in a matter so old, in a business already finished, in a partnership dissolved, is this new counter-stipulation slipped in? Who is the writer of this counter-stipulation, witness, and arbiter? You, Piso. For you asked Quintus Roscius, on account of his service and labour as representative, on account of his attendance at the citations, to give Fannius fifty thousand sesterces, on this condition: that, if he should obtain anything from Flavius, he should pay half of it to Roscius. Does the very counter-stipulation seem to you to say plainly enough that Roscius settled for himself?

³⁹ But perhaps it may occur to you that Fannius re-promised Roscius

half of what he should obtain from Flavius, but obtained nothing at all. What of it? You ought to look not at the issue of the collection but at the beginning of the re-promise. Even if Fannius judged it not worth pursuing, then on his side he judged that Roscius had won his own private suit, not the partnership's. What if, at long last, I make this plain — that, after Roscius's old settlement, after this recent counter-promise of Fannius for fifty thousand sesterces, Fannius did obtain that fifty thousand from Flavius in the name of Panurgus? Will he still dare to mock the good name of an excellent man, *Quintus Roscius*?

⁴⁰ A little while ago I was asking — and the question was very much to the point — why Flavius, when he was making a settlement of the whole suit, did not take adequate security from Roscius nor get acquittal in court from Fannius. Now, indeed — which is wonderful and incredible — I ask: why, when he had settled the entire matter with Roscius, did he separately pay fifty thousand to Fannius? At this point, Saturius, what you can answer I am eager to know: whether Fannius did not at all obtain fifty thousand from Flavius, or obtained it on some other heading and on some other ground.

⁴¹ If on some other ground, what business had you with him? None. Was he condemned to you? No. I am wasting my time in vain. "He did not obtain fifty thousand from Flavius at all," he says, "neither in Panurgus's name nor in anyone's." If I make it plain that, after this recent stipulation of Roscius's, you took fifty thousand from Flavius, is there anything for it but that you should depart from court most disgracefully beaten? With what witness, then, shall I make this plain?

⁴² The matter, I take it, had come into court. Certainly. Who was the plaintiff? Fannius. Who was the defendant? Flavius. Who was the iudex? Cluvius. Of these, one I must produce as witness, who shall say that the money was paid. Which is the weightiest of these? Without controversy, the iudex — a man approved by the verdict of all. Which of these three, then, will you expect from me as witness? The plaintiff? It is Fannius; he will never give evidence against himself. The defendant? It is Flavius. He died long ago; if he were alive, you would hear his words. The iudex? It is Cluvius. What does he say? That Flavius paid fifty thousand sesterces to Fannius in the name of Panurgus. If you regard him by the census, he is a Roman knight; if by his life, a man of the highest

distinction; if by good faith, you took him as iudex; if by truth, what he could and ought to know, he has said.

⁴³ Deny — come, deny it now — that one ought to believe a Roman knight, an honourable man, your own iudex! He looks around, he is in a sweat, he denies that we shall read out Cluvius's testimony. We will read it. You are mistaken; you console yourself with an empty and slender hope. Read the testimony of Titus Manilius and Gaius Luscus Ocrea, two senators, men of the highest distinction, who heard from Cluvius. Testimony of Titus Manilius and Gaius Luscus Ocrea. Are you saying that one ought not to believe Luscus and Manilius, or also that Cluvius is not to be believed? I will say it more plainly and openly. Is it that Luscus and Manilius did not hear anything about the fifty thousand from Cluvius, or that Cluvius told a falsehood to Luscus and Manilius? On this point I am of an untroubled and quiet mind, and I am not greatly concerned how your answer falls; for by the firmest and most inviolate testimonies of the best men, the case for Roscius is fortified.

⁴⁴ If you have already made up your mind whose oath-bound testimony to deprive of credit, answer. Do you say Manilius and Luscus are not to be believed? Say it; dare to. It is the voice of your stubbornness, your arrogance, and your whole life. What are you waiting for — when am I going to say that Luscus and Manilius are senators by rank, advanced in years, by nature inviolate and devout, well-furnished and rich in family resources? I will not do it; I will not detract from myself anything, when I give back to those of mature age the very strict reward they have earned. My young manhood needs their good opinion more than their most rigorous old age desires my praise.

⁴⁵ You, Piso, must deliberate long and digest carefully which to believe rather: Chaerea, unsworn, in his own suit, or Manilius and Luscus, sworn, in another's case. It remains for him to contend that Cluvius told a falsehood to Luscus and Manilius. If he does that — with what shamelessness! — will he reject as witness the man he approved as iudex? Will he say that the man he himself trusted ought not to be believed? Will he weaken before the iudex the trust of the witness on whose good faith and devoutness he chose him as iudex? The man whom, if I tendered him as iudex, he ought not to refuse, will he dare reproach when I produce him as witness?

⁴⁶ "But he speaks unsworn," he says, "to Luscus and Manilius." If

he were speaking sworn, would you believe him? But what is the difference between a perjurer and a liar? He who is in the habit of lying is in the habit of perjuring himself. The man whom I can lead to lie, I can easily prevail on to perjure. For he who has once turned aside from truth is accustomed to be brought to perjury with no greater compunction than to lying. For who is moved by a deprecation of the gods, but not by the trust of conscience? Therefore, the punishment which the immortal gods established for the perjurer, the same is established for the liar; for not from the agreement of the words by which the oath is comprehended, but from the treachery and malice by which an ambush is laid for someone — this is what the immortal gods are accustomed to be angry with men over, and to take ill.

⁴⁷ But I, on the contrary, contend: Cluvius's authority would be slighter if he spoke sworn than it is now, when he speaks unsworn. For then perhaps he might seem to wicked men too eager to be a witness in a matter where he had been iudex; now to all but the unjust he must necessarily seem most chaste and most consistent, who tells what he knows to his close friends.

⁴⁸ Say now, if you can, if the case, if the matter allows, that Cluvius lied! Did Cluvius lie? Truth herself laid her hand on me and forced me to stand and pause a little. Whence comes this whole made-up and confected lie? Roscius, of course, is a clever and crafty man. With this beginning he started to think: "Since Fannius is suing me for fifty thousand sesterces, I will ask Gaius Cluvius, a Roman knight, a most distinguished man, to lie on my account; to say that a settlement was made which was not made; to say that fifty thousand was paid by Flavius to Fannius which was not paid." This is the start of a dishonest mind, of a wretched intellect, of no judgement.

⁴⁹ What then? After he had splendidly fortified himself, he came to Cluvius. What kind of man? A light one? On the contrary, the gravest. A volatile one? On the contrary, the most consistent. An intimate? On the contrary, an utter stranger. After he had greeted him, he began, blandly and elegantly no doubt, to ask: "Lie on my account; in the presence of the best men, your own intimates, say that Flavius settled with Fannius about Panurgus when he made no settlement; say that he paid fifty thousand who paid not a sesterce." What did the other reply? "I will indeed lie eagerly and willingly on your account; and, if you should ever

wish me to commit perjury, that you may save yourself a trifle, know that I shall be ready. There was no need to take so much trouble and come to me; you could have transacted by messenger this matter, which was so trifling.”

⁵⁰ By the faith of gods and men! Would Roscius ever have asked this from Cluvius, even if it were a hundred million sesterces in court? Would Cluvius have granted it to Roscius’s request, even if he were sharing in the whole booty? Hardly, by Hercules, would you, Fannius, dare to ask this of Ballio or someone like him, and obtain it. What is false in fact, is also incredible in reason; for I forget that Roscius and Cluvius are men of the first rank; for the sake of argument I imagine them dishonest.

⁵¹ Roscius suborned Cluvius as a false witness! Why so late? Why when the second instalment was being paid, not when the first was? For he had already paid fifty thousand before. Then, if Cluvius had already been persuaded to lie, why did he say that fifty thousand — rather than 300,000 — had been given by Flavius to Fannius, when by the counter-stipulation half of that would have been Roscius’s? You see now, Gaius Piso, that Roscius asked nothing for himself except for himself, nothing for the partnership. Since Satrius perceives this is plain, he does not dare to resist and fight against the truth, but finds another by-way of fraud and ambush in the same track.

⁵² “I confess,” he says, “that Roscius asked his own share from Flavius; I grant that he left Fannius’s free and intact; but I contend that what he collected for himself became common to the partnership.” Nothing more captious or more unworthy can be said. For I ask: could Roscius claim his share out of the partnership or not? If he could not, how did he take it? If he could, how did he not collect it for himself? For what is sued for for one’s self, certainly is not collected for another.

⁵³ Or is it so: if he had sued for what was the partnership’s, all should have shared equally what was then realised; now, since he sued for what was his own share, is what he then took to be regarded as collected for himself alone? What is the difference between the man who litigates on his own behalf and the man who is appointed cognitor (a procurator)? He who registers a suit on his own brings it for himself alone; for another no one can, except one who is made cognitor. Indeed? If he had been your cognitor, what he had won by the trial you would carry off as your own; when he sued in his own name, what he carried off you say he did

not collect for himself but for you?

⁵⁴ If anyone can sue for another who has not been made cognitor, I ask: why, when Panurgus was killed and the suit registered with Flavius for unlawful damage, did you become cognitor of Roscius in that suit, especially since on your reasoning whatever you sought for yourself you sought for him, whatever you collected for yourself fell to the partnership? But if nothing of what you obtained from Flavius would have come to Roscius unless he had given you as cognitor in his own suit, nothing of what Roscius collected for his own share ought to come to you, since he has not been made your cognitor.

⁵⁵ For what will you be able to answer, Fannius? When Roscius transacted with Flavius about his own share, did he leave you your action or not? If he did not leave it, how did you afterwards collect fifty thousand from him? If he left it, why do you ask of him what you ought to pursue and demand for yourself? For partnership is most like, and almost the twin of, inheritance. Just as a partner has a share in the partnership, so an heir has a share in the inheritance. As an heir sues for himself alone, not for his coheirs, so a partner sues for himself alone, not for his partners; and just as each sues for his own share, so he discharges for his own share — the heir from the share by which he came to the inheritance, the partner from the share by which he entered the partnership.

⁵⁶ As Roscius could in his own name forgive his share to Flavius, so that you should not claim it, so when he claimed his own share and left you the action whole, he is not bound to share with you, unless perhaps, by some perverted custom, what is his you cannot extort from another but you can snatch from him. Saturius persists in his opinion, that whatever a partner sues for himself becomes the partnership's. If that is so, by what folly, in heaven's name, did Roscius act, when, on the counsel and authority of jurists, he carefully took back a counter-stipulation from Fannius that he should pay him half of what he should obtain from Flavius — if indeed, even without security and counter-promise, Fannius nonetheless owed it to the partnership, that is, to Roscius? * * * * *

A note on the text

The Latin texts translated in this book are drawn from the Perseus Digital Library and, where Perseus does not yet hold a work, from the Latin Library. The order of the works follows the date of their composition or delivery as attested by ancient sources and the standard scholarly chronologies. Where dating is disputed — which is the case for many of the letters and a few of the early speeches — the choice has been recorded in the entry's metadata in the project repository (`meta/works.yaml`), and the contested date is flagged in the headnote.

Section numbers in the margin are those of the standard scholarly editions (Teubner and Oxford Classical Texts) and are how the works are cited in the secondary literature.

Glossary of names

To follow. A glossary of the principal Romans, Greeks, and institutions named in the text will be assembled once the corpus is more fully translated.

Index

To follow. A subject and name index will be produced after translation is complete.